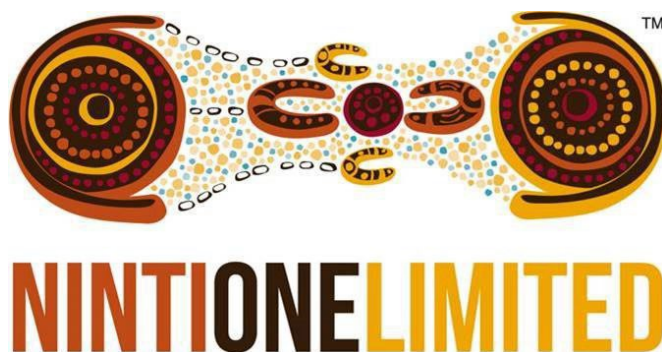




Ninti One Limited

ABN 28-106-610-833

Contractor Contract Cover Sheet

Project Number:	ID2.05
Project Title:	Urapuntja Smoke Free Values Campaign

Contractor Name: Urapuntja Health Service

Business/Trading Name: Urapuntja Health Service Aboriginal Corporation

Postal Address: PMB 31 Utopia via ALICE SPRINGS NT 0872

Street Address:

Phone: 08 8956 9875

Email: ceo@urapuntja.org.au

Mobile: 0439 040 070

Registered for GST: Yes

ABN: 45 449 518 275

Bank: Westpac

Account Number: 486175

BSB: 035-303

Account Name: Urapuntja Health Service Aboriginal Corporation

Commencement Date:	Upon execution of contract	End Date:	30 June 2027
Total Fees:	\$516,000.00	Total GST:	\$51,600.00
Milestone Payments:			
1. \$70,000.00	2. \$70,000.00	3. \$70,000.00	4. \$96,000.00
5. \$70,000.00	6. \$70,000.00	7. \$70,000.00	

AGREEMENT DETAILS		
Date of Agreement		
Project Name	Urapuntja Smoke Free Values Campaign	
Ninti One Contact		
Name:	Mel Donohue	
Phone number:	0477 652 074	
Address:	7 Hackney Road, Hackney, South Australia 5069	
Email:	mel.donohue@nintione.com.au	
ABN:	28 106 610 833	
Supplier Contact		
Name:	Melissa Hinson	
ABN:	45 449 518 275	
Address:	Sandover Highway Utopia via ALICE SPRINGS NT 0871	
Email:	ceo@urapuntja.org.au	
Phone number:	0439 040 070	
Attention:	Melissa Hinson	
Commencement Date	The time frame for the provision of Services pertaining to this Contract will commence upon execution and will end on 30 June 2027.	
Completion Date		
Services	The Supplier must deliver the services described in Schedule 1	
Key Personnel	1. Melissa Hinson 2. Yvette Ellis	
Deliverables & Due Dates	As set out in Schedule 1	
Fees	As set out in Schedule 1	
Payment Arrangements	As set out in Schedule 1	
Insurances <i>[Ninti One to specify any additional insurances required]</i>	Insurance type	Insurance limit
	Public liability	\$20,000,000.00
	Professional indemnity	\$10,000,000.00
	Workers compensation insurance	QBE Insurance Ltd
Special Conditions	Nil	

EXECUTED AS AN AGREEMENT

Signed for and on behalf of **Ninti One Limited** (ABN 28 106 610 833) by an authorised representative in the presence of



Signature of witness



Signature of authorised representative

MELISSA DONOHUE

Name of witness (print)

RODERICK REEVE

Name of authorised representative (print)

Date 08/09/2025

MANAGING DIRECTOR

Position held

Signed for and on behalf of **Urapuntja Health Service Aboriginal Corporation** (ABN 45 449 518 275) by an authorised representative in the presence of



Signature of witness



Signature of authorised representative

Mariah Torres

Name of witness (print)

Melissa Hinson

Name of authorised representative (print)

Date 08/09/2025

CEO

Position held

RECITALS

- A. On the 22nd of February 2024 Ninti One Limited (ABN 28 106 610 833) (**Ninti One**) and the Commonwealth of Australia, represented by the Department of Health, Disability and Ageing (ABN 83 605 426 759) (**Commonwealth**) signed a “Contract for Services” (**Head Contract**) pursuant to which Ninti One was engaged to deliver the National Best Practice Unit for Tackling Indigenous Smoking (**TIS**), to support the implementation and delivery of the national TIS program.
- B. Under the Head Contract, Ninti One may engage subcontractors to assist it to provide the Services outlined in the Head Contract.
- C. The Supplier has submitted a response to the Request for Quotation issued by Ninti One titled ‘Request for Quotation for the Provision of The Tackling Indigenous Smoking – National Reach and Priority Projects and dated 14/03/2025 (**RFQ**)’.
- D. Ninti One has agreed to engage the Supplier to assist Ninti One to meet its obligations under the Head Contract. The Supplier agrees to provide the Services on the terms and conditions set out in this Agreement.

IT IS AGREED

1. DEFINITIONS AND INTERPRETATION

- 1.1 In this Agreement, except where the context otherwise requires, the terms defined in the Agreement Details will have the meaning set out in the Agreement Details, and:

Agreement means this agreement, including the Agreement Details, the Schedules, any Annexures and the Recitals, and any amendment agreed to in writing by the Parties.

Agreement Details means the agreement details on page 1 of this Agreement.

Business Day means a day which is not a Saturday or Sunday or a public holiday in the place where a notice is to be received or a particular activity is to be performed.

Commonwealth means the Commonwealth of Australia as represented by the Department of Health and Aged Care.

Commonwealth Material means the material provided to Ninti One by the Commonwealth under the Head Contract and as specified in that document.

Confidential Information means the details of this Agreement, including the Contract Documents, all know-how, financial information, and other commercially valuable information in whatever form and of whatever description which a Party claims is confidential to itself and over which it has full control and includes all other such information as may be in the possession of that Party but does not include information which:

- (a) is already in the public domain;
- (b) after the date of this Agreement becomes part of the public domain otherwise than as a result of an unauthorised disclosure by the receiving Party or its representatives;
- (c) is or becomes available to the receiving Party from a third party lawfully in possession of such information and which has the lawful power to disclose such information to the receiving Party on a non-confidential basis;
- (d) is rightfully known by the receiving Party (as evidenced by its written record) prior to the date of disclosure to it under this Agreement; or
- (e) is independently developed by an employee of the receiving Party who has no knowledge of the Confidential Information.

Contract Documents means the documents attached or referred to in Annexure 1 of this Agreement.

Deliverables means the deliverables which the Supplier is required under this Agreement to provide as part of the Services, including the deliverables specifically described in the Agreement Details.

Head Contract means the contract referred to in paragraph A of the Recitals.

IPR means statutory and other proprietary rights in respect of patents, designs, trademarks, circuit layouts, copyright, confidential information, know-how and all other intellectual property rights as defined in Article 2 of the Convention Establishing the World Intellectual Property Organisation of July 1967.

Ninti One IP means inventions, copyright works and other subject matter capable of copyright protection, designs, trademarks, software, trade secrets expertise, knowledge, skills, techniques, methods, procedures, ideas, concepts and IPR (including any Commonwealth Material) which Ninti One makes available to the Supplier and which is reasonably necessary for the performance of the Services.

Supplier Background IP means inventions, copyright works and other subject matter capable of copyright protection, designs, trademarks, software, trade secrets expertise, knowledge, skills, techniques, methods, procedures, ideas, concepts and IPR possessed by the Supplier prior to the Commencement Date or developed separately to and concurrently with the performance of the Services, which the Supplier makes available and which is reasonably necessary for the performance of the Services.

Parties means Ninti One, the Supplier and their respective successors and permitted assigns, and **Party** means any one of them.

Results means the results of the Services, and any inventions, discoveries, works, improvements, innovations, ideas, concepts, know-how, trade secrets or Confidential Information and the IPR in them which are created or invented by the Supplier (including by the Key Personnel) in the course of performing the Services and including the Deliverables, but expressly excluding Ninti One IP and Supplier Background IP.

RFQ means the request for quotation documentation referred to in paragraph C of the Recitals.

Term means the term of this Agreement specified in clause 2.1.

1.2 In this Agreement, except where the context otherwise requires:

- (a) the singular includes the plural and vice versa, and a gender includes other genders;
- (b) if a word or phrase is defined, its other grammatical forms have a corresponding meaning;
- (c) a reference to a clause, paragraph, Recital, Schedule or Annexure is a reference to a clause, paragraph or recital of, or schedule or annexure to, this Agreement;
- (d) a reference to a document or instrument includes the document or instrument as novated, altered, supplemented or replaced from time to time;
- (e) a reference to a party to a document (including this Agreement) includes the party's executors, administrators, successors and permitted assigns and substitutes;
- (f) a reference to a person includes a natural person, partnership, body corporate, association, governmental or local authority or agency or other entity;
- (g) a reference to writing includes a facsimile transmission, an email receipt and any means of reproducing words in a tangible and permanently visible form;
- (h) references to any legislation or to any provision of any legislation will include any modification or re-enactment of such legislation or any legislative provision substituted for, and all legislation and statutory instruments issued under, such legislation;
- (i) the words "includes" and "including" or similar expressions must not be construed as words of limitation;

- (j) a provision of this Agreement will not be interpreted against a Party just because that Party prepared the provision;
- (k) if a day on or by which an obligation must be performed or an event must occur is not a Business Day, the obligation must be performed, or the event must occur on or by the next Business Day; and
- (l) headings are for ease of reference only and do not affect interpretation.

1.3 To the extent of any inconsistency between any of the provisions and documents that make up this Agreement, the provisions or documents appearing first below will prevail over the lower placed items (unless otherwise expressly stated to the contrary in the provision or document):

- (a) the Special Conditions specified in the Agreement Details (if any);
- (b) the provisions of the Head Contract in accordance with clause 3.3;
- (c) the clauses of this Agreement;
- (d) the Schedules to this Agreement; and
- (e) any Annexure or other document incorporated by reference into this Agreement (including any Contract Documents such as the Supplier's response to the RFQ).

2. TERM

- 2.1 This Agreement will begin on the Commencement Date and will continue until the Completion Date, subject to earlier termination under clause 12.
- 2.2 If the Supplier performs any of the Services prior to, but in anticipation of, the execution of this Agreement, those Services will be deemed to have been conducted pursuant to, and on the terms of, this Agreement.

3. HEAD CONTRACT

- 3.1 The Services are to be provided under the terms of the Head Contract, as further described in Schedule 2 of this Agreement.
- 3.2 If there is any inconsistency between the terms of this Agreement and the Head Contract with regard to the conduct of the Services and the rights and obligations arising from the conduct of the Services (other than one created by an express modification or exclusion of the application of the Head Contract to the Services which is specified in this Agreement), then the terms of the Head Contract will prevail over the terms of this Agreement to the extent of the inconsistency.
- 3.3 The Supplier agrees to comply with the terms and conditions of the Head Contract to the extent such terms and conditions are applicable to the Supplier and the conduct of the Services and are capable of observance by the Supplier as a 'Subcontractor' to Ninti One within the meaning given to that term in the Head Contract.
- 3.4 The Supplier agrees to use its best endeavours to promptly:
 - (a) provide Ninti One with any assistance reasonably requested by it to meet Ninti One's obligations under the Head Contract to the extent that such obligations relate to the Services and this Agreement; and
 - (b) provide any information and assistance reasonably required by Ninti One in relation to the Services and this Agreement for the preparation of documentation required by the Commonwealth.
- 3.5 It is a fundamental condition of this Agreement that the Supplier does not do, or omit to do, any act or thing which the Supplier knows or ought reasonably to know, would or may cause Ninti One to be in breach of the Head Contract, including a breach by the Supplier of the provisions set out in Schedule 2.
- 3.6 The Supplier indemnifies Ninti One against any and all liability which it causes Ninti One to incur to the Commonwealth under the Head Contract as a result of the Supplier's breach of its obligations under this Agreement.

4. SERVICES

4.1 During the Term, the Supplier will provide the Services:

- (a) itself and/or using the Key Personnel (if any);
- (b) in the manner specified in this Agreement or otherwise agreed by the Parties;
- (c) in accordance with:
 - (i) the standards specified in the Head Contract, all applicable laws and in accordance with practices, methods and standards that would reasonably be expected from professional and experienced suppliers in the relevant industry undertaking the same type of work as the Supplier in the same or similar circumstances;
 - (ii) the terms and conditions of this Agreement including the provisions set out in Schedule 2 being those terms of the Head Contract which Ninti One is required to impose on the Supplier as a subcontractor under the Head Contract;
 - (iii) the recognition and attribution obligations set out in Schedule 3.
 - (iv) the reasonable directions, procedures and policies of Ninti One including the Statement of Values set out in Schedule 4 and
 - (v) the Contract Documents generally;
- (d) so as to provide the Deliverables and any reports as required under this Agreement;
- (e) ensuring that the Services conform to the requirements of the Head Contract; and
- (f) in such locations as reasonably required by Ninti One.

4.2 The Supplier must be aware, when working with Aboriginal and Torres Strait Islander people and other groups, communities or populations from culturally and linguistically diverse backgrounds in providing the Services, of basic cultural communication protocols, taboos or sensitivities that could adversely affect the quality of the Services or the performance of the Agreement.

4.3 The Supplier must not subcontract any part of the Services or replace the Key Personnel with any other person without the prior written agreement of Ninti One.

4.4 The Supplier must notify Ninti One immediately if any of the Key Personnel is or becomes unable to perform the Services as contemplated by this Agreement and must, within 3 Business Days of request by Ninti One, replace the Key Personnel with person/s of equivalent skill and expertise.

4.5 If Ninti One, at its absolute discretion, is of the view that the replacement Key Personnel referred to in clause 4.44.4 do not hold the appropriate qualifications or lack the required skill and expertise, Ninti One may terminate this Agreement with immediate effect.

5. FEE

5.1 Subject to Ninti One receiving equivalent or corresponding funds from the Commonwealth under the Head Contract and the Supplier satisfying its obligations under this Agreement (as determined by Ninti One acting reasonably), Ninti One must pay the Supplier the Fee in accordance with the Payment Arrangements specified in the Agreement Details.

5.2 The Supplier must provide tax invoices to Ninti One in accordance with clause 13.

5.3 The Supplier acknowledges and agrees that the Fee constitutes the only fee or financial benefit to which it is or may become entitled for provision of the Services.

5.4 For the purposes of clause 5.1, it will be reasonable for Ninti One to determine that the Supplier has not satisfied its obligations under this Agreement where the Commonwealth similarly determines that Ninti One has not satisfied the requirements of the Head Contract with respect to the same obligations.

5.5 To the extent that the Commonwealth:

- (a) reduces, suspends or defers its payments to Ninti One under the Head Contract; or
- (b) requires Ninti One to return any monies provided to it by the Commonwealth under the Head Contract,

as a result or consequence of a breach of this Agreement by the Supplier, then Ninti One may similarly reduce, suspend or defer its payments to the Supplier of the Fee or require the return to Ninti One of the equivalent amount of the Fee paid to the Supplier.

6. NINTI ONE IP

6.1 Ninti One:

- (a) will make Ninti One IP available to the Supplier; and
- (b) subject to clause 6.2, grants to the Supplier a non-exclusive, royalty-free right to use the Ninti One IP, only as reasonably necessary for the performance of the Services in accordance with this Agreement.

6.2 Where Ninti One IP includes any Commonwealth Material, Ninti One will make the Commonwealth Material available to the Supplier on terms consistent with those granted to Ninti One under clause 12 of the Head Contract.

6.3 Subject to clauses 6.1(b) and 6.2, the Supplier acknowledges and agrees that it will have no rights whatsoever in respect of any Ninti One IP.

7. SUPPLIER BACKGROUND IP

7.1 All the Supplier Background IP will continue to be owned by the Supplier.

7.2 The Supplier grants to Ninti One a worldwide, non-exclusive, sublicensable, royalty-free, irrevocable, transferable and perpetual licence to use, adapt and exploit the Supplier Background IP to the extent necessary to enjoy the full benefit of the Services and the Results for any purpose (including a commercial purpose and to the extent necessary for Ninti One to grant the right and licences to the Commonwealth as required by the terms of the Head Contract).

8. RESULTS

8.1 The Supplier undertakes to promptly disclose all Results arising from the Services to Ninti One.

8.2 Subject to the terms of the Head Contract, the Parties acknowledge and agree that:

- (a) any IPR created in respect of Commonwealth Material will be owned by the Commonwealth (or its nominee) upon creation;
- (b) all other Results will upon creation be owned by the Supplier (**Supplier Results**).

8.3 Ninti One assigns to the Supplier all right, title and interest in and to any and all the Supplier Results, and to the extent necessary to give individual effect, such assignment will occur as from the date of creation.

8.4 The Supplier grants Ninti One a worldwide, non-exclusive, sublicensable, royalty-free, irrevocable, transferable and perpetual licence to use, adapt and exploit the Supplier Results for the purposes of:

- (a) enjoying the full benefit of the Services and the Results as contemplated by this Agreement; and
- (b) licensing the Supplier Results to the Commonwealth as required by the Head Contract (including clause 12 of the Head Contract).

- 8.5 The Supplier warrants and undertakes that the Results will not be copied in whole or in part from any third parties' materials and that nothing will prevent Ninti One (and the Commonwealth) from using the Results or otherwise obtaining full benefit of the Services and the Results for any purpose (including a commercial purpose). This clause 8.5 will not apply to any third party material supplied by Ninti One to the Supplier for the purposes of the performance of the Services, such as Commonwealth Material.
- 8.6 The Supplier further warrants that, in respect of all IPR licensed to Ninti One under or in connection with this Agreement, to the best of the Supplier's actual knowledge at the time at which the IPR is first made available and without the need to make additional enquiries, conduct searches or seek legal or patent opinion:
- (a) the relevant licensor has the right, title or authority to license, and has been made aware of, the rights granted in respect of IPR under this Agreement; and
 - (b) the Supplier has no notice of any challenge, claim or proceeding in respect of any such IPR.
- 8.7 The Supplier must immediately notify Ninti One if the Supplier becomes aware that it does not have right, title or authority to provide any license, or of any challenge, claim or proceeding referred to in clause 8.6(b) arising in respect of any such IPR after the IPR is delivered to Ninti One.
- 8.8 The Supplier must do all things and execute all documents that are reasonably necessary to give full effect to this clause 8.
- 8.9 The Supplier acknowledges that the Services form a part of the wider project described in Recital A, and hereby warrants and undertakes to Ninti One that the Results and the Supplier Background IP will be made available as required by the Commonwealth and Ninti One for the purposes of the conduct of the project until the project's completion on the terms set out in the Head Contract (including any variation or extension to the Head Contract that relates to the project) and otherwise on reasonable terms.

9. DELIVERABLES & REPORTS

- 9.1 The Supplier will provide the Deliverables to Ninti One by the Due Date(s) specified in the Agreement Details. The Deliverables will be owned by the Supplier in accordance with clause 8.2 but licensed to Ninti One in accordance with clause 8.4 and to the Commonwealth in accordance with Head Contract provisions set out in [Schedule 2](#).
- 9.2 The Supplier will provide reports to Ninti One in relation to its progress with the performance of the Services, including details of the creation of any Results, at intervals to be agreed by the Parties (or if not agreed, at least quarterly during the Term). All reports will be owned by Ninti One.
- 9.3 The Supplier will further cooperate with and provide reasonable assistance to Ninti One to enable Ninti One to meet its reporting obligations to the Commonwealth under the Head Contract.

10. WARRANTIES, LIABILITY AND INSURANCES

10.1 Warranties

- (a) the Supplier warrants that:
 - (i) the Services will be performed by the Supplier and/or its Key Personnel (if any) for and on behalf of Ninti One (and acknowledges that the Services are being provided for the ultimate benefit of the Commonwealth); and
 - (ii) it is not subject to any agreement, policy, arrangement or otherwise, including in relation to employment or the provision of other consultancy services, which is inconsistent with or would otherwise restrict its ability to undertake the Services.
- (b) the Supplier is responsible for its personal property (and the property of any of its personnel involved in performing the Services, including the Key Personnel) and for any loss of property or damage caused to it.

10.2 Liability and indemnity

- (a) Without limitation to clause 3.6, the Supplier releases and indemnifies and will continue to release and indemnify Ninti One, its officers, employees, subcontractors and agents (**Those Indemnified**) from and against all actions, claims, proceedings or demands (including those brought by third parties) which may be brought against Those Indemnified, whether at common law, in equity or pursuant to statute or otherwise, in respect of any liability, loss, harm, damage, cost or expense, howsoever arising out of the Supplier's or its officers, employees, subcontractors and agents exercise of the Supplier's rights or performance (including failure to perform) of the Supplier's obligations under this Agreement, and any unlawful or negligent act or misconduct or omission or breach of the terms of this Agreement by the Supplier or its officers, employees, subcontractors and agents, and from and against all damages, costs and expenses incurred in defending or settling any such action, claim, proceeding or demand.
- (b) The Supplier's liability under clause 10.2(a) will be reduced to the extent to which any action, claim, proceeding or demand arises out of any negligence or other unlawful act or omission of, or breach of this Agreement by, Those Indemnified.

10.3 Insurances

- (a) For as long as any obligations remain under this Agreement and in any event for a period of 7 years following completion or termination of this Agreement, the Supplier must have and maintain all appropriate and necessary insurances (including the insurances for the minimum liability coverage amounts specified in the Agreement Details) to cover the Supplier's and its officers, employees, subcontractors and agents performance of the Supplier's obligations under this Agreement (including as required by the Head Contract).
- (b) Within 10 Business Days of a request from Ninti One, the Supplier must provide Ninti One with a certificate of currency of its relevant insurance policies as required under clause 10.3(a).

11. CONFIDENTIAL INFORMATION

- 11.1 Each Party will keep the terms of this Agreement and all Confidential Information of the other Party confidential and will not, without the prior written consent of the disclosing Party, disclose or permit the same to be disclosed to any third party.
- 11.2 Each Party will use all reasonable endeavours (including labels or verbal notification) to ensure that the receiving Party is aware of the confidential nature of Confidential Information at the time of disclosure.
- 11.3 Each Party will take reasonable steps to provide for the safe custody of any and all Confidential Information disclosed to it by the other Party and to prevent unauthorised access to or use of such Confidential Information.
- 11.4 Each Party will ensure that its officers, employees and agents comply with the obligations of confidentiality imposed upon it by this clause 11 as if personally bound by such obligations.
- 11.5 The obligations on the Parties under this clause 11 will not be taken to have been breached to the extent that a Party:
 - (a) discloses Confidential Information of the other Party to its:
 - (i) employees;
 - (ii) directors and officers; and
 - (iii) legal, financial or other professional advisers,who have a need to know for the purposes of this Agreement (and only to the extent that each has a need to know), provided the disclosure is made subject to an obligation of confidentiality in accordance with clause 11.4;

- (b) discloses Confidential Information of the other Party to the extent required by law or the rules of a stock exchange, provided that to the extent reasonably possible, prior written notice of such required disclosure is given to the disclosing Party to enable it to seek to challenge the disclosure of its Confidential Information; or
- (c) in the case of Ninti One, it discloses Confidential Information of the Supplier to the extent necessary for Ninti One to meet its obligations to the Commonwealth under the Head Contract and the Commonwealth then discloses such Confidential Information of the Supplier in accordance with the Commonwealth's rights under the Head Contract.

11.6 Subject to clause 11.5(c), at any time upon written request, a Party must return any documents which embody Confidential Information of the other Party and must not keep any copies in any form, provided that a Party may retain one copy of such Confidential Information as is necessary to meet its reasonable record-keeping requirements subject to an obligation to treat such copy as confidential in accordance with this clause 11.

11.7 The Supplier acknowledges that it may receive or otherwise become aware of confidential information or material of the Commonwealth made available to Ninti One under the Head Contract (**Commonwealth Confidential Information**). All Commonwealth Confidential Information must only be used by the Supplier for the purposes of the conduct of the Services and must be kept strictly confidential by the Supplier on terms at least as onerous as apply to Ninti One's Confidential Information under this clause 11. The Supplier will further comply with any specific requirements relating to Commonwealth Confidential Information that are specified in the Head Contract or notified by Ninti One to the Supplier from time to time.

11.8 Each Party's obligations under this clause 11 survive expiration or earlier termination of this Agreement and continue until the Confidential Information disclosed to it lawfully becomes part of the public domain.

12. TERMINATION

12.1 Termination or reduction for convenience by Ninti One

Ninti One may terminate this Agreement or reduce the scope of the Services at any time for convenience and without default by giving the Supplier notice. The termination or reduction will take effect immediately upon delivery of the notice.

12.2 Termination and reduction due to actions of the Commonwealth

- (a) The Supplier acknowledges that the Commonwealth may at any time terminate the Head Contract or reduce the scope of the Head Contract for convenience, by notifying Ninti One in writing.
- (b) If the Commonwealth exercises the rights referred to in clause 12.2(a), Ninti One's liability to the Supplier in respect of the termination or reduction is limited to:
 - (i) payments for work performed before the date the termination or reduction takes effect; and
 - (ii) any reasonable costs incurred by the Supplier that are directly attributable to the termination or reduction,

and then subject to Ninti One receiving the corresponding or equivalent funds under the Head Contract.

- (c) The Supplier will not be entitled to compensation for loss of prospective profits, redeployment and redundancy costs or for any part of this Agreement is not performed.
- (d) If there is a reduction in the scope of the Services, Ninti One's obligation to pay any fee will abate proportionately to the reduction in the Services.

12.3 Termination for cause

Ninti One may terminate this Agreement immediately by written notice to the Supplier on the happening of any one of the following events:

- (a) if the Head Contract is terminated for any reason (without limitation to clause 12.2);

- (b) if the Supplier breaches any term of this Agreement where that breach is not capable of remedy;
- (c) if the Supplier breaches any term of this Agreement where the breach is capable of remedy and the breach is not remedied within thirty (30) days of receipt of notice in writing from Ninti One;
- (d) if the Supplier is in breach of any warranty given by the Supplier under this Agreement;
- (e) if the Supplier engages in conduct which brings its reputation into disrepute and Ninti One believes its continued association with the Supplier would be detrimental to the reputation of Ninti One or the Commonwealth;
- (f) if the Supplier is the subject of winding up or liquidation proceedings, whether voluntary or compulsory, otherwise than for the purpose of and followed by, a reconstruction, amalgamation or reorganisation; or
- (g) if the Supplier has become insolvent, bankrupt or is subject to the appointment of a receiver, manager, a receiver or manager or an inspector to investigate its affairs, enters into any arrangement or composition with its creditors generally, or is unable to pay its debts as and when they become due,

such termination to be effective immediately upon receipt of the written notice.

12.4 The Supplier may terminate this Agreement immediately by written notice to Ninti One if Ninti One breaches any term of this Agreement where that breach is not capable of remedy, or if Ninti One breaches any term of this Agreement where the breach is capable of remedy and the breach is not remedied within thirty (30) days of receipt of notice in writing from the Supplier, such termination to be effective immediately upon receipt of the first mentioned written notice.

12.5 If this Agreement is terminated:

- (a) the Supplier will return the Ninti One IP to Ninti One;
- (b) the Supplier will deliver any Results created before the termination of the Agreement to Ninti One and will strictly maintain the confidentiality of the Results in accordance with clause 11;
- (c) rights granted by the Supplier to Ninti One (and the Commonwealth) with respect to the Results, Deliverables and the Supplier Background IP will continue;
- (d) such termination is without prejudice to the continuing enforceability of any rights or obligations of the Parties accrued at the time of the termination and any rights and obligations which under the terms of this Agreement are expressed to survive termination (subject to clause 12.5(g));
- (e) each Party will continue to strictly maintain the confidentiality of the other Party's Confidential Information, Ninti One IP and the Supplier Background IP, and will not permit the disclosure of any such information to any third party or make or permit to be made any use of such information for any purpose other than as expressly provided in this Agreement;
- (f) the Supplier will continue to strictly maintain the confidentiality of the Commonwealth Confidential Information (as defined in clause 11.7); and
- (g) under clause 13.1, the Supplier will render a final tax invoice for Services up to the date of termination, together with any other reasonable, unavoidable and committed costs incurred by the Supplier up to the date of termination, and Ninti One will pay such tax invoice in accordance with the Payment Arrangements.

13. GST

13.1 Unless otherwise expressly stated, all amounts payable under this Agreement will be exclusive of GST.

13.2 If, by operation of the GST Law, any Supply under this Agreement is regarded as a taxable supply, the Supplier will be entitled to recover from the Recipient, an amount equivalent to the GST payable by the Supplier in

relation to the Supply, less any decrease in the cost to the Supplier of making the Supply resulting from the abolition or variation of any taxes, duties or statutory charges in relation to the imposition of GST.

13.3 If GST is payable, the Supplier will provide the Recipient with a tax invoice or a document adequate to entitle the Recipient to claim an input tax credit.

13.4 In this clause 13:

GST bears the meaning attributed to that term in the GST Law.

GST Law means *A New Tax System (Goods and Services Tax) Act 1999* (Cth) and any substantially similar legislation when it is passed into law and which may operate at any time during the Term of this Agreement.

Recipient means a person that has received a Supply.

Supplier means a person that has made or provided a Supply.

Supply bears the meaning attributed to that term in the GST Law.

13.5 Where a taxable supply takes place outside Australia in a territory that imposes a goods and services tax, value added tax, or similar, then references in this clause to GST and GST Law will refer to the applicable tax and legislation in that territory and this clause 13 will be read and construed accordingly.

14. NOTICES

14.1 Any notice, demand or other communication required to be given or made in writing under this Agreement may be served on a Party at its address set out in the Agreement Details by hand, prepaid post or email.

14.2 A Party may change its nominated contact person, address or email address for the purposes of this Agreement by giving notice of such change to the other Party within 7 days of the change.

14.3 Any notice or other communication will be deemed to have been received by the Party to which it was sent:

- (a) in the case of hand delivery, upon the date of such delivery;
- (b) in the case of prepaid post within Australia, on the third Business Day after the date of posting (or on the seventh Business Day after the date of posting if posted to or from a place outside Australia); or
- (c) in the case of email transmission, on delivery of a read receipt from the receiver or, if no read receipt is delivered, one day after the notice has been sent by email, and the sender will keep a record of the notice and the date on which it was sent,

unless in any such case it would be deemed to have been received on a day which is not a Business Day or after 5 p.m. on such a Business Day, in which event it will be deemed to have been received on the next such Business Day.

15. DISPUTE RESOLUTION

15.1 Any dispute between the Parties over the operation of this Agreement will be dealt with as follows:

- (a) the disputing party will serve written notice on the other party setting out particulars of the dispute;
- (b) within 14 days after the notice of dispute is served in accordance with paragraph (a), the parties must attempt in good faith to settle the dispute by direct negotiation;
- (c) negotiations under paragraph (b) will be conducted either in person at the Ninti One office by telephone conference or by other electronic means of communication;
- (d) if the dispute is not resolved within 14 days of commencing negotiation under paragraph (b), either party may submit the dispute to mediation in accordance with the Institute of Arbitrators and Mediators Australia 'Rules for the Mediation of Commercial Disputes';

- (e) the Supplier and Ninti One must pay the mediator's costs in equal shares and each party must pay their own costs of the mediation; and
- (f) neither party will have recourse to arbitration or litigation unless the dispute has been submitted to mediation and mediation has been unsuccessful.

15.2 Nothing in this clause will prevent a party from seeking interlocutory relief through courts of appropriate jurisdiction.

16. GOVERNING LAW

This Agreement is governed by the laws of the Northern Territory and each Party submits to the non-exclusive jurisdiction of the courts of the Northern Territory and its courts of appeal.

17. RELATIONSHIP

Except where this Agreement expressly states otherwise, each Party enters this Agreement as an independent contractor and nothing will create any other relationship between them, including any relationship of partnership, agency, trust, joint venture or otherwise. The duties, obligations and liabilities of the Parties will in every case be several and not joint nor joint and several.

18. SEVERANCE

A term or part of a term of this Agreement that is illegal or unenforceable may be severed from this Agreement and the remaining terms or parts of the term of this Agreement will continue in force except to the extent that the provisions to be severed would materially change the substance of this Agreement. In that instance, the Parties will negotiate in good faith to seek agreement on a replacement provision that is valid and enforceable and will as far as possible, give effect to the intention of the Parties, and in the absence of such agreement within a reasonable time this Agreement may be terminated upon the written notice of a Party.

19. WAIVER

Any failure or delay by a Party to compel performance by the other Party of any of the terms and conditions of this Agreement will not constitute a waiver of those terms or conditions, nor will it affect or impair the right of the first-mentioned Party to enforce them at a later time or to pursue remedies it may have for any subsequent breach of those terms or conditions.

20. AMENDMENT

This Agreement may only be amended by a written instrument signed by the Parties.

21. APPROVALS AND CONSENTS

Except where this Agreement expressly states otherwise, a Party may, in its discretion, give conditionally or unconditionally or withhold any approval or consent under this Agreement.

22. ENTIRE AGREEMENT

This Agreement contains the whole of the agreement between the Parties with respect to its subject matter and supersedes any and all other representations or statements by a Party whether oral or in writing and whether made prior or subsequent to the date of this Agreement.

23. FORCE MAJEURE

23.1 No Party will be liable for any failure to carry out its obligations under this Agreement where such failure is due to any cause beyond the reasonable control of that Party (**Force Majeure Event**). Where a Force Majeure Event continues for a period of 90 days, the Parties must consult with a view to reaching an agreement on whether or not this Agreement should continue and, if so, with what modifications to take into account the Force Majeure Event. Failing agreement within a reasonable time, this Agreement will terminate upon the written notice of a Party.

23.2 An obligation to make a payment is not excused by a Force Majeure Event.

24. NO ASSIGNMENT

No Party may assign or attempt to assign or otherwise transfer or encumber any right or obligation arising out of this Agreement except with the written consent of the other Party.

25. SUBCONTRACTING

Except where this Agreement expressly states otherwise, a Party will not subcontract the performance of its obligations under this Agreement except with the written consent of the other Party.

26. FURTHER ACTS

A Party, at its own expense and within a reasonable time of being requested by the other Party to do so, must do all things and execute all documents that are reasonably necessary to give full effect to this Agreement and the transactions contemplated by it.

27. NO AUTHORITY

Except where this Agreement expressly states otherwise, no Party may enter into any agreement or incur any liability on behalf of the other Party without that other Party's prior written consent and may not represent to any person that it has any authority to do so.

28. NO MERGER

The rights and obligations of the Parties under this Agreement do not merge on completion of any transaction contemplated by this Agreement.

29. COUNTERPARTS

This Agreement may be executed in counterparts. All executed counterparts constitute one document. Counterparts may be exchanged and relied on in facsimile or digital scanned form.

30. COSTS AND EXPENSES

Each Party will bear its own costs and expenses in relation to the negotiation, preparation, execution, delivery and completion of this Agreement and any related documentation.

31. SURVIVAL

Without limitation to the express provisions of this Agreement or those clauses of this Agreement which are intended or capable of having effect following the expiry or termination of this Agreement, the following clauses will survive the expiry or termination of this Agreement: clauses 7.2, 8, 10, 11, 12.5, 15.15, 16, and this clause 31.

SCHEDULE 1 – THE SERVICES

Item A: Services

1. Background

The National Reach and Priority Projects (NRPP) are a component of the Tackling Indigenous Smoking (TIS) program. NRPPs have been commissioned by Ninti One Limited (Ninti), as part of Ninti's management of the National Best Practice Unit for TIS (NBPU TIS). The NRPPs aim to expand the reach of smoke/vape free programs, increase focus on prevention activities and reduce the prevalence of tobacco use and vaping in:

- two thematic areas of:
 - (1) expanding the reach of the TIS program, increasing exposure of First Nations people in remote and regional IREGs (based on ANU TIS categories) to smoke free and vape free messaging and/or activities, particularly in IREGs with high Indigenous smoking rates (based on ABS/AIHW data) and/or
 - (2) increasing the focus on preventative population health activities in regional, remote and very remote areas, to support the development, promotion and/or implementation of smoking- and vaping prevention resources and/or activities across multiple IREGs, and/or
- two priority groups:
 - (1) young Indigenous people (youth) in regional, remote and very remote areas, to support and improve First Nations youths understanding of the harms of vaping and smoking, to prevent and reduce uptake across multiple IREGs/communities, and/or
 - (2) First Nations pregnant women, their families and women of childbearing age in regional, remote and very remote areas – increasing their exposure to smoke-free and vape-free messaging and/or activities, particularly in IREGs with high Indigenous smoking rates during pregnancy (based on ABS/AIHW data)

The NRPPs will complement and will not duplicate the work of any of the other existing elements of the TIS program. Ninti will provide the co-ordination, oversight, and management of NRPP contracts for projects that align with the four above-mentioned priority areas. The Urapuntja Health Service Aboriginal Corporation will deliver a project titled 'Urapuntja Smoke Free Values Campaign' as part of the NRPP program.

Urapuntja Health Service will deliver culturally appropriate smoking prevention and cessation programs and support into existing health outreach services. It will also empower community leadership and members to deliver targeted workshops, education, and awareness campaigns across the Urapuntja Homelands.

2. Services

Urapuntja Health Service will complete all the activities and services outlined in the 'Urapuntja Health Service Aboriginal Corporation – ID2.05 RFQ Tender Response to the NRPP RFQ' (Annexure 1, item A)

The Urapuntja Smoke Free Values Campaign is a community-led preventive health initiative aimed at addressing critically high rates of smoking and vaping among Alyawarr and Anmatyerr peoples living in the Urapuntja Homelands. Smoking remains a leading cause of preventable illness and mortality in the region, with an estimated prevalence of around 50%- far exceeding national averages. Local health data and anecdotal reports suggest rates may be even higher among certain groups, including young men and women of childbearing age.

This project will be embedded within, and complementary, to Urapuntja Health Service's existing primary health care outreach services. It comprises of five interrelated initiatives targeting Aboriginal youth, pregnant women, and families through culturally grounded education, visual media campaigns, community policy change, and local workforce development. Each initiative will be delivered in local languages, on Country, and through trusted relationships, ensuring cultural safety and relevance.

The project adopts a clear preventive population health approach and is designed to complement - not duplicate - existing Tackling Indigenous Smoking (TIS) efforts in the region. While Central Australian Aboriginal Congress currently delivers a TIS program, its reach and scope in the Urapuntja Homelands is limited. This project therefore plays a vital role in filling the gap and extending smoking/vaping cessation support initiatives in the Homelands.

Although enhancing support and education for all Homelands residents, the project will prioritise two key population groups identified in the NRPP framework: Aboriginal youth (ages 10-24) and pregnant women (including women of childbearing age). These groups are particularly vulnerable to the harms of smoking and vaping and will be engaged through age-appropriate, culturally grounded channels.

Each initiative under the project is designed to directly align with NRPP objectives: reducing the uptake of smoking and vaping, expanding the reach of culturally safe messaging, targeting priority populations, and embedding long-term prevention strategies within local health and community systems.

Project Approach:

- Co-design with community: Engage young people, Elders, local mothers and health workers to ensure all project activities reflect local knowledge, culture, and language.
- Culturally safe delivery: Integrate traditional practices, yarning circles, and community values across programs, media, and support activities.
- Targeted education: Deliver age- and audience-specific smoking and vaping education in schools, clinics, homes, and community spaces.
- Multimedia engagement: Produce and share visual campaigns (e.g. TikTok, animated clips, signage, short films) in Alyawarr and Anmatyerr to increase reach.
- Community leadership: Train and support peer champions, youth ambassadors, and role models to lead smoke-free advocacy and education.
- Policy and environment change: Create and promote voluntary smoke-free zones at public gathering places to shift social norms.
- Family focused support: Empower pregnant women, their partners, and extended families with practical smoke-free home strategies and resources.
- Frontline capacity building: Equip SEWB and clinic teams with culturally tailored digital tools for brief interventions and client support.

3. Outcomes

The project will produce:

- Reduced prevalence and uptake of smoking/vaping among young people
- Improved knowledge and confidence among pregnant women and families to create smoke-free homes and support healthy pregnancies.
- Greater involvement of families and Elders in supporting youth and pregnant women to reduce exposure to smoking and vaping.
- Greater visibility and normalisation of smoke-free messaging across the Homelands
- Increased community ownership of smoke-free environments, including voluntary smoke-free zones at clinics, ovals, and shared spaces.
- Strengthened local workforce capacity to deliver smoke-free interventions.
- Improved access to culturally appropriate tools and resources for frontline staff to provide interventions and health promotion.

4. Deliverables

The project will comprise of these key components:

1. Youth Anti-Vaping and Smoking Education Program

Through creative and culturally relevant tools and support, the initiative will promote positive behaviours, shift attitudes toward tobacco and vaping, and empower young people to lead their peers in building a smoke-free future.

Approach and Methodology:

- Co-design of education content and campaign materials with youth, Elders, and total health staff, using yarning circles and art workshops to ensure local relevance.
- Delivery of the program in schools, youth centres, sports days, and community gatherings.
- Peer-led storytelling and short film production to share youth perspectives on smoke-free living.
- Social media campaigns in local languages, using TikTok, Instagram Reels, and WhatsApp to engage youth audiences with short, targeted shareable health messages
- Interactive workshops that blend traditional culture with modern expression-including dance, music, digital media, and visual arts.

2. Smoke-Free Families & Pregnancy Support

This initiative supports pregnant women, mothers and families in the Urapuntja Homelands to create smoke-free homes and reduce tobacco use during pregnancy. It responds to high smoking prevalence among women of childbearing age and the need for family-inclusive, culturally safe strategies.

Approach and Methodology:

- Group antenatal education sessions incorporating local cultural practices, storytelling, and hands-on activities.
- Development and distribution of family resource kits with visual guides, reminder tools (e.g., fridge magnets, storybooks), and anti-smoking aids.
- Peer support champion model involving local mothers trained to walk alongside other women on smoke-free journeys.
- Collaboration with clinic midwives, SEWS teams, and Aboriginal Health Practitioners to integrate messaging into regular care.
- Whole-of-family yarning circles to address second-hand smoke and empower family units to support smoke-free pregnancies.

3. "Clear Skies" Smoke-Free Messaging Campaign

This campaign will expand the visibility of smoke-free messaging across the Utopia homelands through a multilingual, locally co-designed, public health campaign.

Approach and Methodology:

- Development of campaign identity and slogans through art competitions, youth workshops, and Elder consultations.
- Production of short films, voiceovers, and animations in Alyawarre and Anmatyerr, tailored for social media, clinic TVs, and outdoor screenings.
- Installation of culturally relevant signage and murals at community stores, clinics, airstrips, and meeting places.
- Print materials (posters, stickers, brochures) distributed in mail runs, health outreach, and at events.
- Messaging integrated into seasonal events, health promotion stalls and sports competitions.

4. Community Smoke-Free Spaces Initiative

This initiative supports the establishment of voluntary smoke- and vape-free zones in community-identified locations such as clinics, ovals, stores, and shaded sitting areas.

Approach and Methodology:

- Initial consultations with each Homeland community to discuss desired smoke-free spaces.
- Design and installation of culturally appropriate signage co-developed with local artists and language workers.
- Launch events featuring Elders, young leaders, and health staff to celebrate the creation of the zones.
- Ongoing education stalls, storyboards, and rote-model engagement to reinforce smoke-free values.
- Monitoring through informal feedback and periodic community surveys to assess acceptance and impact.

5. Digital Toolkit for Remote SEWB Workers

This component supports frontline SEWB and clinic teams with accessible, culturally safe digital tools to deliver brief interventions on smoking and vaping during outreach and consultations.

Approach and Methodology:

- Development of digital resource library, including:
 - Animated videos and myth-busting clips
 - Local language audio stories and explainer voiceovers
 - Printable conversation scripts and flipcharts
 - Communicare-compatible referral and note templates
- Training sessions for staff in toolkit use during client interactions.
- Distribution via pre-loaded USBs, tablets, and secure cloud sharing to accommodate limited connectivity.
- Ongoing updates to the toolkit based on staff feedback and community input.

Item B: Required Contract Material

All Material created by the Contractor for the purposes of the Services, outlined in Schedule 1, is Contract Material, including but not limited to:

- **Comprehensive Project Plan:** detailing the process and timeframes for achieving the required deliverables, including a preliminary stakeholder engagement and communication plan and relevant activities from the Supporting Documents to this Contract, including a risk management plan.
- **Progress Reports:** outlining progress on key project activities and deliverables, using the template provided by Ninti One, including details on:
 - o Development of the services as identified at Item A.2. have been achieved within the reporting period.
 - o Urupuntja's observations on the progress of the project addressing successes, challenges, and workforce development needs and strategies.
 - o Progression of stakeholder engagement and communications plan.
 - o List of all personnel working on the program and their roles.
 - o Supplier's view of risk management plan and reporting on any change in risk status of any part of the project.
 - o Reporting on the number and proportion of Aboriginal and Torres Strait Islander people employed in the delivery of the project as described in Item A.5 and as outlined the 'Urupuntja Health Service Aboriginal Corporation – ID2.05 RFQ Tender Response to the NRPP RFQ '(Annexure 1, item A).
- **Final Project Closure Report:** to be completed at the end of the project outlining what has been achieved by the project during the contract period; any work still to be completed on the required Services.
- **Evaluation:** Ninti reserves the right to complete an independent evaluation of this NRPP project.

Item C: Standards and Best Practice

N/A

Item D: Timeframe

The time frame for the provision of Services pertaining to this Contract will commence upon execution and will end on 30 June 2027. Due dates for reports and plans are:

DUE DATE	DELIVERABLE	
Upon contract execution	1	Contract execution
3 weeks after contract execution	2	Comprehensive project plan for the full duration of the project, maximum of 20 pages.
31 January 2026	3	Progress report #1
30 April 2026	4	Progress report #2
31 July 2026	5	Progress report #3
31 October 2026	6	Progress report #4
31 January 2027	7	Progress report #5
31 May 2027	8	Final report, covering the entire project period.

Item E: Fees

Ninti One will pay the contractor the fee, subject to any deferral of payment pursuant to clause 6, in instalments as follows:

- a. up to **\$516,000.00 plus GST** per (Table One); and
- b. each instalment payable within 28 days of receipt of a valid tax invoice from the contractor.

In this schedule, **GST** has the same meaning as in the *A New Tax System (Goods and Services Tax) Act 1999 (Cwth)*.

Deliverable Due Date	Payment Date	Amount (GST Excl)	Amount (GST incl)
3 weeks after contract execution	Acceptance of comprehensive project plan	\$70,000.00	\$77,000.00
31 January 2026	Acceptance of Progress Report #1	\$70,000.00	\$77,000.00
30 April 2026	Acceptance of Progress Report #2	\$70,000.00	\$77,000.00
31 July 2026	Acceptance of Progress Report #3	\$96,000.00	\$105,600.00
31 October 2026	Acceptance of Progress report #4	\$70,000.00	\$77,000.00
31 January 2027	Acceptance of Progress report #5	\$70,000.00	\$77,000.00
31 May 2027	Acceptance of Final Report	\$70,000.00	\$77,000.00
	TOTAL	\$516,000.00	\$567,600.00

Item F: Allowances and Costs (inclusive of GST)

N/A

Item G: Facilities and Assistance

N/A

Item H: Invoice Procedures

The Contractor must forward correctly addressed invoices to mel.donohue@nintione.com.au that are in the form of a tax invoice and include the following:

- (a) the title of the Services or other identification of this Contract;
- (b) the name of a Ninti contact officer;
- (c) the fees, allowances and costs due; and
- (d) a written statement signed by the Contractor, or where the Contractor is a body corporate, by a representative of the Contractor authorised to sign on behalf of the body corporate, verifying that no wages are due and owing by the Contractor in respect of the performance of the Services at the time the claim for payment is made

Item I: Specified Personnel

The Contractor agrees that the Specified Personnel will perform the activities as outlined below:

Name	Time Input Yr 1 Long term (months) / Short term (hours/days)	Time Input Yr 2 Long term (months)/ Short term (hours/days)	Total time commitment to project
Mel Hinson - CEO	100 hours (approx. 1 hour week)	100 hours	200 hours
Yvette Ellis - Health Services Manager	100 hours	100 hours	200 hours
Rachel Chatfield - SEWB Project Coordinators	375 hours (approx. 1 day/week)	500 hours	875 hours
Health Promotion Worker (TBC)	750 hours (approx. 0.4 FTE)	1,000 hours	1,750 hours
Community Engagement Worker (TBC)	750 hours	1,000 hours	1,750 hours
Cultural Advisors, Artists, Elders	Short term inputs (as needed)	Short-term inputs (as needed)	Variable / ad hoc
Youth Peer Educators (x3)	150 hours (training+ co-delivery)	150 hours	300 hours (total group)

Item J: Dealing with Copies

Upon completion of the services, the Contractor may retain one hard copy of the Contract Material for its internal record-keeping purposes only.

Item K: Insurance

The Contractor agrees to maintain:

- public liability insurance for an amount of not less than \$10 million per event; and,
- workers' compensation insurance and Personal Accident Insurance for contractor personnel for an amount required by the relevant State or Territory legislation.

The sub-contractor must, within seven Business Days of a request by Ninti, provide Ninti with certificates of currency for all required insurances.

Item L: Address for Notices

Contractor's Address for Notices:

Mr. Rod Reeve

Project Director, NBPU-TIS

rod.reeve@nintione.com.au

Mobile: 0411 481 974

Item M: Commencement Date

Contract is to commence on execution.

Item N: Initial Contract Term

The initial contract term is to 30 June 2027

Item O: Recognition and Attribution

1. Logo usage:
 - (a) The Ninti One Limited Logo will always be slightly larger or the same size as other logos on a publication.
 - (b) The Ninti One Limited Logo will never be smaller than any other logo on a publication.
 - (c) The Ninti One Limited logo will always be in colour.
2. Where a relevant document contains provisions relating to the recognition, acknowledgement or attribution of the funding body, those requirements will be fulfilled by the contractor. Wording for recognition of funding source will be "Funded by the Department of Health, Disability and Ageing."

Schedule 2 – Head Contract provisions to which the Supplier is subject

Without limiting clause 3, under the terms of the Head Contract, Ninti One is specifically required to ensure that the Supplier complies with the following obligations, and the Supplier must comply with the following obligations:

#	Details
1	CONTRACT MATERIAL a. The Supplier grants, or undertakes to arrange for a third party to grant, to the Commonwealth a permanent, irrevocable, royalty-free, licence fee-free, world-wide, non-exclusive licence (including a right of sublicense) to use, reproduce, modify, adapt, publish, perform, broadcast, communicate, commercialise and exploit the Intellectual Property in any Existing Material in conjunction with the Contract Material. b. To the extent that the Supplier needs to use any of the Contract Material for the purpose of performing its obligations under this Agreement, the Commonwealth grants to the Supplier for the Contract Term a right of sub-licence to use, reproduce, modify, adapt, publish, perform, broadcast and communicate the Intellectual Property in the Contract Material solely for the purposes of this Agreement. c. If requested by the Commonwealth, the Supplier agrees to bring into existence, sign, execute or otherwise deal with any document which may be necessary or desirable to give effect to this clause. d. The Supplier warrants that it is entitled, or will be entitled at the relevant time, to deal with the Intellectual Property in the Contract Material and Existing Material in the manner provided for in this clause. e. Property in any copy of Contract Material (in the form of a document, article or removable medium) vests or will vest in the Commonwealth. The Supplier agrees to secure all copies within its control against loss and unauthorised use or disclosure; and on the expiration or earlier termination of this Agreement, to deliver to the Commonwealth, or, in accordance with the Commonwealth's directions, erase or otherwise deal with all such copies.
2	DISCLOSURE OF INFORMATION a. The Supplier agrees not to disclose any Confidential Information relating to the Head Contract, the Agreement or the Services without prior approval in writing from Ninti One, which may be subject to conditions. b. Ninti One may at any time require the Supplier to give, and to arrange for its personnel to give, undertakings in writing relating to the non-disclosure of Confidential Information. The Supplier agrees to promptly arrange for all such undertakings to be given. c. The Supplier agrees: - to secure all copies within its control against loss and unauthorised use or disclosure; and - on the expiration or earlier termination of this Agreement, to deliver to Ninti One or in accordance with Ninti One's directions, erase or otherwise deal with all such copies. d. The Supplier acknowledges that the Commonwealth provides no undertaking to treat the Supplier's information, or this Agreement, as confidential information. e. The Supplier acknowledges that the Commonwealth may disclose information relevant to this Agreement, or this Agreement itself, to any person: - to the extent required by Law or by a lawful requirement of any government or governmental body, authority or agency; - if required in connection with legal proceedings; - for public accountability reasons, including disclosure on request to other Government Agencies, and a request for information by parliament or a parliamentary committee or a Commonwealth Minister;

	iv. to Commonwealth third party service providers for the purposes of providing goods and services to, or on behalf of, the Commonwealth; or v. for any other requirements of the Commonwealth.
3	ACCESS TO DOCUMENTS Where the Commonwealth has received a request for access to a document created by or in the possession of the Supplier that relates to the performance of this Agreement, the Commonwealth or Ninti One may at any time by written notice require the Supplier to provide the document to the Commonwealth or Ninti One and the Supplier must, at no additional cost to Ninti One or the Commonwealth promptly comply with the notice.
4	PROTECTION OF PERSONAL INFORMATION a. The Supplier agrees in respect of the provision of the Services under this Agreement: 1. to use or disclose Personal Information obtained during the course of providing the Services under this Agreement, only for the purposes of this Agreement; 2. not to do any act or engage in any practice which if done or engaged in by an agency, would be a breach of an APP; 3. to notify individuals whose Personal Information the Supplier holds, that complaints about acts or practices of the Supplier may be investigated by the Privacy Commissioner who has power to award compensation against the Supplier in appropriate circumstances; 4. to comply with the obligations contained in the APPs that apply to the Supplier; 5. not to use or disclose Personal Information or engage in an act or practice that would breach an APP or a RAC, whichever is applicable to the Supplier, unless the activity or practice is engaged in for the purpose of discharging, directly or indirectly, an obligation under this Agreement, and the activity or practice which is authorised by this Agreement is inconsistent with the APP or RAC, whichever is applicable to the Supplier; 6. to comply with any request under section 95C of the Privacy Act; 7. to immediately notify Ninti One if the Supplier becomes aware of a breach or possible breach of any of the obligations contained in, or referred to in, this clause; 8. to comply with any directions, guidelines, determinations or recommendations of the Privacy Commissioner to the extent that they are consistent with the requirements of this clause; 9. to ensure that any officers, employees or agents of the Supplier who are required to deal with Personal Information for the purposes of this Agreement are made aware of the obligations of the Supplier set out in this clause; and 10. not use or disclose any Personal Information, obtained from Ninti One or the Commonwealth for the purposes of direct marketing. b. The Supplier must promptly give, and procure that its personnel promptly give an undertaking relating to the non-disclosure of Personal Information upon request from Ninti One. c. The Supplier indemnifies Ninti One and the Commonwealth in respect of any loss, liability or expense suffered or incurred by Ninti One or the Commonwealth which arises directly or indirectly from a breach of any of the obligations of the Supplier under this clause. d. The Supplier acknowledges that its obligations under this clause are in addition to, and do not restrict, any obligations it may have under the Privacy Act or any privacy codes or privacy principles contained in, authorised by or registered under any law including any such privacy codes or principles that would apply to the Supplier but for the application of this clause.
5	COMPLIANCE WITH LAWS AND POLICIES a. The Supplier agrees, in carrying out this Agreement, to comply with all Laws and any relevant policies, including: A. the Crimes Act 1914; B. the Racial Discrimination Act 1975; C. the Sex Discrimination Act 1984; D. the Disability Discrimination Act 1992;

	E. the Charter of United Nations Act 1945 and the Charter of United Nations (Dealing with Assets) Regulations 2008; F. the Archives Act 1983; G. the Privacy Act 1988; H. the Freedom of Information Act 1982; I. the Criminal Code Act 1995; J. the Public Interest Disclosure Act 2013; K. the Modern Slavery Act 2018; L. the Payment Times Reporting Act 2020; M. any work health and safety legislation applicable to the Supplier; N. the Australian Government's Lobbying Code of Conduct; O. the Protective Security Policy Framework; P. any fraud control policy, rules or guidelines issued by the Australian Government from time to time. b. The Supplier acknowledges that under section 137.1 of the Criminal Code, giving false or misleading information to the Commonwealth is a serious offence. c. The Supplier agrees, when using the Commonwealth's premises or facilities, to comply with all reasonable directions and procedures relating to work health, safety and security in operation at those premises or in regard to those facilities (including the Commonwealth's smoke-free work-place policy) whether specifically drawn to the attention of the Supplier or as might reasonably be inferred from the circumstances. d. The Supplier must comply with, and require its personnel to comply with, the behaviours specified in: i. the Code of Conduct in section 13 of the <i>Public Service Act 1999</i> as if the Supplier and its Personnel were APS employees as defined in that Act; and ii. the general duties of officials at sections 25-29 of the <i>Public Governance, Performance and Accountability Act 2013</i> as if the Supplier and its Personnel were officials as defined in that Act.
6	PAYMENT TIMES PROCUREMENT CONNECTED POLICY If the Supplier enters into a PT PCP Subcontract, the Supplier must include in that subcontract: a. a requirement for the Supplier to pay the PT PCP Subcontractor: i. within 20 calendar days after the acknowledgement of the satisfactory delivery of the services and receipt of a correctly rendered invoice. If this period ends on a day that is not a Business Day, payment is due on the next Business Day; and ii. for payments made by the Supplier after the payment is due, the unpaid amount plus interest on the unpaid amount; b. a statement that the PT PCP applies to that subcontract; and c. a statement that the subcontractor may make a complaint to the Policy Team, or to the Commonwealth as represented by the Department, in accordance with the PT PCP if there has been non-compliance with the requirements of this clause. If the Supplier enters into a Reporting Entity Subcontract in anticipation of (or after) entering this Agreement, the Supplier must use reasonable endeavours to include in that subcontract: a. the obligation to comply with the PT PCP; and b. a requirement that, if the Reporting Entity Subcontractor in turn enters into a Reporting Entity Subcontract, then that subcontract will include: i. the obligation to comply with the PT PCP; and ii. obligations equivalent to this clause (such that the obligations in this clause are to continue to be flowed down the supply chain to all Reporting Entity Subcontractors).
7	CHILD SAFETY If any part of the Services involves the Supplier employing or engaging a person (whether as an officer, employee, contractor, or volunteer) that is required by State or Territory law to have a working with children check to undertake the Services or any part of the Services, the Supplier agrees: a. to comply with all State, Territory or Commonwealth law relating the employment or engagement of people who work or volunteer with children in relation to the Services, including mandatory reporting and working with children checks however described; and b. if requested, to provide Ninti One at the Supplier's cost, an annual statement of compliance with this clause, in such form as may be specified by Ninti One.

8	CONFLICT OF INTEREST a. The Supplier warrants that, to the best of its knowledge after making diligent inquiries, at the Commencement Date, no conflict exists or is likely to arise in the performance of obligations under this Agreement by itself or by its personnel. b. If, during the Term, a conflict arises, or appears likely to arise, in respect of the Supplier or any of its personnel, the Supplier agrees to: I. notify Ninti One immediately in writing of the conflict making a full disclosure of all relevant information relating to the conflict and setting out the steps the Supplier proposes to take to resolve or otherwise deal with the conflict; and II. take such steps as have been proposed by the Supplier, or at the absolute discretion of Ninti One, take such steps as Ninti One may reasonably require to resolve or otherwise deal with the conflict. c. the Supplier acknowledges that if it fails to comply with this clause, or is unable or unwilling to resolve the issue in the required manner, the Commonwealth may terminate the Head Contract and Ninti One may terminate this Agreement accordingly.
9	ACCOUNTABILITY AND ACCESS a. The Supplier must give to: 1. the Auditor-General or his/her delegate; 2. the Privacy Commissioner or his/her delegate; 3. the Ombudsman or his/her delegate; 4. the persons appointed under the <i>Australian Information Commissioner Act 2010</i> as the Information Commissioner and the FOI Commissioner or his/her delegate; and 5. any persons authorised in writing by Ninti One or the Commonwealth, (referred to in this clause collectively as ‘those permitted’) access to premises at which Materials associated with this Agreement are stored or work associated with this Agreement is undertaken; and to the Supplier’s personnel, in order for those permitted to be able to inspect and copy Material for purposes associated with this Agreement or any review of performance under this Agreement. The rights referred to in this clause are, wherever practicable, subject to: 1. the provision of reasonable prior notice from the Commonwealth (except where there is an actual or apprehended breach of the Law); 2. access being sought during reasonable times (except where the Commonwealth believes there is an actual or apprehended breach of the Law); and 3. the Supplier’s reasonable security procedures. b. The Supplier agrees to provide all reasonable assistance requested by Ninti One or the Commonwealth in respect of any inquiry into or concerning the Services or this Agreement. c. Without limitation to the generality of this clause, the assistance to be provided by the Supplier will include, as appropriate, the provision of Material and of access to its computer hardware, software and equipment, and making available relevant personnel to provide information or answer questions on any matters relevant to or arising from this Agreement or the performance of the Services which might reasonably be expected to be within the knowledge of the Supplier.
10	SUPPLIER WARRANTIES AND UNDERTAKINGS The Supplier represents, warrants and undertakes to Ninti One and the Commonwealth that: a. it will promptly notify and fully disclose to Ninti One in writing any event or occurrence actual or threatened which could have an adverse effect on its ability to perform any of its obligations under this Agreement; b. it has full power and authority to enter into, perform and observe its obligations under this Agreement; c. the execution, delivery and performance of this Agreement has been duly and validly authorised by the Supplier; d. it will promptly notify and fully disclose to Ninti One in writing if an Insolvency Event occurs in respect of the Supplier; e. the unconditional execution and delivery of, and compliance with its obligations by it under this Agreement do not:

	1. contravene any Law to which it or any of its property is subject or any order or directive from a Government Agency binding on it or any of its property; 2. contravene its constituent documents; 3. contravene any contract or instrument to which it is a party; 4. contravene any obligation of it to any other person; or 5. require it to make any payment or delivery in respect of any financial indebtedness before the scheduled date for that payment or delivery; 6. no litigation, arbitration, mediation, conciliation or proceedings including any investigations, are taking place, pending, or are threatened against the Supplier which could have an adverse effect upon either the Supplier's capacity to perform its obligations under this Agreement or the Supplier's reputation; 7. it has not had a judicial decision (excluding decisions under appeal) made against it in relation to employee entitlements where that resulting order has not been satisfied; 8. unless otherwise disclosed in this Agreement, it is not entering into this Agreement as trustee of any trust or settlement; 9. it has not made any false declaration in respect of any current or past dealings with Ninti One or the Commonwealth or any Government Agency, including in any tender or application process or in any contract; 10. it has had no significant deficiency in the performance of any substantive requirement or obligation under any prior contract with Ninti One or the Commonwealth or any Government Agency; 11. it has, and will continue to have and to use, the skills, qualifications and experience to perform the Services in an efficient and controlled manner with a high degree of quality and responsiveness and to a standard that complies with this Agreement; and 12. it has and will continue to have the necessary resources, including financial resources, to perform the Services and will use those resources to perform the Services. The Supplier acknowledges that Ninti One and the Commonwealth relies on the Supplier's representations and warranties and has engaged the Supplier to provide the Services on that basis.
11	COMMONWEALTH SERVICE PROVIDER The Supplier acknowledges that it may be considered a 'Commonwealth service provider' for the purposes of the <i>Ombudsman Act 1976</i> and subject to investigation by the Ombudsman under that Act and that the Commonwealth will not be liable for the cost of any such investigation by the Ombudsman in connection with the subject matter of this Agreement or the subject matter of the Head Contract.
12	PUBLIC DISCLOSURE The Supplier consents to the public disclosure of its name in connection with the performance of the Services.

Schedule 3- Recognition and Attribution

1. Logo usage:
 - a. The Ninti One Limited Logo will always be slightly larger or the same size as other logos on a publication.
 - b. The Ninti One Limited Logo will never be smaller than any other logo on a publication.
 - c. The Ninti One Limited logo will always be in colour.
2. Where a relevant document contains provisions relating to the recognition, acknowledgement or attribution of the funding body, those requirements will be fulfilled by the Supplier.

Schedule 4 - Our Values

We are very proud of our connection to and respect for traditional culture. Our name 'Ninti' means 'clever' in Pitjantjatjara, which reflects our desire to be a capacity builder and knowledge broker.

- We are an inclusive, respectful and equality-driven organisation.
- We respect the cultural diversity and cultural authority of Aboriginal and Torres Strait Islander people.
- We will exhibit courage, innovation and entrepreneurship in our work.
- Respect, integrity, accountability, empathy, confidentiality, listening and learning will characterise our dealing with people.

ANNEXURE 1 CONTRACT DOCUMENTS

- Item A – Urapuntja Health Service Aboriginal Corporation – ID2.05 RFQ Tender Response to the NRPP RFQ
- Item B – Urapuntja Health Service Aboriginal Corporation Proposal Adjustment Response
- Item C – NRPP Request for Quotation 2025



**REQUEST FOR QUOTATION FOR THE
PROVISION OF
THE TACKLING INDIGENOUS SMOKING –
NATIONAL REACH AND PRIORITY PROJECTS**

RFQ NUMBER 9102

ISSUED BY NINTI ONE LIMITED

Lodged electronically via email at NRPPTenderResponse@nintione.com.au

[Date]

To:

Tender Evaluation Panel - Ninti One Limited

Re: Submission – Urapuntja Homelands Smoking Cessation Project - Reach and Priority Projects RFQ Number 9102

Dear Evaluation Panel Members,

On behalf of Urapuntja Health Service Aboriginal Corporation (UHS), I am pleased to submit our Quotation for the *Urapuntja Homelands Smoking Cessation Project* under the Tackling Indigenous Smoking (TIS) – 2025 National Reach and Priority Projects (NRPP) program.

UHS is a trusted Aboriginal Community Controlled Health Organisation with more than 40 years' experience delivering comprehensive, culturally grounded primary health care services across the very remote Urapuntja Homelands. Our Board, management, and frontline teams are deeply embedded within the Alyawarr and Anmatyerr communities we serve and are committed to empowering our people through community-led health initiatives.

The proposed project directly addresses the critical need for culturally appropriate, locally driven tobacco and vaping prevention and cessation activities in our region, where smoking prevalence remains alarmingly high. Our model draws on established community trust, strong governance systems, and a proven track record in preventive health program delivery, particularly with priority groups including youth and pregnant women.

Key strengths of our proposal include:

- **Community Ownership and Co-Design:** Programs are shaped by the voices and leadership of Elders, young people, and families across the Homelands.
- **Culturally Safe, Evidence-Based Approach:** Integrating local knowledge with best-practice prevention strategies.
- **Experienced Aboriginal Workforce:** Delivery by trusted local Aboriginal health workers, educators, and community leaders.
- **Alignment with NRPP Objectives:** Focusing on prevention, priority group engagement, workforce development, and community capacity building.

We are confident that our project will make a meaningful contribution to achieving the goals of the Tackling Indigenous Smoking program and deliver tangible, long-term health and wellbeing outcomes for the Urapuntja Homelands.

Thank you for considering our application. We welcome the opportunity to further discuss our submission and demonstrate UHS's commitment to empowering healthier, smoke-free futures for our young people, families, and communities.

Please do not hesitate to contact me should you require any further information.

Yours sincerely,

(signed)

Melissa Hinson
Chief Executive Officer
Urapuntja Health Service Aboriginal Corporation

Appendix 1 – SR1

SCHEDULE 2 – SUPPLIER DECLARATIONS

The Supplier must complete, sign and scan the declaration set out below and submit the declaration as part of its Quotation. This is a Minimum Content and Format Requirement.

THIS DEED POLL is made on the 1st day of May 2025
by _____

Urapuntja Health
Service Aboriginal
Corporation

ABN: 45449518275

Short form name **Supplier**

1. Declaration

The Supplier declares that this deed is for the benefit of the Commonwealth of Australia as represented by Ninti One Limited.

2. Definitions

In this deed terms have the same meaning as in Request for Quotation for National Reach and Priority Projects (RFQ).

3. Offer and Change of Circumstance

The Supplier offers to supply the Services described in the RFQ on the conditions set out in the RFQ for the price quoted. The Supplier undertakes not to withdraw, vary or otherwise compromise this offer for a period of no less than six months from the Closing Time.

The Supplier undertakes to promptly notify Ninti of any change, after submission of its Quotation, to the basis upon which it will have access to the necessary skills or resources, or corporate or financial backing, to supply the Services.

4. Supplier's Conduct

The Supplier confirms that the quotation submitted in response to the RFQ (**Quotation**):

- does not contain any false or misleading claim or statement; and
- has been compiled without the Supplier:
 - engaged in misleading or deceptive conduct;
 - improperly obtaining Confidential Information;
 - engaging in any collusive bidding, anti-competitive or other unethical, improper or unlawful conduct;
 - violating any applicable laws or Commonwealth policies regarding the offering of inducements;
 - communicating with or soliciting information from any Ninti employee (or contractor) or ex-employee (or ex-contractor) other than the Contact Officer;
 - obtaining improper assistance from any Ninti employee or using Confidential Information improperly obtained;
 - approaching any officer or employee of Ninti other than in the manner set out in the RFQ;

- engaging in, or procuring others to engage in, any activity that would result in a breach of the Lobbying Code of Conduct 2019 published by the Attorney-General's Department; or
- otherwise acting in an unethical or improper manner or contrary to any law.

The Supplier warrants that it has not attempted and will not attempt, through its officers, employees or agents, to influence improperly any officer or employee of Ninti in connection with the assessment of the Quotation.

The Supplier warrants that it has complied with all relevant laws and with Commonwealth policy, in preparing and lodging its Quotation and in taking part in the RFQ process.

5. Conflict of Interest

[Note to Suppliers: Strike through whichever option does not apply]

The Supplier represents and declares that having made all reasonable enquiries, it does not have any known actual, perceived or potential conflicts of interest concerning itself or a related entity in respect of the RFQ, its Quotation or the provision of the Services referred to in the Statement of Requirement other than those specified below.

6. Further representations

The Supplier makes the following further representations to Ninti:

- it is authorised to sell and/or support all products required in the performance of the Services relating to the Quotation;
- it has examined the RFQ, all documents referred to in the RFQ and all other information made available to it and all applicable legislation and policies;
- it has examined all further information which is obtainable by making reasonable enquiries relevant to the risks, contingencies and other circumstances having an effect on its Quotation;
- it has satisfied itself as to the correctness and sufficiency of its Quotation, including quoted prices which are deemed to cover the cost of all matters necessary for the due and proper performance and delivery of the Services described in the Statement of Requirement;
- it has satisfied themselves as to the terms and conditions of the Draft Contract and its ability to comply with the Draft Contract (including by obtaining independent legal advice on the effect of its terms where appropriate), subject to its response at Schedule 4 – Statement of Non-Compliance;
- it has obtained independent advice on the effect of all relevant legislation in relation to the Supplier's participation in the RFQ process;
- it has made its own independent assessments of actual workload requirements under any resultant Contract and all prices will be presumed by Ninti to have been based upon the Supplier's own independent assessments;
- it has relied entirely on its own enquiries and has not relied on any representation, warranty or other conduct by or on behalf of Ninti, except as expressly provided in the RFQ or in notices received by it from Ninti; and
- it has accepted and has fully complied with the provisions of the RFQ.

7. Acknowledgements

The Supplier acknowledges that:

- Ninti may exercise any of its rights set out in this RFQ, at any time;

- the statements, opinions, projections, forecasts or other information contained in this RFQ may change;
- neither the lodgement of the Quotation nor the acceptance of any Quotation nor any agreement made subsequent to this RFQ will imply any representation from or on behalf of Ninti that there has been no material change since the date of this RFQ or since the date as at which any information contained in this RFQ is stated to be applicable;
- to the extent permitted by law, neither Ninti nor its officers, employees or advisers will be liable to any Supplier on the basis of any promissory estoppel, quantum meruit or on any other contractual or restitutionary ground or any rights with a similar legal or equitable basis whatsoever or in negligence as a consequence of any matter or thing relating or incidental to a Supplier's participation in the RFQ process, including instances where:
 - a Supplier is not engaged to undertake the provision of the Services;
 - Ninti decides not to enter into any resulting Contract with any Supplier or at all;
 - Ninti exercises or fails to exercise any of its other rights under or in relation to this RFQ (whether or not Ninti has informed a Supplier of its exercise of the rights);
- a Quotation or any other material or communication relevant to this RFQ is not received in time, is corrupted or altered or otherwise is not received as sent, cannot be read or decrypted, or has its security or integrity compromised, it may be excluded from consideration;
- to the extent permitted by law, Ninti will not be liable or in any way responsible for any failure to inform a potential Supplier of a change relating to the RFQ or any other matter arising by Ninti exercising any of its rights; and
- Ninti will have received the Quotation in reliance on this deed and that Ninti may suffer loss if any of the representations, undertakings, consents or other statements in this Declaration or the Supplier's Quotation are misleading or deceptive.

8. Corporate capacity

The Supplier confirms that:

- it has the capacity to respond to the RFQ;
- there are no restrictions under any relevant law to prevent it from so responding;
- it is financially viable; and
- the Supplier:
 - being a corporation – is not under one of the forms of external administration referred to in Chapter 5 of the *Corporations Act 2001* (Cth) and has not had an order made against it for the purpose of placing it under external administration; or
 - being an individual – is not bankrupt and has not entered into a scheme of arrangement with creditors.

9. Security, probity, and financial checks

The Supplier:

- consents to Ninti performing (and will procure all necessary consents to enable Ninti to perform) such security, probity and financial investigations and procedures as Ninti may determine are necessary in relation to the Supplier, any consortium member, their employees, officers, partners, associates, Subcontractors or related entities; and
- agrees to provide at its cost, all reasonable assistance to Ninti and its nominees in this regard.

10. Terrorism

The Supplier declares neither it, nor any of its personnel or any Subcontractor proposed in its Quotation, are listed as terrorists under section 15 of the *Charter of the United Nations Act 1945* (Cth).

Note: The list is available from the [Attorney-General's Department website](#).

11. Trade sanctions

The Supplier declares neither it, nor any Subcontractor proposed in its Quotation, are named in the consolidated list referred to in Regulation 40 the *Charter of United Nations (Dealing with Assets) Regulations 2008* (Cth).

Note: The list is available from the [Department of Foreign Affairs and Trade website](#).

12. Employee entitlements

The Supplier represents that, having made all reasonable enquiries, there are currently no unsettled judicial decisions against the Supplier (excluding decisions under appeal) relating to employee entitlements for which the Supplier has not satisfied any resulting order.

13. Illegal Workers

The Supplier declares that it does not engage Illegal Workers.

Note: see definition of "Illegal Workers" in the Glossary in Part 5 of this RFQ.

14. Indigenous Procurement Policy

The Supplier declares the following:

The Supplier has or has had ~~Nil~~ contracts with the Commonwealth that included the Indigenous Procurement Policy mandatory minimum requirements.

For the contracts referred to in the para above (if any), the Supplier has:

- ☒ fully met /
- ☒ partially met /
- ☒ not met /
- ☐ not applicable as Nil contracts undertaken,
- ☒ the Indigenous Procurement Policy mandatory minimum requirements.

[Note to Suppliers: Strike out the options that do not apply.]

The Indigenous enterprises referred to in the Indigenous Participation Plan submitted as part of Supplier's Quotation are 50 per cent or more Indigenous owned.

The Supplier is a joint venture that is 25 per cent or more Indigenous-owned.

[Note to Suppliers: Supply Nation maintains a list of enterprises that meet the definition of "Indigenous enterprises". If an enterprise is not listed with Supply Nation refer to section 1.8.1 of the Indigenous Procurement Policy for ways of ensuring an enterprise is an Indigenous enterprise.]

15. Shadow Economy Procurement Connected Policy

The Supplier represents that:

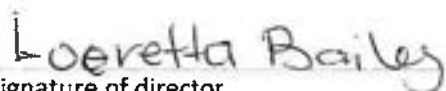
16. Survival

This deed survives the termination or expiry of the RFQ process.

Executed as a deed poll

Signature of a company secretary (delete as applicable)
The following section must be deleted by a supplier that is a company incorporated in Australia.

Signed, sealed and delivered by Urapuntja Health Service Aboriginal Corporation in accordance with Section 99-5 of the *Corporations (Aboriginal and Torres Strait Islander) Act 2006* (Cth) by:


Signature of director

LORETTA BAILEY
Name of director (print)


Signature of director/company secretary
(Please delete as applicable)
EDWARD JONES
Name of director/company secretary
(print)

Appendix 2 – SR2

Schedule 3 – SUPPLIER RESPONSE INFORMATION

Project Name: Smoking Cessation Support for the Urapuntja Homelands
Supplier Name: Urapuntja Health Service Aboriginal Corporation

1. Supplier's Profile

Supplier's contact officers

Suppliers should provide details of their nominated contact officers in the following table:

Supplier's primary contact officer	
Name	Melissa Hinson
Position	CEO
Telephone number	08 8956 9875
Mobile phone number	0439 040 070

Email address	ceo@urapuntja.org.au
Postal address	PMB 31 Utopia, Via, ALICE SPRINGS, NT 0872, AUSTRALIA
Supplier's secondary contact officer	
Name	Yvette Ellis
Position	Clinic Manager
Telephone number	08 8956 9875
Mobile phone number	
Email address	clinicmgr@urapuntja.org.au
Postal address	PMB 31 Utopia, Via, ALICE SPRINGS, NT 0872, AUSTRALIA

Supplier's details

Suppliers should complete all details in the following table:

Supplier's details	
Business or trading name	Urapuntja Health Service Aboriginal Corporation
Full legal name	Urapuntja Health Service Aboriginal Corporation
Entity type (e.g. company, sole trader, incorporated association, statutory authority, partnership, trustee on behalf of a trust, or other (as specified))	Indigenous Corporation -ICN: 2
ABN (if applicable)	45 449 518 275
Is the Supplier registered for GST?	Yes
ACN (if applicable)	
Details of principal place of business / head office (including street address and telephone)	Urapuntja Health Service Aboriginal Corporation Sandover Highway Utopia Via, ALICE SPRINGS, NT 0871
Date and place of incorporation or registration of business (if applicable)	1 February 1979, Utopia Homelands via Alice Spring, NT 0821
Potential Supplier Entity's Country of Tax Residency	Australia
Potential Supplier's Ultimate Parent Entity's Country of Tax Residency	As Above

2. Subcontractor details

Where Suppliers are proposing to use Subcontractors to deliver some of the Services, Suppliers should complete all details in the following table for each nominated Subcontractor.

Subcontractor 1	
Business or trading name	N/A
Full legal name	
Entity type (e.g. company, sole trader, incorporated association, statutory authority, partnership, trustee on behalf of a trust, or other (as specified))	
ABN (if applicable)	
ACN (if applicable)	
Details of principal place of business / head office (including street address and telephone)	
Details of the part(s) of the Services which will be delivered by the Subcontractor	

Subcontractor 2	
Business or trading name	N/A
Full legal name	
Entity type (e.g. company, sole trader, incorporated association, statutory authority, partnership, trustee on behalf of a trust, or other (as specified))	
ABN (if applicable)	
ACN (if applicable)	
Details of principal place of business / head office (including street address and telephone)	
Details of the part(s) of the Services which will be delivered by the Subcontractor	

3. Supplier's insurance

Suppliers should complete all details in the following table. Suppliers should note the insurance requirements in the Draft Contract

General liability insurance	
Name of insurer	CGU
Policy number	10M 8209985
Expiry date	30 June 2025
Amount of current cover	\$20,000,000
Professional indemnity insurance	
Name of insurer	CGU
Policy number	05MAL2047979
Expiry date	30 June 2025
Amount of current cover	\$10,000,000
Workers' compensation insurance	
Name of insurer	QBE Insurance Ltd
Policy number	AD1993996GWC
Expiry date	30 June 2025

Where the Supplier's proposed Personnel are operating as an individual and/or include volunteers, Suppliers should also complete all details in the following table:

Disability income insurance	
Name of insurer	N/A
Policy number	
Expiry date	
Amount of current cover	
Voluntary workers' insurance	
Name of insurer	N/A
Policy number	
Expiry date	
Amount of current cover	

4. Supplier's Financial Viability

- a. The Supplier should provide a summary of their financial viability.
- b. The following documents are requested:

Financial Statements (last Audited financial statements)

- Balance sheet
- Income statement
- Cash flow statement
- Financial Ratios (if available)
- Management accounts (YTD)

Tax and Compliance Documents:

- Statement of tax record

Liabilities:

- List of outstanding debts or loans
- Insolvency/Bankruptcy actions

- c. Ninti may also request further information and undertake its own independent enquiries and assessment in relation to the Supplier's financial viability.

5. Actions or Investigations

- a. The Supplier should provide particulars of any petition, claim, action, judgement or decision that is likely to adversely affect its capacity to provide the Services.
- b. Suppliers should provide details of whether or not they are aware that they are under investigation, or the subject of court proceedings, in relation to a possible or actual breach of any relevant legislation, and if applicable, provide details of the same.

Response

- a. Urupuntja Health Service Aboriginal Corporation is not aware of any petition, claim, action, judgment, or decision that is likely to adversely affect its capacity to provide the services.
- b. Urupuntja Health Service Aboriginal Corporation is not currently under investigation, nor is it the subject of any court proceedings in relation to a breach of relevant legislation.

6. Referees

- a. Suppliers should provide details of at least two referees which can be contacted regarding work undertaken by the proposed personnel. References will be evaluated based on relevance of work completed as well as comments from the referee contacts.
- b. A Supplier may provide contacts within Ninti as referees. However, where a Ninti contact is involved in evaluating Quotations or advising the Quotation evaluation team, they will be unable to provide a reference, in which case Ninti may ask the Supplier to provide details of an alternate referee.
- c. Without limiting paragraph 11(b), Ninti reserves the right to contact persons other than those provided as referees by Suppliers.

Response

1. Northern Territory Primary Health Network (NT PHN)

Name: Mariah Torres

Position: Relationship Lead Barkly

Organisation: NT PHN

Email/Phone: mariah.torres@ntphn.org.au

Relevance: Partnered with Urapuntja Health Service on community health promotions

2. AMSANT (Aboriginal Medical Services Alliance NT)

Name: Ngarla Kunoth-Monks

Position: SEWB Facilitator

Organisation: AMSANT

Email: ngarla.kunoth-monks@amsant.org.au

Relevance: Collaborated with SEWB programs

Appendix 3 – SR3

Schedule 3 – SUPPLIER RESPONSE INFORMATION

SR3 HAS A PAGE LIMIT OF 15 PAGES IN TOTAL

Highlighted text can be deleted prior to submission.

Project Name: Urapuntja Homelands Smoking Cessation Project
Supplier Name: Urapuntja Health Service Aboriginal Corporation

7. The Supplier's proposed approach and methodology

Suppliers should provide the following information:

- a. provide a **one A4 page summary** of the proposed project including approach, target population and intended outcomes;
plus,
- b. provide a description of the proposed project(s) including a detailed approach and methodology and how they intend to fulfill the requirements as outlined in Schedule 1;
- c. how the proposed project will benefit the TIS program;
- d. how the Services will be managed and controlled by the Supplier;
- e. details of how the performance standards for the Services will be maintained, monitored and reported to Ninti;
- f. how the Supplier will respond to requests from Ninti for performance related information; and
- g. whether the Supplier can meet the Service requirements as set out in the Statement of Requirement in Schedule 1.
- h. risk assessment
 1. the key issues and risks the Supplier considers are relevant to the provision of the Services;
 2. the Supplier's suggested approach to managing or mitigating the issue and risk;
 3. the Supplier's role in the suggested approach; and
 4. the Supplier's risk management systems currently in place or proposed.

7a – Summary of the Urapuntja Homelands Smoking Cessation Project

This project, scheduled to run from 1 September 2025 to 31 May 2027, will address critically high smoking rates – estimated at 50% - among Alyawarre and Anmatyerre peoples living in the very remote Urapuntja Homelands of north-east Central Australia. The region is designated as a high-priority IREG for Tackling Indigenous Smoking (TIS) initiatives, based on its elevated tobacco exposure, extreme remoteness, and socioeconomic disadvantage. Tobacco use remains a leading preventable cause of poor health outcomes and premature mortality across the community.

The project will embed culturally appropriate smoking prevention and cessation programs and support into existing health outreach services. It will also empower community leadership and members to deliver targeted workshops, education, and awareness campaigns across the Urapuntja Homelands.

While initiatives will be available to and support all community members, the project specifically targets:

- First Nations youth, to prevent smoking/vaping initiation through co-designed and peer-led education and awareness programs
- Pregnant women and women of childbearing age, to protect maternal and child health, through peer-led education programs and family-focused workshops.

Project Approach:

- **Co-design with community:** Engage young people, Elders, local mothers and health workers to ensure all project activities reflect local knowledge, culture, and language.
- **Culturally safe delivery:** Integrate traditional practices, yarning circles, and community values across programs, media, and support activities.
- **Targeted education:** Deliver age- and audience-specific smoking and vaping education in schools, clinics, homes, and community spaces.
- **Multimedia engagement:** Produce and share visual campaigns (e.g. TikTok, animated clips, signage, short films) in Alyawarr and Anmatyerr to increase reach.
- **Community leadership:** Train and support peer champions, youth ambassadors, and role models to lead smoke-free advocacy and education.
- **Policy and environment change:** Create and promote voluntary smoke-free zones at public gathering places to shift social norms.
- **Family-focused support:** Empower pregnant women, their partners, and extended families with practical smoke-free home strategies and resources.
- **Frontline capacity building:** Equip SEWB and clinic teams with culturally tailored digital tools for brief interventions and client support.

Intended Outcomes:

- Reduced prevalence and uptake of smoking/vaping among young people
- Improved knowledge and confidence among pregnant women and families to create smoke-free homes and support healthy pregnancies.
- Greater involvement of families and Elders in supporting youth and pregnant women to reduce exposure to smoking and vaping.
- Greater visibility and normalisation of smoke-free messaging across the Homelands
- Increased community ownership of smoke-free environments, including voluntary smoke-free zones at clinics, ovals, and shared spaces.
- Strengthened local workforce capacity to deliver smoke-free interventions.
- Improved access to culturally appropriate tools and resources for frontline staff to provide interventions and health promotion.

This project aligns with the National Reach and Priority Projects (NRPP) by supporting priority groups in very remote areas, embedding culturally appropriate care into local systems, and building long-term community capacity to tackle tobacco use and vaping.

7.b - Description of the proposed project(s) including a detailed approach and methodology and how they intend to fulfill the requirements as outlined in Schedule 1

The *Urapuntja Homelands Smoking Cessation Project* is a two-year, community-led preventive health initiative aimed at addressing critically high rates of smoking and vaping among Alyawarr and Anmatyerr peoples living in the Urapuntja Homelands. Smoking remains a leading cause of preventable illness and mortality in the region, with an estimated prevalence of around 50%—far exceeding national averages. Local health data and anecdotal reports suggest rates may be even higher among certain groups, including young men and women of childbearing age.

While Indigenous smoking rates have dropped to 29% nationally, in very remote areas, smoking rates remain significantly higher – often at 45-50% plus. Further, while adult smoking rates are declining in many parts of the world, the rapid rise in e-cigarette use among young people has emerged as a significant public health concern. In Australia, 10.1% of people aged 14–17 have used e-cigarettes, with rates higher among Aboriginal and Torres Strait Islander youth—estimated nationally at 22%. These trends underscore the urgency of culturally appropriate, targeted prevention strategies.

This project is embedded within and complementary to Urapuntja Health Service’s existing primary health care outreach services. It comprises five interrelated initiatives targeting Aboriginal youth, pregnant women, and families through culturally grounded education, visual media campaigns, community policy change, and local workforce development. Each initiative will be delivered in local languages, on Country, and through trusted relationships, ensuring cultural safety and relevance.

The project adopts a clear preventive population health approach and is designed to complement—not duplicate—existing Tackling Indigenous Smoking (TIS) efforts in the region. While Central Australian Aboriginal Congress currently delivers a TIS program, its reach and scope in the Urapuntja Homelands is limited. This project therefore plays a vital role in filling the gap and extending smoking/vaping cessation support initiatives in the Homelands.

Although enhancing support and education for all Homelands residents, the project will prioritise two key population groups identified in the NRPP framework: Aboriginal youth (ages 10–24) and pregnant women (including women of childbearing age). These groups are particularly vulnerable to the harms of smoking and vaping and will be engaged through age-appropriate, culturally grounded channels.

Each initiative under the project is designed to directly align with NRPP objectives: reducing the uptake of smoking and vaping, expanding the reach of culturally safe messaging, targeting high-priority populations, and embedding long-term prevention strategies within local health and community systems.

1. Youth Anti-Vaping and Smoking Education Program

This initiative aims to prevent the uptake of smoking and vaping among young people aged 10–24 living in the Urapuntja Homelands. Acknowledging the additional and complex challenges Aboriginal youth face—including exposure to tobacco marketing, peer pressure, and limited access to culturally safe health education—the initiative adopts a community-led, strengths-based approach to reduce risk and support healthy choices. Through creative and culturally relevant tools and support, the initiative will promote positive behaviours, shift attitudes toward tobacco and vaping, and empower young people to lead their peers in building a smoke-free future.

Approach and Methodology:

- Co-design of education content and campaign materials with youth, Elders, and local health staff, using yarning circles and art workshops to ensure local relevance.
- Delivery of the program in schools, youth centres, sports days, and community gatherings.
- Peer-led storytelling and short film production to share youth perspectives on smoke-free living.
- Social media campaigns in local languages, using TikTok, Instagram Reels, and WhatsApp to engage youth audiences with short, targeted shareable health messages.
- Interactive workshops that blend traditional culture with modern expression—including dance, music, digital media, and visual arts.

Expected Outcomes:

- Reduced prevalence and uptake of tobacco and vaping among Aboriginal youth.
- Increased youth leadership in health promotion.
- Greater community awareness of youth-focused smoke-free messaging.

"Culturally tailored youth programs are identified as effective interventions in remote Aboriginal communities." - Australian National University (2021). Evaluation of Indigenous Youth Health and Wellbeing Programs in Remote Communities. Canberra: ANU Centre for Aboriginal Economic Policy Research.

2. Smoke-Free Families & Pregnancy Support

This initiative supports pregnant women, mothers, and families in the Urapuntja Homelands to create smoke-free homes and reduce tobacco use during pregnancy. It responds to high smoking prevalence among women of childbearing age and the need for family-inclusive, culturally safe strategies.

Approach and Methodology:

- Group antenatal education sessions incorporating local cultural practices, storytelling, and hands-on activities.
- Development and distribution of family resource kits with visual guides, reminder tools (e.g., fridge magnets, storybooks), and quit-smoking aids.
- Peer support champion model involving local mothers trained to walk alongside other women on smoke-free journeys.
- Collaboration with clinic midwives, SEWB teams, and Aboriginal Health Practitioners to integrate messaging into regular care.
- Whole-of-family yarning circles to address second-hand smoke and empower family units to support smoke-free pregnancies.

Expected Outcomes:

- Reduction in smoking rates among pregnant women.
- Increased confidence and capacity among families to support smoke-free homes.
- Improved antenatal engagement with health messaging.

Family-centred approaches have been shown to be effective in smoking cessation for Indigenous women." - Lowitja Institute (2019). Effective Approaches to Tobacco Reduction for Aboriginal and Torres Strait Islander Women. Melbourne: The Lowitja Institute.

3. "Clear Skies" Smoke-Free Messaging Campaign

This campaign will expand the visibility of smoke-free messaging across the Utopia homelands through a multilingual, locally co-designed public health campaign.

Approach and Methodology:

- Development of campaign identity and slogans through art competitions, youth workshops, and Elder consultations.
- Production of short films, voiceovers, and animations in Alyawarre and Anmatyerr, tailored for social media, clinic TVs, and outdoor screenings.
- Installation of culturally relevant signage and murals at community stores, clinics, airstrips, and meeting places.
- Print materials (posters, stickers, brochures) distributed in mail runs, health outreach, and at events.
- Messaging integrated into seasonal events, health promotion stalls, and sports competitions.

Expected Outcomes:

- Increased exposure to smoke-free and vape-free messaging across the Homelands.
- Greater cultural relevance and resonance of health messages.
- Normalisation of smoke-free values across all age groups.

"Culturally relevant campaigns using local languages and media improve awareness and reduce smoking uptake." - Urbis (2018). *Final Evaluation of the Tackling Indigenous Smoking Program: Final Report*. Prepared for the Australian Government Department of Health.

4. Community Smoke-Free Spaces Initiative

This initiative supports the establishment of voluntary smoke- and vape-free zones in community-identified locations such as clinics, ovals, stores, and shaded sitting areas.

Approach and Methodology:

- Initial consultations with each Homeland community to discuss desired smoke-free spaces.
- Design and installation of culturally appropriate signage co-developed with local artists and language workers.
- Launch events featuring Elders, young leaders, and health staff to celebrate the creation of the zones.
- Ongoing education stalls, storyboards, and role-model engagement to reinforce smoke-free values.
- Monitoring through informal feedback and periodic community surveys to assess acceptance and impact.

Expected Outcomes:

- Creation of healthier environments across public and communal spaces.
- Strengthened community leadership in tobacco control.
- Reinforced social norms around smoke-free living.

"Community-driven policy change is linked with positive public health outcomes, particularly when led by respected community members." - Department of Health (2017). *Tobacco Control and Healthy Settings: Community Approaches to Reducing Tobacco Use*. Canberra: Australian Government.

"Creating smoke-free zones reinforces environmental and social cues for healthy behaviour." - Australian National University (2021) - *Evaluation of Indigenous Youth Health and Wellbeing Programs in Remote Communities*. Canberra: ANU Centre for Aboriginal Economic Policy Research.

5. Digital Toolkit for Remote SEWB Workers

This component supports frontline SEWB and clinic teams with accessible, culturally safe digital tools to deliver brief interventions on smoking and vaping during outreach and consultations.

Approach and Methodology:

- Development of digital resource library, including:
 - Animated videos and myth-busting clips
 - Local language audio stories and explainer voiceovers
 - Printable conversation scripts and flipcharts
 - Communicare-compatible referral and note templates
- Training sessions for staff in toolkit use during client interactions.
- Distribution via pre-loaded USBs, tablets, and secure cloud sharing to accommodate limited connectivity.
- Ongoing updates to the toolkit based on staff feedback and community input.

Expected Outcomes:

- Enhanced confidence and capacity of staff to support smoke-free behaviour change.
- Consistent, culturally safe messaging across clinics and homelands.
- Better access to quitting support tools in remote settings.

"Digital resources tailored to Indigenous contexts enhance health communication and brief intervention outcomes in remote communities" - Australian Institute of Health and Welfare (2023). Digital Health and Indigenous Communities: Enhancing Access and Communication. Canberra: AIHW.

All project activities will be tracked through a simple but robust monitoring and evaluation framework. Data collection will include participation numbers, engagement levels, quit attempts (where disclosed), and campaign reach. Qualitative feedback will also be gathered through yarning circles and community reflections to inform ongoing adaptation. Progress will be reported quarterly to Ninti in line with milestone requirements, and a final closure report will be submitted at the conclusion of the project. Urapuntja Health Services will also facilitate a site visit within the first 12 months, as required under the NRPP agreement.

This project falls under NRPP Category 1, with estimated cost of \$516,000 (excluding GST) and is scheduled to be completed by May 2027. It is fully aligned with NRPP funding streams, contributing to increased exposure to smoke-free messaging, the promotion of smoke-free behaviours among priority populations, and the development of Indigenous-led preventive health initiatives. It also avoids all ineligible activities as defined in the RFQ, including the delivery of clinical cessation services and provision of NRT.

References:

- **AIHW, 2022** – Australian Institute of Health and Welfare. *Australia's Mothers and Babies 2020: In Brief*. Canberra: AIHW.
- **AIHW, 2023** – Australian Institute of Health and Welfare. *Digital Health and Indigenous Communities: Enhancing Access and Communication*. Canberra: AIHW.
- **ANU, 2021** – Australian National University. *Evaluation of Indigenous Youth Health and Wellbeing Programs in Remote Communities*. Canberra: ANU Centre for Aboriginal Economic Policy Research.
- **Department of Health, 2017** – Department of Health. *Tobacco Control and Healthy Settings: Community Approaches to Reducing Tobacco Use*. Canberra: Australian Government.
- **Lowitja Institute, 2019** – Lowitja Institute. *Effective Approaches to Tobacco Reduction for Aboriginal and Torres Strait Islander Women*. Melbourne: Lowitja Institute.
- **RACGP, 2020** – Royal Australian College of General Practitioners. *Supporting Smoking Cessation: A Guide for Health Professionals*. East Melbourne: RACGP.
- **Urbis, 2018** – Urbis. *Final Evaluation of the Tackling Indigenous Smoking Program: Final Report*. Prepared for the Australian Government Department of Health.

7.c - How the proposed project will benefit the TIS program

The Urapuntja Homelands Smoking Cessation Project will strengthen and extend the impact of the Tackling Indigenous Smoking (TIS) program's national objectives by reaching high-priority populations in a region with persistently high tobacco use and limited existing support and services. The project has been carefully designed to complement, rather than duplicate, existing TIS efforts in Central Australia and will address critical service and engagement gaps in the very remote Urapuntja Homelands.

Urapuntja Health Service Aboriginal Corporation (UHS) is a trusted Aboriginal Community Controlled Health Organisation that is uniquely positioned to deliver this project through its long-standing community relationships, cultural authority, and embedded outreach services. While the Central Australian Aboriginal Congress currently delivers TIS services in Alice Springs and surrounding areas, their reach into the Urapuntja Homelands remains limited due to distance, service footprint, and resourcing constraints. UHS is therefore best placed to lead this work in its own region, with strong governance, local capacity, and culturally safe delivery systems already in place.

The project aligns directly with the four NRPP priority areas and will amplify the objectives of the national TIS program by:

- Extending culturally grounded smoking and vaping prevention education and services to very remote Aboriginal communities, particularly targeting youth and pregnant women, as prioritised by the NRPP framework.
- Delivering age-appropriate, and culturally relevant campaigns and workshops that reflect local knowledge, values, and utilise local languages communication styles.
- Engaging local Aboriginal workforce and community members/partners to lead messaging and facilitate behaviour change, contributing to TIS workforce development goals.
- Promoting voluntary smoke-free zones and household pledges, thereby embedding smoke-free norms into daily life and aligning with TIS goals of reducing environmental tobacco smoke exposure.
- Providing interventions and culturally tailored cessation support resources to frontline UHS health and SEWB workers, improving the local system's ability to engage clients in prevention and quit support.

Through collaboration with NT Health, the Central Australian Aboriginal Congress, and regional partners, UHS will ensure that messaging and referral pathways are consistent with national TIS program frameworks and support system-wide tobacco control efforts.

Importantly, this project will generate community-informed insights, stories, and evaluation data that can inform broader TIS program learning. It provides an opportunity to model scalable, community-led approaches to smoking and vaping prevention in remote Aboriginal contexts. In doing so, it will contribute to the TIS program's broader aim of reducing tobacco-related harm and promoting health equity for First Nations peoples.

7.d - How the Services will be managed and controlled by the Supplier (Urapuntja Health Services Aboriginal Corporation)

The Urapuntja Homelands Smoking Cessation Project will be fully managed and controlled by Urapuntja Health Service Aboriginal Corporation (UHS), a trusted Aboriginal Community Controlled Health Organisation with over four decades of experience delivering primary health care and population health programs across the Urapuntja Homelands. UHS has established governance frameworks, culturally embedded community relationships, and demonstrated capacity in delivering complex, multi-stream health initiatives in very remote communities/contexts.

The project will be overseen by the UHS CEO and Health Services Manager, with operational delivery coordinated by UHS's Indigenous-led Social and Emotional Wellbeing (SEWB) team. This team has strong on-the-ground knowledge of the Homelands and will ensure the initiative integrates with existing outreach, health promotion, and clinical schedules and programs.

The SEWB project coordination team will be responsible for activity planning, scheduling, staff coordination, community engagements, internal reporting, and data management. They will also collaborate closely with the UHS finance team to ensure timely procurement, milestone delivery, and financial accountability under the NRPP funding agreement.

Project delivery, including workshops and campaign roll-out, will be led by Aboriginal UHS staff and community leaders and partners. These workers will receive training through accredited platforms such as the Quit Centre and iSISTAQUIT and will be supported by UHS's SEWB team through mentoring, supervision, and skills development.

Strategic oversight and risk management will be provided through UHS's Board and executive CEO/leadership team. Progress on project implementation will be reported and reviewed monthly through the existing Board meeting schedule to ensure accountability and responsiveness. UHS has a strong compliance record under numerous Commonwealth and Northern Territory-funded programs and currently meets all mandatory standards for clinical governance, community engagement, and financial reporting.

Partnerships with NT Health, Central Australian Aboriginal Congress (TIS provider), and other regional stakeholders will be maintained to ensure clinical alignment, referral pathways, and coordination of messaging. UHS will ensure that all activities complement rather than duplicate existing TIS services in the region.

All NRPP deliverables—including quarterly progress reports, Indigenous employment and engagement reports, Ninti site visits, and the final closure report—will be delivered through UHS's existing grant reporting systems and processes. The project will be governed by clear internal processes and will reflect UHS's longstanding commitment to culturally safe, community-driven health service delivery in the Utopia Homelands.

7.e - Details of how the performance standards for the Services will be maintained, monitored and reported to Ninti

Urapuntja Health Service Aboriginal Corporation (UHS) will ensure high-quality, culturally safe delivery of all services under the Urapuntja Homelands Smoking Cessation Project through strong governance, ongoing monitoring, and a robust reporting framework. The project will operate within UHS's established service delivery model, which has demonstrated success across numerous Commonwealth and Northern Territory-funded programs in the Urapuntja Homelands.

Management & Oversight

- Project oversight will be provided by the UHS CEO and Health Services Manager.
- Day-to-day project coordination will be led by the Aboriginal SEWB team.
- Monthly progress updates will be provided to the UHS Board, ensuring community leadership engagement and oversight.
- Ongoing cultural integrity will be ensured through compliance with local protocols and guidance from Elders.

Performance Monitoring

UHS will implement a fit-for-purpose monitoring and evaluation framework incorporating both qualitative and quantitative measures:

- Number of individual and group-based smoking cessation sessions (e.g. Yarning Circles)
- Participation levels across target populations (youth and pregnant women)
- Reach and visibility of media and campaign materials (e.g. social media impressions, poster distribution)
- Number of smoke-free home pledges and referrals to NT Quitline and health services
- Project participation logs, including session attendance and workforce engagement
- Regular yarning circles and community feedback sessions to assess community impact

Reporting to Ninti

UHS will meet all reporting requirements as set out in the RFQ and Head Contract:

- Submission of an initial project plan detailing aims, methodology, milestones, and risk mitigation strategies
- Quarterly progress reports on the provided template, including:
 - Activities and implementation updates
 - Outcomes against key indicators
 - Indigenous engagement activities
- Submission of participant stories, case studies, and updates as requested
- Facilitation of a site visit by Ninti within the first 12 months
- Provision of verbal updates as required
- Delivery of a final closure report summarising achievements, challenges, Indigenous employment outcomes, and lessons learned

Alignment with NRPP and TIS Standards

The project will align with the TIS program quality framework. Training for staff will include:

- Quit Centre's online cessation training
- iSISTAQUIT program modules
- Additional culturally appropriate training resources

Systems & Capability

All data collection and reporting will be managed by the Indigenous SEWB team with support from UHS's finance and quality assurance staff. UHS's extensive experience with government contracts ensures the necessary systems are in place to uphold high performance standards and meet all reporting and compliance obligations. This comprehensive approach ensures transparency, accountability, and alignment with the objectives of the Tackling Indigenous Smoking program and Ninti's contractual expectations.

7.f - How the Supplier (Urapuntja Health Services Aboriginal Corporation) will respond to requests from Ninti for performance related information

Urapuntja Health Service Aboriginal Corporation (UHS) is committed to transparent, timely, and accountable communication with Ninti in relation to all performance-related obligations under the NRPP funding agreement. As a long-standing Aboriginal Community Controlled Health Organisation with robust governance systems and a proven record of contract compliance, UHS is well placed to meet all performance information requests efficiently and to a high standard.

All project performance enquiries will be coordinated by the SEWB Project Coordination team, which will serve as the primary liaison with Ninti. This team is responsible for managing day-to-day delivery of the *Urapuntja Homelands Smoking Cessation Project*, tracking milestones, collecting data, and maintaining comprehensive records on participation, activities, and outcomes. The team will be supported by UHS's finance team for all budgetary and financial reporting.

UHS will respond promptly to any verbal or written requests from Ninti, in line with timeframes outlined in the funding agreement. The organisation has extensive experience meeting formal milestone schedules and responding to ad hoc information requests under several previous Commonwealth and NT Government-funded programs.

Performance-related information will be drawn from UHS's fit-for-purpose digital and paper-based systems, which include:

- Participation and attendance logs
- Quarterly milestone tracking reports
- Community outreach schedules
- Qualitative data (e.g., case studies, feedback summaries, and community stories)
- Financial tracking and expenditure reports
- Outcome monitoring and evaluation summaries

All reporting will be submitted in Ninti's preferred format or template and reviewed internally by the SEWB Coordinator and UHS CEO to ensure clarity, quality, and alignment with NRPP expectations. UHS will also support a site visit from Ninti staff within the first 12 months of implementation and welcomes opportunities for ongoing verbal or consultative updates.

This responsive and cooperative approach ensures that project outcomes remain aligned with NRPP goals and that any challenges can be addressed collaboratively and efficiently. UHS's commitment to transparency, accountability, and cultural integrity will underpin all aspects of performance reporting throughout the project lifecycle.

7.g - Whether the Supplier can meet the Service requirements as set out in the Statement of Requirement in Schedule 1

Urapuntja Health Service Aboriginal Corporation (UHS) can meet the Service Requirements set out in Schedule 1 of the RFQ. With over 40 years of experience providing culturally responsive health care across the Urapuntja Homelands, UHS has the operational readiness, community authority, and technical capacity to deliver each aspect of the Tackling Indigenous Smoking – National Reach and Priority Projects (NRPP) effectively and in alignment with national objectives. This capability is underpinned by UHS’s embedded service delivery model, and established governance structures extensive experience in managing Australian and Northern Territory government funded programs.

The *Urapuntja Homelands Smoking Cessation Project* has been specifically designed to address the four NRPP priority areas outlined in Schedule 1:

1. **Expanding TIS Reach:** The project will extend the reach of smoke- and vape-free messaging across very remote Aboriginal communities that are not currently well-served by existing TIS providers. The project will address a known service gap by delivering preventive smoking and vaping awareness activities across the Urapuntja Homelands, where smoking rates remain high and existing TIS services are limited. UHS’s approach will ensure that priority groups – especially youth and pregnant women – are reached through trusted, culturally appropriate channels that resonate with local ways of knowing, communicating, and learning.
2. **Preventive Population Health Activities:** The project promotes healthy, smoke-free behaviours through community-led campaigns, peer education, and the establishment of voluntary smoke-free spaces. The project will embed smoke-free norms within families, public areas, and service settings—contributing to a broader preventative health environment in the Homelands.
3. **Targeted Support for Priority Groups:** The project specifically prioritises Aboriginal youth (10–24 years) and pregnant women/women of childbearing age—groups identified as high-risk and under-engaged in standard smoking cessation interventions. It will use age-appropriate, language-based, and culturally safe methods to connect with these populations through trusted relationships and local peer and Elder support.
4. **Culturally Appropriate and Community-Led Delivery:** All project initiatives are co-designed with young people, Elders, and local stakeholders to ensure cultural safety and relevance. Content will be delivered in Alyawarr and Anmatyerr, using storytelling, digital media, and visual art forms grounded in local knowledge systems.

UHS will fully meet the administrative and reporting requirements set out in the Statement of Requirement. This includes submission of a detailed project plan, quarterly progress and engagement reports, timely responses to Ninti information requests, site visit coordination, and a final closure report. UHS currently maintains the systems required to track milestones, capture both qualitative and quantitative data, and report consistently to funding bodies.

UHS’s model of culturally grounded, community-controlled service delivery is directly aligned with the objectives of the NRPP. Through this project, UHS will deliver measurable reductions in tobacco and vaping uptake, increased awareness of smoke-free living, and strengthened local capacity to sustain long-term health improvements in the Urapuntja Homelands.

7.h - Risk assessment

1. the key issues and risks the Supplier considers are relevant to the provision of the Services.
2. the Supplier's suggested approach to managing or mitigating the issue and risk;
3. the Supplier's role in the suggested approach; and
4. the Supplier's risk management systems currently in place or proposed.

Urapuntja Health Service Aboriginal Corporation (UHS) takes a proactive and systematic approach to risk identification, management, and mitigation across all of its service delivery areas. With over 40 years of experience in delivering services in very remote Aboriginal communities, UHS has established policies, governance systems, and operational safeguards that ensure responsiveness to risk across service, workforce, cultural, and compliance domains.

The table below outlines key risks associated with the *Urapuntja Homelands Smoking Cessation Project* and UHS's approach to managing them:

Risk Area	Potential Issues	Mitigation	UHS Role
Community Engagement & Participation	Limited uptake by youth or pregnant women due to mistrust, lack of awareness, poor design, or cultural barriers	- Co-design with Elders and youth to ensure effectiveness - Use of Aboriginal health workers and peer champions - Culturally relevant delivery in language	Deliver activities through trusted local staff and ensuring cultural safety, and age-appropriate delivery methods in all engagement settings
Workforce Availability	Difficulty recruiting or retaining local Aboriginal staff for delivery	- Employ locally - Offer accredited and relevant training and mentoring - Flexibility in roles and scheduling- Experienced staff/manager to provide ongoing support and mentoring to new staff	Recruit and support local Aboriginal workers, provide supervision, training and development
Remote Service Delivery	Transport, weather, or infrastructure disruptions	- Use flexible delivery models (mobile clinics, video support) - Schedule around seasonal barriers	Coordinate logistics and outreach planning via UHS's established Homeland service networks
Coordination with Existing TIS Services	Risk of overlap or confusion with existing regional TIS activities	- Regular engagement with CAAC and NT Health - Complementary messaging and shared communication tools	Maintain communication and ensure alignment of content and messaging
Reporting & Compliance	Risk of delays or inconsistencies in data and reporting	- Internal milestone tracking system - SEWB-led data collection and finance oversight	Ensure timely, accurate submission of all NRPP reports, including case studies, outcomes, and financial reports

UHS Risk Management Systems in Place

Urapuntja Health Service (UHS) maintains a well-developed risk management system which is embedded across all its service areas. This includes project-specific risk registers, regular internal review processes, and a formal reporting structure overseen by the UHS CEO and Board. Risks will be actively monitored by the SEWB project coordination team and reviewed through monthly management meetings and quarterly reporting cycles. Financial controls, insurance coverage, compliance policies, and cultural safety frameworks are already in place and will be applied to this project.

UHS will manage all risks through proactive planning, community leadership, cross-program coordination, and embedded systems for oversight and reporting. The organisation's existing capacity, deep local knowledge, and flexible operating model ensure that risks are not only identified and mitigated early but are also managed in a way that reflects the realities of remote service delivery.

8. The personnel (including their availability) and other resources offered by the Supplier

Suppliers should clearly describe the resources to be allocated for the delivery of the Services. This is to include but not limited to: their organisational capacity to deliver the Services; and details of their approach and methodology for resourcing in terms of personnel, equipment, tools, approaches, models and facilities.

The Supplier should, in the table below, provide details of the personnel who will be used for the supply of the Services.

Name and position of management and/or project administration Personnel	Role in the provision of the Services	Experience / qualifications	Availability / FTE
Mel Hinson – UHS CEO	Project oversight, governance, high-level reporting to Ninti	10+ years executive leadership in ACCHOs, governance, health project/program oversight	0.1 FTE
Yvette Ellis – UHS Health Services Manager	Operational lead, workforce coordination, stakeholder liaison	RN, experience managing remote workforce and health projects	0.2 FTE
Rachel Chatfield – SEWB Coordinator Lead	Lead project coordinator and liaison with Ninti	5+ years in Indigenous SEWB and TIS programs, Cert IV AOD & Mental Health	0.5 FTE
TBC – Aboriginal Health Promotion Worker 1	Peer support, co-facilitator for school and youth engagement workshops	Local community member, TIS-trained, fluent in Alyawarre, to complete iSISTAQUIT	0.4 FTE
TBC – Aboriginal Health Promotion Worker 2	Antenatal education support, yarning circles, women's outreach	Bilingual, respected community member, to complete SEWB mentoring and iSISTAQUIT training	0.4 FTE
Aboriginal consultants, artists and Elders engaged	Design of smoke-free signage, slogans, visual resources for multilingual campaign	Local artists with mural/signage experience, supported by Cultural Reference Group	Ad hoc/casual

UHS Board/Cultural Reference Group	Provide cultural governance, review materials, guide community priorities	Comprises Elders and community reps from across Urapuntja Homelands	As required
Health Promotion and Peer Education (3 positions)	Co-facilitators for TikTok/youth messaging, workshop support, youth-to-youth dialogue	Recruited and mentored through project training in health promotion and peer communication	0.1 FTE each (training + outreach)

Urapuntja Health Service Aboriginal Corporation (UHS) has the workforce, infrastructure, systems and experience necessary to deliver the Urapuntja Homelands Smoking Cessation Project in full alignment with the NRPP Service Requirements.

The project will be delivered by a team of Indigenous and community-based staff, coordinated through UHS's Social and Emotional Wellbeing (SEWB) team and supported by the organisation's governance and operational structure. All personnel listed below will be either drawn from current staff or recruited locally and trained at project commencement. The delivery model is designed to embed activities into UHS's existing services program and ensure continuity, trust, and cultural safety throughout.

Local community member, TIS-trained, fluent in Alyawarre, to complete iSISTAQUIT
UHS is confident that the personnel and resources proposed are adequate, available, and well-suited to achieve the objectives and reporting requirements of the NRPP initiative.

9. The capability, experience and expertise of the Supplier and its key personnel in delivering services that are similar to the proposed Services

Suppliers should provide details of their capability, experience and expertise (and that of their key personnel) in delivering services that are similar to the proposed Services. In particular, please describe how this capability, experience and expertise will benefit the TIS program.

Where references to previous work is included, Suppliers should include:

- the organisation(s) for whom the services were undertaken, including contact details;
- the nature of the project and the outcome achieved by the Supplier and its key personnel in delivering services;
- the period over which the work was undertaken; and
- the value of the work undertaken.

Urapuntja Health Service Aboriginal Corporation (UHS) is a long-established Aboriginal Community Controlled Health Organisation (ACCHO) delivering comprehensive primary health care to the Alyawarre and Anmatyerre peoples of the Urapuntja Homelands in very remote Central Australia. UHS has a strong track record of designing and delivering culturally grounded health promotion and social and emotional wellbeing (SEWB) initiatives in collaboration with community members, Elders, and regional partners. UHS has prior experience coordinating anti-smoking and SEWB outreach campaigns, integrating traditional knowledge with clinical frameworks.

1: Utopia SEWB Yarning Circle Series

Client: AMSANT

Contact: Available upon request

Nature of Work: Facilitated SEWB-focused yarning circles with men's and women's groups in Utopia. Included discussion of smoking, stress, and intergenerational trauma.

Outcomes: Improved community awareness of SEWB and smoking linkages. Increased referrals to clinical services and Quitline.

Timeframe: November 2023 – December 2024

Project Value: In-kind collaboration (non-funded)

2: TIS Awareness Campaign (Pilot)

Client: Central Australian Aboriginal Congress (Congress) – informal partnership

Contact: Catherine Satour

Nature of Work: Supported Congress TIS team through informal client education during clinic visits. Promoted tobacco cessation resources and assisted in distributing TIS materials, contributing to broader outreach efforts in Utopia.

Outcomes: Increased visibility of TIS messaging in clinic settings

Strengthened continuity between primary care and community health promotion

Positive anecdotal feedback from clients who reported increased awareness of support options to quit smoking/vaping

Timeframe: July 2023 – June 2024

Project Value: Approx. \$30,000

10. Other information

Community-Controlled Governance: Urapuntja Health Service is led by a local Aboriginal Board, ensuring cultural safety, accountability, and community ownership of all health promotion activities.

Support for Indigenous Workforce Development: The project will employ and build the skills of local Aboriginal Health Promotion Workers, peer educators, and artists. Staff will receive targeted training via iSISTAQUIT, Quit Centre, and SEWB mentoring pathways.

Value for Money and Co-Investment: UHS will leverage existing clinic infrastructure, trusted community networks, and in-kind support to maximise efficiency and minimise duplication of services.

Culturally Safe Delivery: Activities and resources will be co-designed with community members and delivered in local languages (Alyawarre and Anmatyerre), supported by interpreters and visual storytelling methods.

Track Record of Collaboration: UHS has a strong history of partnership with organisations including Congress, AMSANT, NT Health, and regional schools — ensuring coordinated, high-impact project delivery.

Appendix 4 – SR4

SCHEDULE 4 – STATEMENT OF NON-COMPLIANCE

1. Statement of Non-Compliance

Where the Supplier wishes to negotiate any provisions of the Draft Contract (Schedule 7), it should include in its response below details of:

- the provision that it wishes to negotiate;
- the alternative words that it proposes; and
- any increase in its Quotation price if Ninti does not agree to the amendment.

Ninti will consider any non-compliances or partial compliances in its evaluation of other risks. If Suppliers do not submit a response to this Schedule, they will be evaluated on the basis that they agree with all the provisions of the Draft Contract.

Ninti does not intend to permit a Supplier to re-open any provision of the Draft Contract in negotiations that was not identified as an area of non-compliance or partial compliance in a Quotation.

Response

- a. No non-compliances. The Supplier accepts all terms of the Draft Contract as provided in Schedule 7.

2. Confidential Information

The Supplier should specify any information which is contained in its Quotation, or which may be provided by it during this RFQ process, that it considers should be protected as Confidential Information by Ninti in respect of any resultant Contract. The Supplier should also provide appropriate reasons why any such information should be protected as Confidential Information. Suppliers should review the information available from Ninti's website for further detail about what information may be protected as Confidential Information

Response

- a. The following information provided in the Supplier's Quotation is considered confidential and should be protected by Ninti:

Proposed Confidential Information (refer to RFQ or Schedule clause)	Reason why this information should be protected as Confidential Information
Names and qualifications of proposed personnel	This includes personal information protected under privacy legislation.
Budget and pricing details (Schedule 5)	This is commercially sensitive information that may impact the Supplier's position in future procurement processes.
Project approach and methodology	This reflects the intellectual property and strategic planning of the Supplier, and public disclosure may reduce competitive advantage.

Schedule 5 – PRICING SCHEDULE

Project Name: Urapuntja Homelands Smoking Cessation Project
Supplier Name: Urapuntja Health Service Aboriginal Corporation

1. Pricing Schedule instructions

- a. Suppliers are required to provide pricing (GST exclusive and inclusive) for the provision of the Services.
- b. Suppliers are required to outline the following in their Quotation a breakdown of assumptions, variations or other qualifications relied upon for generating the price should be provided.
- c. Suppliers must provide their pricing in Australian currency.
- d. The Supplier should indicate, in the table below, all fees, charges, and other costs which it would seek to be paid for the Services and discounts offered.
- e. Suppliers should provide itemised pricing information and proposed payment schedules detailing all fees, prices and charges and any assumptions related to each milestone or deliverable of the Services.

2. Pricing Schedule - Payments

[Note to Suppliers: The below clauses will form the Pricing schedule in the Draft Contract]

- 2.1 Ninti will pay the milestones in Table C below within 20 days after receipt of an itemised invoice for Services

2.3 Table A: Pricing Schedule - table to be completed by supplier

ITEM	Year 1 From contract inception to year ending June 2026 (GST exclusive)	Year 2 Financial year ending June 2027 (GST exclusive)	TOTAL (GST exclusive)	TOTAL (GST inclusive)
Personnel Salaries – Core Staff (Coordination & Delivery) (Specify personnel and FTE levels in Personnel Inputs Table B below)	\$120,000	\$120,000	\$240,000	\$264,000
Personnel Salaries – Community Engagement & Support Workers	\$55,000	\$55,000	\$110,000	\$121,000
Administrative and operational costs Covers general office support, consumables, use of administrative infrastructure (phones, internet, meeting rooms), etc	\$12,000	\$12,000	\$24,000	\$26,400
Travel & Outreach/ Accommodation/ Incidentals Homeland outreach (travel, fuel, accommodation, supplies)	\$20,000	\$20,000	\$40,000	\$44,000
Activity Budget (costs for specific purchases and activities to support the response)				
Accredited training, mentoring & Workforce Development (iSISTAQUIT, Quit Centre)	\$7,600	\$2,600	\$10,000	\$11,000
Community consultation and co-design (Cultural Advisors, Artists, Interpreters)	\$8,000	\$8,000	\$16,000	\$17,600

Yarning Circles (venue, catering, materials)	\$5,000	\$5,000	\$10,000	\$11,000
Local campaigns (radio, posters, signage, online digital media)	\$20,000	\$8,000	\$28,000	\$30,800
Youth-led activities and resources	\$4,000	\$4,000	\$8,000	\$8,800
Smoke-free homes pledge campaign	\$4,000	\$4,000	\$8,000	\$8,800
Evaluation, Reporting and Final Closure	\$7,500	\$15,000	\$22,500	\$24,750
TOTAL BUDGET	\$263,000	\$253,000	\$516,000	\$567,600
TOTAL BUDGET GST Inclusive	\$289,300	\$278,300		\$567,600

Table B: Personnel Inputs - table to be completed by Supplier

Name	Time Input Yr 1 Long term (months) / Short term (hours/days)	Time Input Yr 2 Long term (months) / Short term (hours/days)	Total time commitment to project
Mel Hinson	100 hours (approx. 1 hour week)	100 hours	200 hours
Health Services Manager - Yvette Ellis	100 hours	100 hours	200 hours
SEWB Project Coordinators- Rachel Chatfield	375 hours (approx. 1 day/week)	500 hours	875 hours
Health Promotion Worker (TBC)	750 hours (approx. 0.4 FTE)	1,000 hours	1,750 hours
Community Engagement Worker (TBC)	750 hours	1,000 hours	1,750 hours
Cultural Advisors, Artists, Elders	Short-term inputs (as needed)	Short-term inputs (as needed)	Variable / ad hoc
Youth Peer Educators (x3)	150 hours (training + co-delivery)	150 hours	300 hours (total group)

Table C: Milestone Payment Schedule - table to be completed by Supplier

Milestone	Milestone due date	Amount (GST exclusive)	Amount (GST inclusive)
Ninti's acceptance of the comprehensive project plan	1 October 2025	\$119,729	\$131,700*
Ninti's acceptance of quarterly progress report 1 accepted	31 January 2026	\$47,327	\$52,060
Ninti's acceptance of any milestone(s) specified by the supplier	N/A	N/A	N/A
Ninti's acceptance of quarterly progress report 2 accepted	30 April 2026	\$47,327	\$52,060
Ninti's acceptance of quarterly progress report 3 accepted	31 July 2026	\$47,327	\$52,060
Ninti's acceptance of quarterly progress report 4 accepted	31 October 2026	\$47,327	\$52,060
Ninti's acceptance of quarterly progress report 5 accepted	31 January 2027	\$47,327	\$52,060
Ninti's acceptance of quarterly progress report 6 accepted	30 April 2027	\$47,327	\$52,060
Ninti's acceptance of final report	31 July 2027	\$112,309	\$123,540
Total		\$516,000	\$567,600

Appendix 6 – SR6

Schedule 6 – INDIGENOUS PARTICIPATION PLAN TEMPLATE RESPONSE FORM

Project Name: Urapuntja Homelands Smoking Cessation Project
Supplier Name: Urapuntja Health Service Aboriginal Corporation

INDIGENOUS PARTICIPATION PLAN

Urapuntja Health Service Aboriginal Corporation

1. This is an Indigenous Participation Plan submitted as part of the Quotation in response to RFQ 9102
2. If selected as the Contractor following evaluation of Quotations received in response to the RFQ, Urapuntja Health Service Aboriginal Corporation will meet the mandatory minimum requirements on and from 1 September 2025 for the purposes of the Indigenous Procurement Policy:

At the contract-based level, in which regard at least:

- 80 percent of UHS full time equivalent Australian-based workforce deployed on the contracted project will be Indigenous Australians over the Initial Term of the Contract; and
- 25 percentage of the value of the work performed under the Contract will be subcontracted to Indigenous enterprises over the Initial Term of the Contract; or

At the organisation-based level, in which regard at least:

- 40 percentage of UHS full time equivalent Australian-based workforce will be Indigenous Australians over the Initial Term of the Contract; and
 - 25 percent of the value of UHS's Australian supply chain will be subcontracted to Indigenous enterprises over the Initial Term of the Contract.
3. To meet the mandatory minimum requirements on and from 1 September 2025 for the purposes of the Indigenous Procurement Policy, Urapuntja Health Service Aboriginal Corporation will undertake the following:
 - Recruit and employ at least two part-time Aboriginal Health Promotion Workers from the Urapuntja Homelands.
 - Allocate the majority of project delivery duties (youth engagement, workshop facilitation, yarning circles, smoke-free campaign rollout) to Aboriginal team members.
 - Engage Aboriginal individuals and/or Aboriginal-owned businesses for printing, signage, catering, creative design, and cultural consultation services.
 - Track Indigenous employment hours and procurement value across the life of the contract and report quarterly to Ninti.
 - Support Aboriginal employees through training, mentoring, and participation in NRPP learning and workforce development activities.

4. Urapuntja Health Service Aboriginal Corporation (UHS) rate of Indigenous employment and supplier use as at the Closing Time is:
 - Employment: Approximately 40 percent of UHS's current workforce identify as Aboriginal and/or Torres Strait Islander
 - Supplier User: Approximately 30-50 percent UHS's regional supply chain is sourced through Aboriginal-owned businesses
 - Additional Detail: UHS actively engages multiple Indigenous-owned businesses for capital works projects, training, printing, language and interpretation services, and other localised operational needs, supporting economic participation in the broader Utopia Homelands and Barkly region

5. Urapuntja Health Service Aboriginal Corporation demonstrates its commitment to Indigenous participation as follows:
 - Is governed by an Indigenous-majority board.
 - Is based within and serves Aboriginal communities across 16 Urapuntja Homelands.
 - Maintains policies that preference Aboriginal employment and procurement.
 - Actively develops and mentors local Aboriginal staff through structured training and development pathways.
 - Designs and delivers all health promotion and SEWB services in a culturally responsive and community-led manner.
 - It is deeply committed to Indigenous participation, with approximately 40% of its workforce identifying as Aboriginal, and a strong focus on providing meaningful, on-country employment for Homeland residents
 - UHS also prioritises Indigenous participation through its procurement practices, working with Indigenous-owned and Indigenous-preferred suppliers wherever possible.
 - This project builds on UHS's strong track record of exceeding Indigenous Procurement Policy (IPP) expectations, ensuring that employment and supply chain decisions continue to deliver long-term benefits for Alyawarr and Anmatyerr peoples and communities.

6. Urapuntja Health Service Aboriginal Corporation will meet the mandatory minimum requirements: directly; or through subcontracts.
 - UHS will meet the mandatory minimum requirements directly and through subcontracting.
 - UHS's internal Aboriginal workforce will deliver the majority of services directly. Where additional specialist or support services are required, UHS will subcontract to Indigenous businesses or consultants wherever possible and appropriate to the activity (e.g. graphic design, media editing, bush catering).

7. Urapuntja Health Service Aboriginal Corporation will ensure that its provision of the Services will deliver significant Indigenous employment or supplier use outcomes in the Remote Areas by:

- Employing local Aboriginal staff and supporting flexible employment arrangements that respect kinship and cultural responsibilities.
- Embedding Aboriginal community members in all aspects of project delivery, including planning, messaging, facilitation, and cultural guidance.
- Creating opportunities for young people, artists, Elders, and peer educators to participate and be paid for their contributions.
- Partnering with Aboriginal suppliers from Central Australia for goods and services to keep economic benefit within the region.

Urapuntja Health Service Aboriginal Corporation (ICN 2)

Declaration: Indigenous Enterprise Status under the Indigenous Procurement Policy (IPP)

I, **Melissa Hinson**, in my capacity as **CEO of Urapuntja Health Service Aboriginal Corporation**, hereby declare that **Urapuntja Health Service Aboriginal Corporation** meets the definition of an **Indigenous enterprise** under section 1.8.1 of the Commonwealth Indigenous Procurement Policy. In particular:

- **Ownership:** Urapuntja Health Service Aboriginal Corporation is at least **50% Aboriginal and/or Torres Strait Islander owned**.
- **Registration:** Is Registered with the Office of the Registrar of Indigenous Corporations (ICN: 2) – see below

Active Trading: Urapuntja Health Service Aboriginal Corporation is **actively trading in the healthcare sector**, delivering health services to the community on an ongoing basis.

This declaration is true and correct to the best of my knowledge and is made for the purpose of confirming the organisation's status as an Indigenous enterprise under the Indigenous Procurement Policy requirements.

Signature: Melissa Hinson Date: 01/05/2025

COMMONWEALTH OF AUSTRALIA

Aboriginal Councils and Associations Act 1975

Certificate of Incorporation of an Aboriginal Association

I, *Patricia Anne Sullivan*

the Registrar of Aboriginal Corporations,

in pursuance of paragraph 45(1)(a) of the Act
hereby certify that

UNIONATED ABORIGINAL SERVICE ASSOCIATION

*has this day been incorporated under the Act**Dated this 12th day of November, 1975**A. J. Sullivan*
REGISTRAR

**Tackling Indigenous Smoking - National Reach and Priority Projects
Proposal Adjustment Agreement**

Project Title	Urapuntja Homelands Smoking Cessation Project
Project Supplier	Urapuntja Health Service Aboriginal Corporation
Project Contact Person Details	
Name:	Melissa Hinson
Email:	ceo@urapuntja.org.au

1 Ninti One requires that the following details are included in the comprehensive project plan:

- Provide detailed demographics – who will be targeted for participation and how?
- Clarify scope and feasibility of the project
- Expand on personnel information and experience
- Confirm / clarify the budget line items. Provide itemised budget.
- The bid mentions CAAC & AMSANT but not what their role is. Please clarify and indicate whether partnerships have been initiated.
- Remove references to smoking cessation. TIS activity must be centred around health promotion and education as opposed to quit support.

Supplier response:

Accepted – UHS will include all the above requirements and details in the comprehensive project plan.

2 Ninti One requests that the project title is changed to “Smoke Free Values Campaign.” This change removes the word cessation from the title and replaces it with wording used in the proposal.

Supplier response:

Accepted with the following suggestion – the project be titled “Urapuntja Smoke Free Values Campaign”.

3 Please confirm that you agree with the proposed dates and amounts in the payment schedule

Deliverable Due Date	Payment Date	Amount (GST Excl)	Amount (GST incl)
3 weeks after contract execution	Acceptance of comprehensive project plan	\$70,000.00	\$77,000.00
31 January 2026	Acceptance of Progress Report #1	\$70,000.00	\$77,000.00
30 April 2026	Acceptance of Progress Report #2	\$70,000.00	\$77,000.00
31 July 2026	Acceptance of Progress Report #3	\$96,000.00	\$105,600.00
31 October 2026	Acceptance of Progress report #4	\$70,000.00	\$77,000.00
31 January 2027	Acceptance of Progress report #5	\$70,000.00	\$77,000.00
31 May 2027	Acceptance of Final Report	\$70,000.00	\$77,000.00
	TOTAL	\$516,000.00	\$567,600.00

Supplier response:

UHS confirms our agreement with the dates and milestone amounts in the proposed payment schedule.

4 Please provide the physical location / address for face-to-face meetings between Ninti One and Supplier (project team)

Supplier response:

Face-to-face meetings can be held at Urapuntja Health Service, Amengernterneah, Sandover, NT 0872

5	In regard to your evaluation plan, we would like to propose that Ninti reserves the right to conduct an independent evaluation
---	--

Supplier comment:

UHS **accepts** Ninti One's right to conduct an independent evaluation and will cooperate fully.

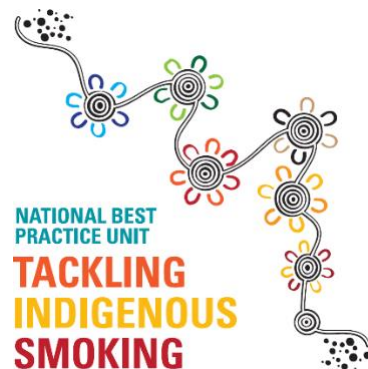
Supplier signature indicating agreement to the above:

Melissa Hinson

1 September 2025



Ninti One Limited: *Indigenous business registered with Supply Nation*



**REQUEST FOR QUOTATION FOR THE PROVISION OF
THE TACKLING INDIGENOUS SMOKING –
NATIONAL REACH AND PRIORITY PROJECTS
RFQ NUMBER 9102**

ISSUED BY NINTI ONE LIMITED

Lodgement Closing Time: 5.30 pm on 2nd May 2025 (Australian Eastern Standard Time)

PLEASE NOTE:

- Quotations must be lodged electronically via email at NRPPTenderResponse@nintione.com.au (see PART 1 clause 6)
- Quotations should be lodged in the format as described in PART 1, clause 8.

Ninti One Contact: NRPP@nintione.com.au

Further Information: A notice of the issue of an addendum will be published in the same manner as the original information about this RFQ. Suppliers should regularly check www.NRPP.com.au for any updates or addenda to this RFQ.

The tender briefing webinar will be held on 27th March 2025, at the following times:

[Join the meeting](#)

Meeting ID: 420 097 219 092

Passcode: fX6iP2bP

New South Wales	2:30 pm
Victoria	2:30 pm
Queensland	1:30 pm
South Australia	2:00 pm
Western Australia	11:30 am
Tasmania	2:30 pm
Northern Territory	1:00 pm
Australian Capital Territory	2:30 pm

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PART 1 – OVERVIEW, BACKGROUND, SERVICES SPECIFICATIONS AND QUOTATION LODGEMENT

1. REQUEST FOR QUOTATION

1.1 This Request for Quotation (RFQ) comprises:

Part 1 – Overview, background, services specifications, and quotation lodgement;
Part 2 – Information to be provided by Suppliers;
Part 3 – Evaluation of Quotations;
Part 4 – Conditions of Quotation;
Schedule 1 – Statement of Requirement;
Schedule 2 – Supplier Declarations;
Schedule 3 – Supplier Response Information;
Schedule 4 – Statement of Non-Compliance;
Schedule 5 – Pricing Schedule;
Schedule 6 – Indigenous Participation Plan Template Response Form; and
Schedule 7 – Draft Contract.

1.2 Suppliers' attention is also drawn to the:

- Conditions for Participation set out in clause 10;
- Minimum Content and Format Requirements set out in clause 11; and
- Essential Requirements set out in clause 12.

2. NINTI ONE LTD and NBPU TIS

The Department of Health and Aged Care (**DoHAC – The Client**) has engaged Ninti One Limited (**Ninti**) to manage the National Best Practice Unit Tackling Indigenous Smoking (**NBPU TIS**). The NBPU TIS was established to provide tailored support to organisations funded under the national Tackling Indigenous Smoking (**TIS**) program. The NBPU TIS is managed by a consortium led by Ninti, which includes the Health Research Institute at the University of Canberra and the Australian Indigenous HealthInfoNet based at Edith Cowan University. A component of this TIS program involves Ninti administering funding for the National Reach and Priority Projects (**NRPP**) which are time-limited projects to support the achievement of key aims to expand the reach of smoke-free/vape-free programs, increase focus on prevention activities and reduce the prevalence of tobacco use among two priority groups of Indigenous young people in regional, remote and very remote areas, and Indigenous pregnant women, their families and women of child bearing age in regional, remote and very remote areas.

3. SERVICES NINTI REQUIRES

Ninti requires projects that will achieve better health outcomes for Indigenous people in the following four areas:

Two thematic areas:

- expanding the reach of the TIS program, increasing exposure of First Nations people in remote and regional IREGs (based on ANU TIS categories) to smoke free and vape free messaging and/or activities, particularly in IREGs with high Indigenous smoking rates (based on ABS/AIHW data) and/or
 - increasing the focus on preventative population health activities in regional, remote and very remote areas, to support the development, promotion and/or
-

implementation of smoking- and vaping prevention resources and/or activities across multiple IREGs, and/or

Two priority groups:

- young Indigenous people (youth) in regional, remote and very remote areas, to support and improve First Nations youths understanding of the harms of vaping and smoking, to prevent and reduce uptake across multiple IREGs/communities, and/or
- First Nations pregnant women, their families and women of childbearing age in regional, remote and very remote areas – increasing their exposure to smoke-free and vape-free messaging and/or activities, particularly in IREGs with high Indigenous smoking rates during pregnancy (based on ABS/AIHW data)

A total fund of over \$6 million (incl GST) will be available for the projects.

The successful projects will:

- showcase an ability to increase the Tackling Indigenous Smoking program's reach (learn more about Tackling Indigenous Smoking [here](#))
- address one or more of the NRPP areas above.
- complement, or avoid duplication of, other elements of the national TIS program.

The detailed specifications and requirements for the services are set out in SCHEDULE 1 - Statement of Requirement. Ninti will evaluate the supplier projects based on the information in SCHEDULE 3 – Supplier Response Information. Ninti proposes to engage the successful Supplier/s to provide the services in accordance with the Draft Contract set out in SCHEDULE 7.

4. RFQ TIMETABLE

The following is an indicative timetable for this RFQ process:

Activity	Timing
Release of RFQ	14 March 2025
Tender Briefing	27 March 2025
Enquiry Cut-Off Date	18 April 2025, 12:00 pm (Australian Eastern Standard Time)
Last day for Ninti to respond to questions via addenda on NRPP.com.au	28 April 2025, 5.30pm (Australian Eastern Standard Time)
Addenda, and answers to questions	Suppliers should regularly check www.NRPP.com.au for any updates or addenda to this RFQ
Closing Time	2 May 2024, 5:30 pm (Australian Eastern Standard Time)
Negotiation with preferred Supplier(s)	August - September 2025

Activity	Timing
Execution of Contract with successful Supplier(s)	By 01 September 2025
Notification for unsuccessful Suppliers	Mid-late 2025, following execution of contract(s)
Commencement of Services	2025 following execution of contract(s)

5. ENQUIRIES ABOUT THIS RFQ

5.1 Enquiries about this RFQ should be made by email to:

Name:	Mel Donohue
Title:	Contracts Manager NRPP
Email:	NRPP@nintione.com.au

5.2 Ninti will provide answers to any reasonable enquiry from a prospective Supplier that is received by Ninti before the Enquiry Cut-Off Date set out in clause 4, in which case:

- a. questions and related answers may be disclosed to all prospective Suppliers via NRPP.com.au (without disclosing the source of the questions); and
- b. any Supplier Confidential Information contained in a question (that is expressly nominated as such by the relevant Supplier and agreed to by Ninti) will be removed prior to disclosure on NRPP.com.au.

5.3 All communications related to this RFQ should be addressed to the Contact Officer (via the contact details specified above in clause 5.1) and not to other Ninti staff or other persons. Ninti may not respond to any enquiry not made in accordance with the requirements of clause 5.1.

5.4 A Supplier who communicates other than to the Contact Officer may be excluded from participating further in this RFQ process.

6. ELECTRONIC LODGEMENT AND ACKNOWLEDGEMENT OF RECEIPT

6.1 Quotations must be lodged electronically via email to NRPPTenderResponse@nintione.com.au.

Ninti will acknowledge receipt of all quotations within 2 working days after the Closing Time set out on clause 4. If a tenderer has submitted a tender and it does not receive a notification of receipt, they must notify the Contract Manager NRPP at Ninti immediately.

7. QUOTATION CLOSING TIME AND DATE

7.1 Quotations must be lodged by the Closing Time set out in clause 4.

7.2 Late Quotations will be excluded from consideration unless the Quotation is late as a consequence of mishandling by Ninti.

8. PREPARING TO LODGE A QUOTATION

Quotation File Formats, Naming Conventions and Sizes

- 8.1 Ninti will accept Quotations lodged in Microsoft Word 2016 (or above) Microsoft Excel v2016 (or above) or PDF format v1.7 (or above), and a maximum file size 10Mb.
- 8.2 The Quotation file name/s should:
- a. incorporate the Supplier's company name; and
 - b. reflect the various parts of the Quotation they represent, where the Quotation comprises multiple files.
- 8.3 Quotations must be completely self-contained. No hyperlinked or other material may be incorporated by reference.
- 8.4 Clauses 7-10 of Schedule 3 must not exceed 15 pages in length, including covering letters, tables and images, and must not contain hyperlinks.

9. SCANNED OR IMAGED MATERIAL, INCLUDING STATUTORY DECLARATIONS

In the event that Ninti requires verification that the Supplier's Quotation has been validly signed, the Supplier may be required to courier or security post the originals of the signature and/or initialled pages to Ninti at the address notified by Ninti within the period notified by Ninti.

PART 2 – INFORMATION TO BE PROVIDED BY SUPPLIERS

10. CONDITIONS FOR PARTICIPATION

- 10.1 Subject to clause 11.2, if Ninti considers that a Supplier does not satisfy all of the following Conditions for Participation, that Quotation will be excluded from further consideration under this RFQ:

Item	Conditions for Participation
1	The Supplier must not have had any judicial decisions against it (excluding decisions under appeal) relating to employee entitlements and have not satisfied any resulting order.
2	The Supplier, its personnel, and any Subcontractors proposed in the Quotation must not be listed as terrorists under section 15 of the <i>Charter of the United Nations Act 1945</i> (Cth).
3	The Supplier (and any Subcontractor proposed in its Quotation) must not be named in the Consolidated list referred to in Regulation 40 the <i>Charter of United Nations (Dealing with Assets) Regulations 2008</i> (Cth).
4	The Supplier must: - hold a valid and satisfactory Statement of Tax Record by the Closing Time; and - hold a valid and satisfactory Statement of Tax Record from any Subcontractor that it proposes, as part of its Quotation, to engage to deliver the Services, where the estimated value of the Services to be undertaken by that Subcontractor is over \$4 million (GST inclusive). In exceptional circumstances, Ninti may in its sole discretion allow a Supplier to meet this requirement if it has a receipt demonstrating that a Statement of Tax Record has been requested from the Australian Taxation Office by the Closing Time, and holds a valid and satisfactory Statement of Tax Record no later than 4 business days from the Closing Time. [Note to Suppliers: Suppliers should apply for a Statement of Tax Record and should ensure that their Subcontractors apply for a Statement of Tax Record within sufficient time to meet this Condition for Participation.]

11. MINIMUM CONTENT AND FORMAT REQUIREMENTS

- 11.1 Subject to clause 11.2, if Ninti considers that a Quotation does not satisfy all of the following Minimum Content and Format Requirements, that Quotation will be excluded from further consideration under this RFQ:

Item	Minimum Content and Format Requirements
1	The Quotation must be in English and measurements must be expressed in Australian legal units of measurement.
2	The Quotation must include a completed, signed and scanned Supplier Declaration substantially in the form set out in Schedule 2 (SR1).

Item	Minimum Content and Format Requirements
3	The Quotation must include a Supplier Response substantially in the form set out in Schedule 3, clauses 1-6.
4	The Quotation must include a Supplier Response substantially in the form set out in Schedule 3 and must comply with the page limit requirements imposed for which are Schedule 3, clauses 7-10.
5	Suppliers must complete and submit the Pricing Schedule substantially in the form set out in Schedule 5 in accordance with the instructions provided in Schedule 5.
6	The Supplier must include an Indigenous Participation Plan substantially in the form set out in Schedule 6 in its Quotation.
7	The Quotation must include either: (a) a valid and satisfactory Statement of Tax Record; or (b) if approved by Ninti prior to the Closing Time, a receipt demonstrating that a Statement of Tax Record has been requested from the Australian Taxation Office and the Supplier then provides a valid and satisfactory Statement of Tax Record within 4 business days from the Closing Time.

Unintentional Errors of Form

- 11.2 Without limiting Ninti's other rights in this RFQ, Ninti may allow a Supplier to correct any error of form in a Quotation that appears to be unintentional, by lodging a correction or additional information, in writing in accordance with the direction of Ninti but will not permit any material alteration or addition to the Quotation.
- 11.3 If Ninti provides any Supplier with the opportunity to correct errors of form, it may provide the same opportunity to all other Suppliers that are in the same position.

12. ESSENTIAL REQUIREMENTS

- 12.1 If Ninti considers that a Supplier does not satisfy all of the following Essential Requirements, that Quotation will be excluded from further consideration under this RFQ:

Item	Essential Requirements
1	The Supplier must offer to provide the Services described in this RFQ.

- 12.2 Notwithstanding the use of the words "must", "shall", "minimum", "required to" or similar language or anything to the contrary in Statement of Requirement or elsewhere in this RFQ, there are no other Essential Requirements for this RFQ besides those set out in the table above (if any).

13. FORMAT OF QUOTATIONS

- 13.1 Quotations should be completed in accordance with Schedule 3, noting the following:
- all applicable information should be provided in response to the information requirements set out in Schedule 3;
 - subject to clause 14.1, where a response to a particular requirement is covered in another section of the Quotation, a cross reference to that section should be provided;
 - suppliers may include additional or supporting materials (as supplements or attachments to the Quotation Response Information) noting that Suppliers are

discouraged from including generic marketing information that does not relate to the information requested in this RFQ and/or does not address the Evaluation Criteria.

- 13.2 Suppliers should also complete the Statement of Non-Compliance in accordance with Schedule 4 in relation to:
- a. any of the provisions of the Draft Contract with which the Supplier is partially compliant or non-compliant; or
 - b. any claim of confidentiality in relation to any aspects of their Quotation.

14. PRICING

- 14.1 Suppliers should provide full details of their proposed price structure in Schedule 5. This document should be included in a separate electronic file when the Quotation is lodged, and no pricing should be included in any other part of the Quotation.
- 14.2 Quotation prices should include all charges necessary and incidental to the proper delivery of the Services.
- 14.3 Prices should be fixed for the duration of the Contract unless otherwise indicated by Ninti in this RFQ.
- 14.4 Prices should be in Australian dollars and expressed as both exclusive and inclusive of GST.

15. WORKPLACE GENDER EQUALITY

- 15.1 Commonwealth policy prevents the Commonwealth from entering into contracts with suppliers who are non-compliant under the *Workplace Gender Equality Act 2012* (Cth) (the **WGE Act**). The Draft Contract requires that, in performing any contract, a successful Supplier must:
- a. comply with its obligations, if any, under the WGE Act; and
 - b. if the term of the Contract exceeds 18 months, the successful Supplier must provide a current letter of compliance within 18 months from the Contract commencement date and following this, annually to Ninti.
- 15.2 Successful Suppliers should note that if during the term of the Contract, the Supplier becomes non-compliant with the WGE Act, the Supplier must notify Ninti. For further information about coverage of the WGE Act, contact WGEA on (02) 9432 7000.
- 15.3 Suppliers must indicate as part of their Quotation whether or not the organisation is a 'relevant employer' under the WGE Act and, if applicable, provide a current letter of compliance as part of their Quotation, or prior to entering into contract.

16. ILLEGAL WORKERS

- 16.1 Suppliers should complete the Supplier's Declaration in Schedule 2, which contains a statement from the Supplier confirming that it meets this obligation.

17. INDIGENOUS PROCUREMENT POLICY

- 17.1 Ninti supports the Commonwealth's policy to stimulate Indigenous entrepreneurship and business development, providing Indigenous Australians with more opportunities to participate in the economy. Suppliers should complete an Indigenous Procurement Plan in the form set out in SCHEDULE 6.
- 17.2 If any resultant Contract is a High Value Contract, the Mandatory Minimum Requirements for Indigenous participation will apply.

18. MODERN SLAVERY ACT 2018 (CTH)

- 18.1 Suppliers should note that any resultant Contract will require the successful Supplier to provide all assistance reasonably requested by Ninti to comply with its obligations, and related contract clauses under the *Modern Slavery Act 2018* (Cth).
- 18.2 In performing any contract, the successful Supplier may be required to comply with one of the modern slavery model contract clause options available at <https://modernslaveryregister.gov.au/resources/> which may require the Supplier to:
- a. take reasonable steps to identify, assess and address risks of Modern Slavery practices in the operations and supply chains used in the provision of the Goods and/or Services;
 - b. ensure the Supplier's personnel responsible for managing the operations and supply chains used in the performance of the contract have undertaken suitable training to be able to identify and report on Modern Slavery;
 - c. manage specific risks of Modern Slavery as well as address or remove Modern Slavery practices identified in the Supplier's supply chain and operations; and
 - d. prepare, implement and comply with a Modern Slavery Risk Management Plan.

19. PAYMENT TIMES PROCUREMENT CONNECTED POLICY

- 19.1 Suppliers should note that the Commonwealth's Payment Times Procurement Connected Policy (**PTPC Policy**) applies to this procurement. Information about the PTPC Policy can be found at the [Payment Times Procurement Connected Policy Website](#).
- 19.2 Suppliers must determine and declare at Schedule 2 the Supplier Declaration, whether they are a 'Reporting Entity' as defined by the *Payment Times Reporting Act 2020* (Cth).
- 19.3 If the Supplier is a Reporting Entity, any resultant Contract will require the successful Supplier to comply with the PTPC Policy.

PART 3 – EVALUATION OF QUOTATIONS**20. EVALUATION CRITERIA**

Ninti will use the following Evaluation Criteria in the evaluation of Quotation information as provided in Schedule 3:

Description	Weighting (if any)
The Supplier's ability to deliver the Services within Ninti's timeframes, as demonstrated by (a), (b), and (c) below:	
(a) the Supplier's proposed approach and methodology (Schedule 3, clause 7)	40%
(b) the personnel (including their availability) and other resources offered by the Supplier (Schedule 3, clause 8)	30%
(c) the capability, experience and expertise of the Supplier and its key personnel in delivering services that are similar to the proposed Services (Schedule 3, clause 9)	30%
In evaluating Quotations, Ninti will take into consideration: a. the Supplier's past performance and/or demonstrated commitment in relation to Indigenous participation; b. the extent to which the Supplier's proposed Indigenous Participation Plan will meet the mandatory minimum requirements (Schedule 6); <i>[Note to Suppliers: A Supplier that has no past experience with any mandatory minimum requirements will not be disadvantaged by this alone. Its response will be assessed on other actions it has taken in the past to increase Indigenous participation and on its proposed Indigenous Participation Plan.]</i>	Not weighted
Pricing (Schedule 5) as part of a Value for Money assessment.	Not weighted
Risk (a) compliance with Statement of Requirement (Schedule 1) and the Draft Contract (Schedule 7); (b) financial viability of the Supplier (Schedule 3, clause 4); and (c) any other risks identified in the evaluation process that have not been considered as part of another Evaluation Criterion (Schedule 3, clause 7).	Not weighted

Ninti may:

consider any part of a Quotation in the evaluation of any or all of the Evaluation Criteria; and use material provided in response to one Evaluation Criterion in its evaluation of other Evaluation Criteria.

21. EXCLUSION OF QUOTATIONS

Without limiting any other provision of this RFQ that gives Ninti the right to exclude Quotations on other grounds, Ninti may at any time exclude a Quotation from further consideration if:

- a. the Quotation is incomplete or contains insufficient information to allow its evaluation of the Quotation;
- b. prices are not clearly and legibly stated;
- c. the Supplier or Quotation does not comply with this RFQ;
- d. the Supplier is not fully capable of undertaking a contract in the form of the Draft Contract;
- e. the Quotation is clearly uncompetitive when compared with the other Quotations received;
- f. the Quotation is rated unsuitable or unsatisfactory against one or more of the Evaluation Criteria;
- g. the Quotation contains statements that qualify or are contrary to the Supplier Declaration at Schedule 2 to this RFQ;
- h. in Ninti's opinion the Quotation contains a false declaration;
- i. the Quotation contains false or misleading information or statements;
- j. the Supplier, or a director or officer of the Supplier, is insolvent or bankrupt;
- k. the Supplier has an actual, potential, or perceived conflict of interest that cannot be managed to the satisfaction of Ninti acting in its absolute discretion; or
- l. there has been a significant deficiency in the performance of a substantive requirement or obligation under a prior agreement.

22. QUOTATION EVALUATION PROCESS

- 22.1 Quotations will be evaluated against the Evaluation Criteria to determine the Quotation(s) that represents the best overall value for money on a whole-of-life basis.
- 22.2 As part of its evaluation of Quotations, Ninti may, in its sole and absolute discretion:
 - a. ask Suppliers to undertake presentations;
 - b. shortlist one or more Suppliers at any time;
 - c. ask Suppliers to provide written clarification of various aspects of their Quotations;
 - d. ask Suppliers to provide further information to confirm their financial viability and commercial stability;
 - e. have discussions or interviews with Suppliers in order to seek further clarification of their Quotations;
 - f. visit Suppliers' sites; and
 - g. have discussions with or undertake visits to suppliers of Suppliers and their Subcontractors, whether or not those suppliers are listed as referees in the Suppliers' Quotations.
- 22.3 Ninti may choose to undertake the activities set out in clause 22.2 in relation to some Suppliers only. Presentations, interviews and site visits may be subject to additional terms and conditions that are advised by Ninti to Suppliers who have been invited to participate in each activity.
- 22.4 Any costs incurred by Ninti in complying with this clause 22 will be negotiated and accepted prior to being borne by the Supplier.

23. CLARIFICATION

- 23.1 Where the meaning of a Quotation is unclear or there is an apparent error of form, Ninti may seek clarification from the Supplier.
- 23.2 Any clarification provided by a Supplier in response to a request for clarification is not to contain any new material additional to that included in the Quotation unless specifically requested by Ninti. Failure to supply clarification to the satisfaction of Ninti may cause the Quotation to be excluded from consideration.

24. QUOTATION PRICES

- 24.1 The Supplier/s agree to provide access to such information as is determined by Ninti to be necessary in order to evaluate the reasonableness of their Quotation prices.
- 24.2 In the evaluation process, Ninti may make certain adjustments to the Quotation price, including adjustments to account for the following matters, which may need balancing in order to establish a common basis for the comparison of Quotations, including (without limitation):
- a. Quotation prices as per the completed Schedule 5;
 - b. pricing flexibility;
 - c. any other costs or discounts which form part of the Supplier's offer;
 - d. normalised and discounted cash flow;
 - e. any alternative proposals or financial incentives offered by the Supplier;
 - f. implementation costs;
 - g. any risk relating to the Quotation prices;
 - h. transition out costs;
 - i. cost of administering the resultant Contract; and
 - j. whole of life costs and benefits.

25. NEGOTIATIONS

- 25.1 Negotiations may be undertaken with one or more Suppliers (including in relation to prices, terms and conditions of the Draft Contract or any other matters).
- 25.2 During the negotiation phase of this RFQ process, Ninti may engage in detailed discussions and negotiations, including parallel negotiations, with the goal of maximising the benefits of the project, as measured using the Evaluation Criteria. As part of this process, those Suppliers participating in the negotiation phase may be asked to improve any or all aspects of their Quotation. Ninti's intention is that it will select preferred Suppliers after all material issues have been resolved.
- 25.3 Ninti may seek best and final offers from Suppliers participating in the negotiation phase of this RFQ process.
- 25.4 Without limiting its other rights under this RFQ, in the event that Ninti concludes that during negotiations a Supplier has retracted, or attempts to retract, any part of its quotation offer, Ninti reserves the right to:
- a. exclude that Supplier's Quotation from further consideration;
 - b. terminate this RFQ process;
 - c. re-enter negotiations or parallel negotiations with other Suppliers; or
 - d. exercise any other right reserved to Ninti under law or elsewhere in this RFQ.

26. DEBRIEFING

- 26.1 After the award of any resultant Contract, Ninti will notify all unsuccessful Suppliers of the outcome of the RFQ process.
- 26.2 General feedback will be provided against the Evaluation Criteria contained in this RFQ. Suppliers will not be provided with information concerning other Quotations.

27. COMPLAINTS PROCEDURE

- 27.1 All complaints regarding this tender process should be directed to the contact officer detailed in clause 5.1 before the closing date.

PART 4 – CONDITIONS OF QUOTATION

28. OWNERSHIP AND USE OF QUOTATION DOCUMENTS

- 28.1 All Quotation documents (including paper and electronic copies) become the property of Ninti on submission.
- 28.2 Without prejudice to anything agreed in any resultant Contract, clause 28.1 does not affect any intellectual property rights that may exist in a Quotation.
- 28.3 Without prejudice to any other right of Ninti under this RFQ or at law, subject to clause 31, Ninti may copy, amend, disclose or allow the disclosure of, or otherwise deal with, a Quotation or any information contained in or relating to any Quotation (at any time) for any of the following purposes:
- a. the RFQ process, evaluating and clarifying Quotations;
 - b. negotiation of the resultant Contract with the Supplier;
 - c. managing any resultant agreement with the Supplier or any other Supplier;
 - d. addressing any dispute concerning the RFQ process;
 - e. audit, governmental and Parliamentary reporting requirements; and
 - f. responding to any disputes about this RFQ process or requests from Parliament or a Parliamentary Committee.
- 28.4 Ninti may make copies of the Quotation as necessary, for the sole purpose of assessing tenders during this RFQ process.

29. INTELLECTUAL PROPERTY RIGHTS IN RFQ

- 29.1 All intellectual property that exists in the information contained in this RFQ, or any related or attached material, remains the property of Ninti.
- 29.2 Each Supplier is permitted to use this RFQ for the purpose only of compiling its Quotation and, in the case of the Supplier(s) selected through this RFQ process, for negotiating the resultant Contract with Ninti.

30. PRIVACY

- 30.1 Suppliers are advised that it is in line with the Ninti Privacy Policy to ensure that there is no loss of privacy protection when a supplier contracts for the delivery of services.

31. CONFIDENTIALITY

- 31.1 Ninti will, subject to this RFQ, including clause 31.2 endeavour to treat the following information as confidential:

- a. all Quotations received prior to the award of a resultant Contract;
 - b. all unsuccessful Quotations, following the award of a resultant Contract; and
 - c. all successful Quotations, following the award of a resultant Contract but only to the extent that the successful Supplier requests that specific information in their Quotation be kept confidential
- 31.2 Ninti will not be taken to have breached any obligation to keep information provided by Suppliers confidential to the extent that the information:
- a. is disclosed by Ninti to its advisers, officers, employees or subcontractors solely in order to conduct this RFQ process or to prepare and manage any resultant Contract;
 - b. is disclosed to Ninti's internal management personnel, solely to enable effective management or auditing of this RFQ process;
 - c. is disclosed by Ninti to our client and the responsible Minister;
 - d. Ninti is authorised or required by law to be disclosed;
 - e. is disclosed as agreed by the Supplier;
 - f. is disclosed to meet Ninti's reporting or accountability requirements.

32. ENVIRONMENTAL POLICY AND PROCUREMENT

- 32.1 Ninti supports the Commonwealth's aims to improve the implementation of ecologically sustainable development. Ninti is committed to fostering the sustainable use of the Earth's resources.
- 32.2 Ninti's procurement activities are a key means of implementing its environmental policy and environmental issues have been considered during the development of this RFQ.

33. MATERIAL CHANGE TO SUPPLIER

- 33.1 A Supplier must notify Ninti within 24 hours following lodgement of its Quotation, if there occurs:
- a. an event that has the effect of materially altering either the composition or control of the Supplier or the business of the Supplier; or
 - b. any material change to the compliance status of the Supplier against this RFQ; or
 - c. any material change to the proposed basis on which the Supplier will deliver the Services, or the Supplier's ability to access the necessary and appropriate skills, resources, nominated key personnel, nominated Subcontractors or corporate or financial backing to provide the Services on the terms of the Draft Contract.
- 33.2 If Ninti receives notice, or becomes aware of an event under clause 33.1 Ninti may allow (on terms it considers appropriate) the substitution of the Supplier with another legal entity upon receipt of a joint written request from or on behalf of the Supplier and the other legal entity. If Ninti allows the substitution, it will evaluate the Quotation in its original form prior to the event, except that the impact of the event on the information provided in the Quotation may be taken into account.
- 33.3 If Ninti receives notice, or becomes aware of an event under clause 33.1, or the Commonwealth does not allow substitution, or substitution is not requested, under clause 33.1, Ninti may either exclude the Quotation from consideration or continue considering the Quotation taking into account the impact of the changed circumstances on the information provided in the Quotation.

34. CONFLICT OF INTEREST

- 34.1 Suppliers should represent and declare in the Supplier Deed any actual, perceived or potential conflict of interest that exists at the time of lodging their Quotation.

- 34.2 If at any time prior to entering into a resultant Contract for the Services, an actual, perceived or potential conflict of interest arises or may arise for any Supplier, other than that already disclosed, that Supplier should immediately notify Ninti in writing and provide Ninti with all relevant information relating to the conflict.
- 34.3 If any actual, perceived, or potential conflict is notified, or Ninti becomes aware of any actual, perceived or potential conflict, Ninti may:
- exclude a quotation submitted by a supplier that has an actual, perceived or potential conflict of interest; or
 - enter into discussions with the Supplier to seek to resolve or manage such conflict of interest; or
 - take any other action it considers appropriate, including imposing reasonable requirements on the Supplier to resolve or manage the conflict of interest.
- 34.4 Suppliers must comply with any reasonable requirements notified by Ninti to resolve or manage the conflict of interest.

35. SUPPLIER BEHAVIOUR

- 35.1 Suppliers must not, and must ensure that their officers, employees, agents and advisors do not, in relation to the preparation, lodgement or assessment of Quotations:
- engage in misleading or deceptive conduct or make any false or misleading or deceptive claim or statement;
 - improperly obtain or disclose Confidential Information;
 - receive improper assistance from any existing or former officer or employee of Ninti;
 - engage in collusive quotation, anti-competitive conduct, unlawful, unethical or other similar conduct with any other Supplier or other person;
 - attempt to improperly influence an officer or employee of Ninti or violate any applicable laws regarding the offering of inducements;
 - approach any officer or employee of Ninti other than in the manner set out in this RFQ;
 - engage in, procure or engage others to engage in, any activity that would result in a breach of the *Lobbying Code of Conduct 2019* published by the Attorney-General's Department and available at <https://www.ag.gov.au/integrity/publications/lobbying-code-conduct>; or
 - otherwise act in an unethical or improper manner or contrary to any law.
- 35.2 Ninti may exclude a Quotation from consideration if the Supplier fails to comply with the requirements set out in this clause 35.

36. COST OF PREPARING AND SUBMITTING QUOTATION

To the extent permitted by law, participation in this RFQ process is at the Supplier's sole risk, cost and expense, and in no circumstances will Ninti be responsible for any costs incurred by a Supplier in preparing a Quotation, or associated expenses related to this RFQ.

37. SUPPLIERS TO INFORM THEMSELVES

- 37.1 Suppliers are deemed to have:
- examined this RFQ, and any other documents referenced or referred to in this RFQ, and any other information made available in writing by Ninti to Suppliers for the purposes of submitting a Quotation;
 - examined all other information which is obtainable by the making of reasonable and timely inquiries and relevant to the risks, contingencies and other circumstances having an effect on their Quotation;

- c. satisfied themselves as to the correctness and sufficiency of their Quotation, including quoted prices which are deemed to cover the cost of all matters necessary for the due and proper performance and delivery of the Services described in the Statement of Requirement;
 - d. satisfied themselves as to the terms and conditions of the Draft Contract and its ability to comply with the Draft Contract (including by obtaining independent legal advice on the effect of its terms where appropriate), subject to its response at Schedule 4;
 - e. obtained independent advice on the effect of all relevant legislation in relation to the Supplier's participation in the RFQ process; and
 - f. made their own independent assessments of actual workload requirements under any resultant Contract and all prices will be presumed by Ninti to have been based upon the Supplier's own independent assessments.
- 37.2 It is the responsibility of Suppliers to obtain all information necessary or convenient for the preparation of their Quotation.
- 37.3 Suppliers must not rely, and are deemed not to have relied, upon any statement or representation by Ninti, whether before or after the date of this RFQ, in connection with this RFQ or during this RFQ process, unless that statement or representation is made in writing by the Contact Officer for this RFQ.
- 37.4 Suppliers should obtain their own legal and other professional advice on this RFQ and its requirements including in respect of the potential rights and obligations in respect of the Draft Contract and should not construe this RFQ, or any information in connection with this RFQ as investment, legal, tax or other advice.

38. NO CONTRACT OR UNDERTAKING

- 38.1 Nothing in this RFQ or in any Quotation or by the submission of a Quotation (in part or together) creates, or is to be construed to create, any binding contract or other understanding (including any form of contractual, quasi-contractual, restitutionary rights or other legal relationship (express or implied) between Ninti and any Supplier unless and until a resultant Contract (if any) is signed by Ninti and a successful Supplier.
- 38.2 Clause 38.1 does not apply to a Supplier Deed executed by a Supplier.

39. ACCEPTANCE

- 39.1 Selection of the preferred Quotation will be subject to the execution of a Contract between Ninti and the successful Supplier substantially in the form of the Draft Contract set out in Schedule 7.
- 39.2 Neither the lowest priced Quotation, nor any Quotation, will necessarily be accepted by Ninti.

40. NINTI'S RIGHTS

- 40.1 Ninti reserves the right to:
- a. vary the timing and processes, if any, referred to in this RFQ;
 - b. change or suspend the RFQ process;
 - c. amend or vary this RFQ or the RFQ process, including the Draft Contract;
 - d. allow any Supplier to change its Quotation at any time;
 - e. shortlist Quotations;
 - f. terminate the RFQ process where it is, in the opinion of Ninti, in the public interest to do so;

- g. exclude any Quotation from consideration where in the opinion of Ninti:
 - Ninti's client directs them to do so;
 - the Supplier does not meet a Minimum Content and Format Requirement, Condition for Participation or Essential Requirement;
 - the Supplier is not fully capable of undertaking the Contract substantially in the form of the Draft Contract;
 - this RFQ otherwise allows for the exclusion of the Supplier; or
 - the Quotation does not represent value for money;
 - h. enter into a contract or other binding relationship outside the RFQ process with a person on such terms as Ninti accepts without prior notice to any Supplier where in the opinion of Ninti:
 - it is in the public interest to do so;
 - no Supplier meets a Minimum Content and Format Requirement, Condition for Participation or Essential Requirement;
 - no Supplier is fully capable of undertaking the Contract substantially in the form of the Draft Contract; or
 - no Quotation represents value for money;
 - enter into a contract on terms different to that specified in this RFQ;
 - add a Supplier or select and negotiate with a third party who has not submitted a Quotation on such terms as Ninti accepts without prior notice to any Supplier where in the opinion of Ninti:
 - it is in the public interest to do so;
 - no Supplier meets a mandatory requirement;
 - no Supplier is fully capable of undertaking the Contract; or
 - no Quotation represents value for money;
 - i. call for new Quotations;
 - j. subject to clause 31, publish or disclose the names of Suppliers (whether successful or unsuccessful);
 - k. allow or not allow a related body corporate to take over a Quotation in substitution for the original Supplier;
 - l. enter into negotiations with any Supplier; or
 - m. cancel, add to or amend the information, requirement, terms, procedures or processes set out in this RFQ.
- 40.2 To the extent permitted by law, neither Ninti nor its officers, employees or advisers will be liable to any Supplier on the basis of any promissory estoppel, quantum meruit or on any other contractual or restitutionary ground or any rights with a similar legal or equitable basis whatsoever or in negligence as a consequence of any matter or thing relating or incidental to a Supplier's participation in the RFQ process, including instances where:
- a. Ninti decides not to enter into any resulting Contract with any Supplier or at all;
 - b. Ninti exercises or fails to exercise any of its other rights under or in relation to this RFQ (whether or not Ninti has informed a Supplier of its exercise of the rights);
 - c. a Quotation or any other material or communication relevant to this RFQ is not received in time, is corrupted, or altered or otherwise is not received as sent, cannot be read or decrypted, or has its security or integrity compromised; or
 - d. Ninti makes information available or provides information to a Supplier relating to projected future, current or historical requirements.
- 40.3 If Ninti does vary this RFQ or process, Ninti will endeavour to inform any prospective Suppliers who have sought, or been issued with, this RFQ of that change via www.NRPP.com.au. Suppliers who received the advance notice via email will also be advised via email to check www.NRPP.com.au for an addendum.

- 40.4 A notice of the issue of an addendum will be published in the same manner as the original information about this RFQ. Suppliers should regularly check www.NRPP.com.au for any updates or addenda to this RFQ.
- 40.5 Ninti will issue an addendum notifying Suppliers of any suspension of the RFQ process on www.NRPP.com.au.
- 40.6 To the extent permitted by law, Ninti will not be liable or in any way responsible for any failure to inform a potential Supplier of a change relating to this RFQ or any other matter arising by Ninti exercising any of its rights.

41. INTERPRETATION

- 41.1 If any part of this RFQ conflicts with another part, the part higher in the following list will take precedence:
- a. Schedule 7 of the RFQ;
 - b. the remaining Schedules to this RFQ;
 - c. the clauses of this RFQ; and
 - d. any other document incorporated by reference to this RFQ.
- 41.2 In this RFQ, except where the contrary intention is expressed:
- a. a reference to time, unless specified otherwise, is to the time in South Australia;
 - b. words importing a gender include each other gender;
 - c. words in the singular include the plural and vice versa;
 - d. a reference to A\$, \$A, dollar or \$ is to Australian currency;
 - e. if any word or phrase is given a defined meaning, any other part of speech or other grammatical form of that word or phrase has a corresponding meaning;
 - a reference to a clause, paragraph, schedule or annexure is to a clause, paragraph, schedule or annexure to this RFQ;
 - a reference to a person includes a natural person, partnership, body corporate, association, governmental or local authority, agency or other entity;
 - a reference to a statute, ordinance, code or other law includes regulations and other instruments under it and consolidations, amendments, re-enactments or replacements of any of them;
 - f. the meaning of general words is not limited by specific examples introduced by including, 'for example' or similar expressions and the word 'include' is not a word of limitation; and
 - g. the term 'may' when used in the context of a right exercisable by Ninti means that Ninti may exercise that right in its sole and absolute discretion and Ninti has no obligation to any Supplier.

PART 5 – GLOSSARY

Term	Definition
Closing Time	means the closing time and date of this RFQ as specified at clause 4.1 of this RFQ.
Commonwealth	Commonwealth of Australia.
Conditions for Participation	means the mandatory conditions (if any) identified in clause 10 of this RFQ .
Confidential Information	means information that: (a) is by its nature confidential; or (b) the receiving party knows or ought to know is confidential, but does not include information which: (a) is or becomes public knowledge other than by breach of contract or any other obligation of confidentiality; (b) is in the possession of a party without restriction in relation to disclosure before the date of receipt; or (c) has been independently developed or acquired by the receiving party.
Contact Officer	means the contact person for all matters pertaining to this RFQ process, as identified at clause 5.1 of this RFQ.
Contract	means a contract substantially in the form of the Draft Contract provided with this RFQ, to be executed by Ninti and the Supplier, as amended from time to time, and includes its schedules, annexures and attachments.
Draft Contract	means the document attached as SCHEDULE 7 to this RFQ being the proposed Contract to be entered into between Ninti and the successful Suppliers.
Essential Requirements	means the mandatory conditions (if any) identified at clause 12, and which a supplier must comply.
Evaluation Criteria	means the criteria set out in clause 20 of this RFQ that will be used to evaluate the Quotations received.
High Value Contract	has the meaning set out in the Indigenous Procurement Policy, being contracts delivered in Australia valued at \$7.5 million (GST inclusive) or more in specified sectors, and subject to Mandatory Minimum Requirements.
Illegal Workers	means a person who: (a) has unlawfully entered and remains in Australia; (b) has lawfully entered Australia, but remains in Australia after his or her visa has expired; or (c) is working in breach of his or her visa conditions.

Indigenous Enterprise	means an organisation that is 50 per cent or more Indigenous owned that is operating a business.
Indigenous Participation Plan	means a plan detailing how the Supplier will meet the minimum mandatory requirements for the Indigenous Procurement Policy (see template at SCHEDULE 6 – Indigenous Participation Plan Template Response Form).
Indigenous Procurement Policy	means the policy of that name, as amended from time to time, available on the Indigenous Procurement Website.
Indigenous Procurement Website	means the website at Indigenous Procurement Policy National Indigenous Australians Agency (niaa.gov.au) .
Late Quotation	means any Quotation not received by the Closing Time.
Minimum Content and Format Requirements	means the mandatory content and format requirements identified in clause 13 of this RFQ.
Mandatory Minimum Requirements	has the meaning set out in section 4 of the Indigenous Procurement Policy.
Modern Slavery	has the same meaning as it has in the <i>Modern Slavery Act 2018</i> (Cth).
Quotation	means a response submitted by a Supplier in response to the RFQ
RFQ	means this Request for Quotation.
Schedules	means all or any of the schedules to this RFQ.
Services	means the Services described in the Statement of Requirement and clause 3 of this RFQ.
Statement of Requirement	means the description of the Services as set out in Schedule 1 of this RFQ.
Statement of Tax Record	means a statement of tax record issued by the Australian Taxation Office following an application made in accordance with the process set out at https://www.ato.gov.au/Business/Bus/Statement-of-tax-record/?page=1#Requesting_an_STR .
Subcontractors	means an entity that the supplier proposes to enter into a contract with to provide goods or services to the successful Supplier(s) in relation to the Services or in order for the Tenderer to meet obligations under the resultant Contract.
Supplier	means an entity that submits a Quotation and includes a potential Supplier.
WGEA	means the Workplace Gender Equality Agency

SCHEDULE 1 - STATEMENT OF REQUIREMENT

Following the successful procurement of services under Round#1 of NRPPs, the TIS program will have over \$6M (incl GST) of funding available **to 30 May 2027** to support a range of time-limited projects and activities that are aligned with the program's key aims and priorities nationally.

The TIS Program continues to have an impact on Aboriginal and Torres Strait Islander smoking rates and recreational vaping, with the latest ABS National Aboriginal and Torres Strait Islander Health Survey showing a large fall in the rate of daily smoking by Aboriginal and Torres Strait Islander people, down to 29% in 2022-23 from 37% in 2019. However, smoking behaviours in remote and regional areas have decreased but at a slower rate than other areas, with daily smoking down from 49% to 46%. For this reason, NRPPs for **Round#2 will focus on regional, remote and very remote populations**.

Consistent with key priorities for the TIS program, the NRPP priorities and related funding allocations to support reducing uptake and prevalence of smoking and vaping amongst First Nations Peoples are summarised below:

Two **thematic** areas of:

- (1) expanding the reach of the TIS program, increasing exposure of First Nations people in regional, remote and very remote IREGs (based on ANU TIS categories) to smoke free and vape free messaging and/or activities, particularly in IREGs with high Indigenous smoking rates (based on ABS/AIHW data) and/or
- (2) increasing the focus on preventative population health activities in regional, remote and very remote areas, to support the development, promotion and/or implementation of smoking- and vaping prevention resources and/or activities across multiple IREGs, and/or

Two **priority groups**:

- (3) young Indigenous people (youth) in regional, remote and very remote areas, to support and improve First Nations youths understanding of the harms of vaping and smoking, to prevent and reduce uptake across multiple IREGs/communities, and/or
- (4) First Nations pregnant women, their families and women of childbearing age in regional, remote and very remote areas – increasing their exposure to smoke-free and vape-free messaging and/or activities, particularly in IREGs with high Indigenous smoking rates during pregnancy (based on ABS/AIHWdata)

<https://www.aihw.gov.au/reports/mothers-babies/indigenous-mothers-babies/contents/antenatal-period/risk-factors>

Across each project category, this could include (but is not limited to) mobile applications, cross regional projects, local tailored smoking cessation and vaping awareness raising campaigns, expanded partnerships on smoke-free workplace policies to further impact smoking and include vaping.

Please note that suppliers can nominate the duration of their proposed NRPP, to be any length of time, as long as it is completed by 30 May 2027.

All projects must be delivered with a preventive population health approach and directly relate to the objectives of the TIS Program. Indigenous-led suppliers are encouraged, as per the principles of the Indigenous Procurement Policy (NIAA).

What will not be required

The NRPPs are funded under the national TIS program to complement the other elements of the National TIS program. Ninti will require projects and activities that increase reach and address these priority populations and avoid duplication of other elements of the National TIS program. As such, suppliers must demonstrate that they are complementing and not duplicating activities that are already funded under other elements of the TIS program, especially the grants that are provided for regional TIS teams (Regional Tobacco Control Grants), activities of the National Coordinator, the NBPU TIS, the Department, or the processes and outcomes of evaluators. For more detail on these activities, please see <https://www.health.gov.au/our-work/tackling-indigenous-smoking>.

Since the Australian government is investing elsewhere in research centred on tobacco use and vaping, research projects will not be funded through this program.

Other elements of NRPPs that will not be considered within projects include:

- sporting team sponsorships
- purchase of land
- major capital expenditure including vehicle purchase, major construction, capital works and temporary buildings
- costs incurred in the preparation of a response to this RFQ or related documentation
- nicotine Replacement Therapies (NRTs) or other smoking cessation products or services
- direct or indirect delivery of smoking cessation services
- international travel
- activities for which other Commonwealth, state, territory, or local government bodies have primary responsibility, including smoking cessation supports in correctional settings
- activities not directly related to the TIS Program.

Further Frequently Asked Questions (FAQs) can be found at www.NRPP.com.au

Funding

As of 01 Jan 2025, over \$6 million (incl GST) will be available for the second round of NRPP procurement. Projects fall into 2 categories:

- Category 1: \$1 million (excl GST) and under, over one or more years, up to May 2027.
- Category 2: \$300,000 (excl GST) and under, over one or more years, up to May 2027.

Funding Stream Allocations (excl GST)		
Stream	Funding allocation	Desired outcome
Expanding reach in regional, remote and very remote areas	\$2 million (up to 35%)	Increases exposure of First Nations people in remote and regional IREGs (based on ANU TIS categories) to smoke free and vape free messaging and/or activities, particularly in IREGs with high Indigenous smoking rates (based on ABS/AIHW data).
Increasing focus on preventative population health	\$2 million (up to 35%)	Supports the development, promotion and/or implementation of smoking- and vaping prevention resources and/or activities across multiple IREGs.

activities in regional, remote and very remote areas		
Target population – youth (vaping) in regional, remote and very remote areas	\$1 million (up to 17.5%)	Supports and improves First Nations youths understanding of the harms of vaping and smoking, to prevent and reduce uptake across multiple IREGs/communities.
Target population – pregnant women in regional, remote and very remote areas	\$1 million (up to 17.5%)	Increases exposure of First Nations pregnant women and their families, and women of childbearing age, to smoke free and vape free messaging and/or activities, particularly in IREGs with high Indigenous smoking rates during pregnancy (based on ABS/AIHW data).

Reporting Requirements

- The successful Supplier/s will be required to provide an initial detailed project plan which outlines project aims, objectives, methodology and risks.
- The successful Supplier/s will be required to provide a written report to Ninti on an approximately quarterly basis and provide project performance reports that will comprise:
 - Progress reports will be submitted on the supplied template,
 - written updates to Ninti on the project activities;
 - reporting on project objectives as required by Ninti,
 - reporting on the project Indigenous engagement plan.
- The successful Supplier is required to provide its written report to Ninti by the due date as set out in the milestone payments table.
- The successful Supplier/s will be required to facilitate a site visit by Ninti project staff within 12 months of project execution.
- The successful Supplier will be required to provide verbal reports to Ninti on request.
- The successful Supplier/s will be required to provide a project closure report.
- Projects may be subject to evaluation.

SCHEDULE 2 – SUPPLIER DECLARATIONS

REFER APPENDIX 1 – SR1 for Supplier Response document

SCHEDULE 3 – SUPPLIER RESPONSE INFORMATION

REFER APPENDIX 2 – SR2 for Supplier Response document

REFER APPENDIX 3 – SR3 for Supplier Response document

SCHEDULE 4 – STATEMENT OF NON-COMPLIANCE

REFER APPENDIX 4 – SR4 for Supplier Response document

SCHEDULE 5 – PRICING SCHEDULE

REFER APPENDIX 5 – SR5 for Supplier Response document

SCHEDULE 6 – INDIGENOUS PARTICIPATION PLAN

REFER APPENDIX 6 – SR6 for Supplier Response document

SCHEDULE 7 – DRAFT CONTRACT

AGREEMENT DETAILS		
Date of Agreement	[date]	
Project Name	The Provision of The Tackling Indigenous Smoking National Reach and Priority Projects	
Ninti One	Name: Ninti One Limited ABN: 28 106 610 833 Address: [Insert] Email: [Insert] Phone number: [Insert] Attention: [Insert]	
Supplier	Name: [Insert] ABN: [Insert] Address: [Insert] Email: [Insert] Phone number: [Insert] Attention: [Insert]	
Commencement Date	[Commencement date]	
Completion Date	[Completion date]	
Services	The Supplier must deliver the services described in Schedule 1	
Key Personnel	[Name(s) of any specified personnel that are to provide the services]	
Deliverables & Due Dates	As set out in Schedule 1	
Fees	As set out in Schedule 1	
Payment Arrangements	As set out in Schedule 1	
Insurances <i>[Ninti One to specify any additional insurances required]</i>	Insurance type	Insurance limit
	Public liability	\$10 million
	Professional indemnity	[\$[Insert]]
	Workers compensation insurance	As required by law
Special Conditions	[Insert]	

EXECUTED AS AN AGREEMENT

Signed for and on behalf of **Ninti One Limited** (ABN 28 106 610 833) by an authorised representative in the presence of

Signature of witness

Signature of authorised representative

Name of witness (print)

Name of authorised representative (print)

Date

Position held

Signed for and on behalf of **[Supplier]** **[ACN/ABN]** by an authorised representative in the presence of

Signature of witness

Signature of authorised representative

Name of witness (print)

Name of authorised representative (print)

Date

Position held

RECITALS

- A. On [insert date], Ninti One Limited (ABN 28 106 610 833) (**Ninti One**) and the Commonwealth of Australia, represented by the Department of Health and Aged Care (ABN 83 605 426 759) (**Commonwealth**) signed a "Contract for Services" (**Head Contract**) pursuant to which Ninti One was engaged to deliver the National Best Practice Unit for Tackling Indigenous Smoking (**TIS**), to support the implementation and delivery of the national TIS program.
- B. Under the Head Contract, Ninti One may engage subcontractors to assist it to provide the Services outlined in the Head Contract.
- C. The Supplier has submitted a response to the Request for Quotation issued by Ninti One titled 'Request for Quotation for the Provision of The Tackling Indigenous Smoking – National Reach and Priority Projects and dated [insert] (**RFQ**).
- D. Ninti One has agreed to engage the Supplier to assist Ninti One to meet its obligations under the Head Contract. The Supplier agrees to provide the Services on the terms and conditions set out in this Agreement.

IT IS AGREED

1. DEFINITIONS AND INTERPRETATION

- 1.1 In this Agreement, except where the context otherwise requires, the terms defined in the Agreement Details will have the meaning set out in the Agreement Details, and:

Agreement means this agreement, including the Agreement Details, the Schedules, any Annexures and the Recitals, and any amendment agreed to in writing by the Parties.

Agreement Details means the agreement details on page 1 of this Agreement.

Business Day means a day which is not a Saturday or Sunday or a public holiday in the place where a notice is to be received or a particular activity is to be performed.

Commonwealth means the Commonwealth of Australia as represented by the Department of Health and Aged Care.

Commonwealth Material means the material provided to Ninti One by the Commonwealth under the Head Contract and as specified in that document.

Confidential Information means the details of this Agreement, including the Contract Documents, all know-how, financial information, and other commercially valuable information in whatever form and of whatever description which a Party claims is confidential to itself and over which it has full control and includes all other such information as may be in the possession of that Party but does not include information which:

- (a) is already in the public domain;
- (b) after the date of this Agreement becomes part of the public domain otherwise than as a result of an unauthorised disclosure by the receiving Party or its representatives;
- (c) is or becomes available to the receiving Party from a third party lawfully in possession of such information and which has the lawful power to disclose such information to the receiving Party on a non-confidential basis;
- (d) is rightfully known by the receiving Party (as evidenced by its written record) prior to the date of disclosure to it under this Agreement; or
- (e) is independently developed by an employee of the receiving Party who has no knowledge of the Confidential Information.

Contract Documents means the documents attached or referred to in Annexure 1 of this Agreement.

Deliverables means the deliverables which the Supplier is required under this Agreement to provide as part of the Services, including the deliverables specifically described in the Agreement Details.

Head Contract means the contract referred to in paragraph A of the Recitals.

IPR means statutory and other proprietary rights in respect of patents, designs, trade marks, circuit layouts, copyright, confidential information, know-how and all other intellectual property rights as defined in Article 2 of the Convention Establishing the World Intellectual Property Organisation of July 1967.

Ninti One IP means inventions, copyright works and other subject matter capable of copyright protection, designs, trade marks, software, trade secrets expertise, knowledge, skills, techniques, methods, procedures, ideas, concepts and IPR (including any Commonwealth Material) which Ninti One makes available to the Supplier and which is reasonably necessary for the performance of the Services.

Supplier Background IP means inventions, copyright works and other subject matter capable of copyright protection, designs, trade marks, software, trade secrets expertise, knowledge, skills, techniques, methods, procedures, ideas, concepts and IPR possessed by the Supplier prior to the Commencement Date or developed separately to and concurrently with the performance of the Services, which the Supplier makes available and which is reasonably necessary for the performance of the Services.

Parties means Ninti One, the Supplier and their respective successors and permitted assigns, and **Party** means any one of them.

Results means the results of the Services, and any inventions, discoveries, works, improvements, innovations, ideas, concepts, know-how, trade secrets or Confidential Information and the IPR in them which are created or invented by the Supplier (including by the Key Personnel) in the course of performing the Services and including the Deliverables, but expressly excluding Ninti One IP and Supplier Background IP.

RFQ means the request for quotation documentation referred to in paragraph C of the Recitals.

Term means the term of this Agreement specified in clause 2.1.

1.2 In this Agreement, except where the context otherwise requires:

- (a) the singular includes the plural and vice versa, and a gender includes other genders;
- (b) if a word or phrase is defined, its other grammatical forms have a corresponding meaning;
- (c) a reference to a clause, paragraph, Recital, Schedule or Annexure is a reference to a clause, paragraph or recital of, or schedule or annexure to, this Agreement;
- (d) a reference to a document or instrument includes the document or instrument as novated, altered, supplemented or replaced from time to time;
- (e) a reference to a party to a document (including this Agreement) includes the party's executors, administrators, successors and permitted assigns and substitutes;
- (f) a reference to a person includes a natural person, partnership, body corporate, association, governmental or local authority or agency or other entity;
- (g) a reference to writing includes a facsimile transmission, an email receipt and any means of reproducing words in a tangible and permanently visible form;
- (h) references to any legislation or to any provision of any legislation will include any modification or re-enactment of such legislation or any legislative provision substituted for, and all legislation and statutory instruments issued under, such legislation;

- (i) the words “includes” and “including” or similar expressions must not be construed as words of limitation;
 - (j) a provision of this Agreement will not be interpreted against a Party just because that Party prepared the provision;
 - (k) if a day on or by which an obligation must be performed or an event must occur is not a Business Day, the obligation must be performed or the event must occur on or by the next Business Day; and
 - (l) headings are for ease of reference only and do not affect interpretation.
- 1.3 To the extent of any inconsistency between any of the provisions and documents that make up this Agreement, the provisions or documents appearing first below will prevail over the lower placed items (unless otherwise expressly stated to the contrary in the provision or document):
- (a) the Special Conditions specified in the Agreement Details (if any);
 - (b) the provisions of the Head Contract in accordance with clause 3.3;
 - (c) the clauses of this Agreement;
 - (d) the Schedules to this Agreement; and
 - (e) any Annexure or other document incorporated by reference into this Agreement (including any Contract Documents such as the Supplier's response to the RFQ).

2. TERM

- 2.1 This Agreement will begin on the Commencement Date and will continue until the Completion Date, subject to earlier termination under clause 12.
- 2.2 If the Supplier performs any of the Services prior to, but in anticipation of, the execution of this Agreement, those Services will be deemed to have been conducted pursuant to, and on the terms of, this Agreement.

3. HEAD CONTRACT

- 3.1 The Services are to be provided under the terms of the Head Contract, as further described in Schedule 2 of this Agreement.
- 3.2 If there is any inconsistency between the terms of this Agreement and the Head Contract with regard to the conduct of the Services and the rights and obligations arising from the conduct of the Services (other than one created by an express modification or exclusion of the application of the Head Contract to the Services which is specified in this Agreement), then the terms of the Head Contract will prevail over the terms of this Agreement to the extent of the inconsistency.
- 3.3 The Supplier agrees to comply with the terms and conditions of the Head Contract to the extent such terms and conditions are applicable to the Supplier and the conduct of the Services and are capable of observance by the Supplier as a 'Subcontractor' to Ninti One within the meaning given to that term in the Head Contract.
- 3.4 The Supplier agrees to use its best endeavours to promptly:
- (a) provide Ninti One with any assistance reasonably requested by it to meet Ninti One's obligations under the Head Contract to the extent that such obligations relate to the Services and this Agreement; and
 - (b) provide any information and assistance reasonably required by Ninti One in relation to the Services and this Agreement for the preparation of documentation required by the Commonwealth.
- 3.5 It is a fundamental condition of this Agreement that the Supplier does not do, or omit to do, any act or thing which the Supplier knows or ought reasonably to know, would or may cause Ninti

One to be in breach of the Head Contract, including a breach by the Supplier of the provisions set out in Schedule 2.

- 3.6 The Supplier indemnifies Ninti One against any and all liability which it causes Ninti One to incur to the Commonwealth under the Head Contract as a result of the Supplier's breach of its obligations under this Agreement.

4. SERVICES

- 4.1 During the Term, the Supplier will provide the Services:

- (a) itself and/or using the Key Personnel (if any);
- (b) in the manner specified in this Agreement or otherwise agreed by the Parties;
- (c) in accordance with:
 - (i) the standards specified in the Head Contract, all applicable laws and in accordance with practices, methods and standards that would reasonably be expected from professional and experienced suppliers in the relevant industry undertaking the same type of work as the Supplier in the same or similar circumstances;
 - (ii) the terms and conditions of this Agreement including the provisions set out in Schedule 2, being those terms of the Head Contract which Ninti One is required to impose on the Supplier as a subcontractor under the Head Contract;
 - (iii) the recognition and attribution obligations set out in Schedule 3;
 - (iv) the reasonable directions, procedures and policies of Ninti One including the Statement of Values set out in Schedule 4; and
 - (v) the Contract Documents generally;
- (d) so as to provide the Deliverables and any reports as required under this Agreement;
 - (i) ensuring that the Services conform to the requirements of the Head Contract; and
 - (ii) in such locations as reasonably required by Ninti One.

- 4.2 The Supplier must be aware, when working with Aboriginal and Torres Strait Islander people and other groups, communities or populations from culturally and linguistically diverse backgrounds in providing the Services, of basic cultural communication protocols, taboos or sensitivities that could adversely affect the quality of the Services or the performance of the Agreement.

- 4.3 The Supplier must not subcontract any part of the Services or replace the Key Personnel with any other person without the prior written agreement of Ninti One.

- 4.4 The Supplier must notify Ninti One immediately if any of the Key Personnel is or becomes unable to perform the Services as contemplated by this Agreement and must, within 3 Business Days of request by Ninti One, replace the Key Personnel with person/s of equivalent skill and expertise.

- 4.5 If Ninti One, at its absolute discretion, is of the view that the replacement Key Personnel referred to in clause 4.4.4 do not hold the appropriate qualifications or lack the required skill and expertise, Ninti One may terminate this Agreement with immediate effect.

5. FEE

- 5.1 Subject to Ninti One receiving equivalent or corresponding funds from the Commonwealth under the Head Contract and the Supplier satisfying its obligations under this Agreement (as

determined by Ninti One acting reasonably), Ninti One must pay the Supplier the Fee in accordance with the Payment Arrangements specified in the Agreement Details.

- 5.2 The Supplier must provide tax invoices to Ninti One in accordance with clause 13.
- 5.3 The Supplier acknowledges and agrees that the Fee constitutes the only fee or financial benefit to which it is or may become entitled for provision of the Services.
- 5.4 For the purposes of clause 5.1, it will be reasonable for Ninti One to determine that the Supplier has not satisfied its obligations under this Agreement where the Commonwealth similarly determines that Ninti One has not satisfied the requirements of the Head Contract with respect to the same obligations.
- 5.5 To the extent that the Commonwealth:
- (a) reduces, suspends or defers its payments to Ninti One under the Head Contract; or
 - (b) requires Ninti One to return any monies provided to it by the Commonwealth under the Head Contract,

as a result or consequence of a breach of this Agreement by the Supplier, then Ninti One may similarly reduce, suspend or defer its payments to the Supplier of the Fee or require the return to Ninti One of the equivalent amount of the Fee paid to the Supplier.

6. NINTI ONE IP

- 6.1 Ninti One:
- (a) will make Ninti One IP available to the Supplier; and
 - (b) subject to clause 6.2, grants to the Supplier a non-exclusive, royalty-free right to use the Ninti One IP,
- only as reasonably necessary for the performance of the Services in accordance with this Agreement.
- 6.2 Where Ninti One IP includes any Commonwealth Material, Ninti One will make the Commonwealth Material available to the Supplier on terms consistent with those granted to Ninti One under clause 12 of the Head Contract.
- 6.3 Subject to clauses 6.1(b) and 6.2, the Supplier acknowledges and agrees that it will have no rights whatsoever in respect of any Ninti One IP.

7. SUPPLIER BACKGROUND IP

- 7.1 All the Supplier Background IP will continue to be owned by the Supplier.
- 7.2 The Supplier grants to Ninti One a worldwide, non-exclusive, sublicensable, royalty-free, irrevocable, transferable and perpetual licence to use, adapt and exploit the Supplier Background IP to the extent necessary to enjoy the full benefit of the Services and the Results for any purpose (including a commercial purpose and to the extent necessary for Ninti One to grant the right and licences to the Commonwealth as required by the terms of the Head Contract).

8. RESULTS

- 8.1 The Supplier undertakes to promptly disclose all Results arising from the Services to Ninti One.
- 8.2 Subject to the terms of the Head Contract, the Parties acknowledge and agree that:
- (a) any IPR created in respect of Commonwealth Material will be owned by the Commonwealth (or its nominee) upon creation;
 - (b) all other Results will upon creation be owned by the Supplier (**Supplier Results**).

- 8.3 Ninti One assigns to the Supplier all right, title and interest in and to any and all the Supplier Results, and to the extent necessary to give individual effect, such assignment will occur as from the date of creation.
- 8.4 The Supplier grants Ninti One a worldwide, non-exclusive, sublicensable, royalty-free, irrevocable, transferable and perpetual licence to use, adapt and exploit the Supplier Results for the purposes of:
- (a) enjoying the full benefit of the Services and the Results as contemplated by this Agreement; and
 - (b) licensing the Supplier Results to the Commonwealth as required by the Head Contract (including clause 12 of the Head Contract).
- 8.5 The Supplier warrants and undertakes that the Results will not be copied in whole or in part from any third parties' materials and that nothing will prevent Ninti One (and the Commonwealth) from using the Results or otherwise obtaining full benefit of the Services and the Results for any purpose (including a commercial purpose). This clause 8.5 will not apply to any third party material supplied by Ninti One to the Supplier for the purposes of the performance of the Services, such as Commonwealth Material.
- 8.6 The Supplier further warrants that, in respect of all IPR licensed to Ninti One under or in connection with this Agreement, to the best of the Supplier's actual knowledge at the time at which the IPR is first made available and without the need to make additional enquiries, conduct searches or seek legal or patent opinion:
- (a) the relevant licensor has the right, title or authority to license, and has been made aware of, the rights granted in respect of IPR under this Agreement; and
 - (b) the Supplier has no notice of any challenge, claim or proceeding in respect of any such IPR.
- 8.7 The Supplier must immediately notify Ninti One if the Supplier becomes aware that it does not have right, title or authority to provide any license, or of any challenge, claim or proceeding referred to in clause 8.6(b) arising in respect of any such IPR after the IPR is delivered to Ninti One.
- 8.8 The Supplier must do all things and execute all documents that are reasonably necessary to give full effect to this clause 8.
- 8.9 The Supplier acknowledges that the Services form a part of the wider project described in Recital A, and hereby warrants and undertakes to Ninti One that the Results and the Supplier Background IP will be made available as required by the Commonwealth and Ninti One for the purposes of the conduct of the project until the project's completion on the terms set out in the Head Contract (including any variation or extension to the Head Contract that relates to the project) and otherwise on reasonable terms.

9. DELIVERABLES & REPORTS

- 9.1 The Supplier will provide the Deliverables to Ninti One by the Due Date(s) specified in the Agreement Details. The Deliverables will be owned by the Supplier in accordance with clause 8.2 but licensed to Ninti One in accordance with clause 8.4 and to the Commonwealth in accordance with Head Contract provisions set out in Schedule 2.
- 9.2 The Supplier will provide reports to Ninti One in relation to its progress with the performance of the Services, including details of the creation of any Results, at intervals to be agreed by the Parties (or if not agreed, at least monthly during the Term). All reports will be owned by Ninti One.
- 9.3 The Supplier will further cooperate with and provide reasonable assistance to Ninti One to enable Ninti One to meet its reporting obligations to the Commonwealth under the Head Contract.

10. WARRANTIES, LIABILITY AND INSURANCES

10.1 Warranties

The Supplier warrants that:

- (a) the Services will be performed by the Supplier and/or its Key Personnel (if any) for and on behalf of Ninti One (and acknowledges that the Services are being provided for the ultimate benefit of the Commonwealth); and
- (b) it is not subject to any agreement, policy, arrangement or otherwise, including in relation to employment or the provision of other consultancy services, which is inconsistent with or would otherwise restrict its ability to undertake the Services.

10.2 the Supplier is responsible for its personal property (and the property of any of its personnel involved in performing the Services, including the Key Personnel) and for any loss of property or damage caused to it.

10.3 Liability and indemnity

- (a) Without limitation to clause 3.6, the Supplier releases and indemnifies and will continue to release and indemnify Ninti One, its officers, employees, subcontractors and agents (**Those Indemnified**) from and against all actions, claims, proceedings or demands (including those brought by third parties) which may be brought against Those Indemnified, whether at common law, in equity or pursuant to statute or otherwise, in respect of any liability, loss, harm, damage, cost or expense, howsoever arising out of the Supplier's or its officers, employees, subcontractors and agents exercise of the Supplier's rights or performance (including failure to perform) of the Supplier's obligations under this Agreement, and any unlawful or negligent act or misconduct or omission or breach of the terms of this Agreement by the Supplier or its officers, employees, subcontractors and agents, and from and against all damages, costs and expenses incurred in defending or settling any such action, claim, proceeding or demand.
- (b) The Supplier's liability under clause 10.3(a) will be reduced to the extent to which any action, claim, proceeding or demand arises out of any negligence or other unlawful act or omission of, or breach of this Agreement by, Those Indemnified.

10.4 Insurances

- (a) For as long as any obligations remain under this Agreement and in any event for a period of 7 years following completion or termination of this Agreement, the Supplier must have and maintain all appropriate and necessary insurances (including the insurances for the minimum liability coverage amounts specified in the Agreement Details) to cover the Supplier's and its officers, employees, subcontractors and agents performance of the Supplier's obligations under this Agreement (including as required by the Head Contract).
- (b) Within 10 Business Days of a request from Ninti One, the Supplier must provide Ninti One with a certificate of currency of its relevant insurance policies as required under clause 10.4(a).

11. CONFIDENTIAL INFORMATION

11.1 Each Party will keep the terms of this Agreement and all Confidential Information of the other Party confidential and will not, without the prior written consent of the disclosing Party, disclose or permit the same to be disclosed to any third party.

11.2 Each Party will use all reasonable endeavours (including labels or verbal notification) to ensure that the receiving Party is aware of the confidential nature of Confidential Information at the time of disclosure.

- 11.3 Each Party will take reasonable steps to provide for the safe custody of any and all Confidential Information disclosed to it by the other Party and to prevent unauthorised access to or use of such Confidential Information.
- 11.4 Each Party will ensure that its officers, employees and agents comply with the obligations of confidentiality imposed upon it by this clause 11 as if personally bound by such obligations.
- 11.5 The obligations on the Parties under this clause 11 will not be taken to have been breached to the extent that a Party:
- (a) discloses Confidential Information of the other Party to its:
 - (i) employees;
 - (ii) directors and officers; and
 - (iii) legal, financial or other professional advisers,who have a need to know for the purposes of this Agreement (and only to the extent that each has a need to know), provided the disclosure is made subject to an obligation of confidentiality in accordance with clause 11.4;
 - (b) discloses Confidential Information of the other Party to the extent required by law or the rules of a stock exchange, provided that to the extent reasonably possible, prior written notice of such required disclosure is given to the disclosing Party to enable it to seek to challenge the disclosure of its Confidential Information; or
 - (c) in the case of Ninti One, it discloses Confidential Information of the Supplier to the extent necessary for Ninti One to meet its obligations to the Commonwealth under the Head Contract and the Commonwealth then discloses such Confidential Information of the Supplier in accordance with the Commonwealth's rights under the Head Contract.
- 11.6 Subject to clause 11.5(c), at any time upon written request, a Party must return any documents which embody Confidential Information of the other Party and must not keep any copies in any form, provided that a Party may retain one copy of such Confidential Information as is necessary to meet its reasonable record-keeping requirements subject to an obligation to treat such copy as confidential in accordance with this clause 11.
- 11.7 The Supplier acknowledges that it may receive or otherwise become aware of confidential information or material of the Commonwealth made available to Ninti One under the Head Contract (**Commonwealth Confidential Information**). All Commonwealth Confidential Information must only be used by the Supplier for the purposes of the conduct of the Services and must be kept strictly confidential by the Supplier on terms at least as onerous as apply to Ninti One's Confidential Information under this clause 11. The Supplier will further comply with any specific requirements relating to Commonwealth Confidential Information that are specified in the Head Contract or notified by Ninti One to the Supplier from time to time.
- 11.8 Each Party's obligations under this clause 11 survive expiration or earlier termination of this Agreement and continue until the Confidential Information disclosed to it lawfully becomes part of the public domain.

12. TERMINATION

12.1 Termination or reduction for convenience by Ninti One

Ninti One may terminate this Agreement or reduce the scope of the Services at any time for convenience and without default by giving the Supplier notice. The termination or reduction will take effect immediately upon delivery of the notice.

12.2 Termination and reduction due to actions of the Commonwealth

- (a) The Supplier acknowledges that the Commonwealth may at any time terminate the Head Contract or reduce the scope of the Head Contract for convenience, by notifying Ninti One in writing.

(b) If the Commonwealth exercises the rights referred to in clause 12.2(a), Ninti One's liability to the Supplier in respect of the termination or reduction is limited to:

- (i) payments for work performed before the date the termination or reduction takes effect; and
- (ii) any reasonable costs incurred by the Supplier that are directly attributable to the termination or reduction,

and then subject to Ninti One receiving the corresponding or equivalent funds under the Head Contract.

- (c) The Supplier will not be entitled to compensation for loss of prospective profits, redeployment and redundancy costs or for any part of this Agreement is not performed.
- (i) If there is a reduction in the scope of the Services, Ninti One's obligation to pay any fee will abate proportionately to the reduction in the Services.

12.3 Termination for cause

Ninti One may terminate this Agreement immediately by written notice to the Supplier on the happening of any one of the following events:

- (a) if the Head Contract is terminated for any reason (without limitation to clause 12.2);
- (b) if the Supplier breaches any term of this Agreement where that breach is not capable of remedy;
- (c) if the Supplier breaches any term of this Agreement where the breach is capable of remedy and the breach is not remedied within thirty (30) days of receipt of notice in writing from Ninti One;
- (d) if the Supplier is in breach of any warranty given by the Supplier under this Agreement;
- (e) if the Supplier engages in conduct which brings its reputation into disrepute and Ninti One believes its continued association with the Supplier would be detrimental to the reputation of Ninti One or the Commonwealth;
- (f) if the Supplier is the subject of winding up or liquidation proceedings, whether voluntary or compulsory, otherwise than for the purpose of and followed by, a reconstruction, amalgamation or reorganisation; or
- (g) if the Supplier has become insolvent, bankrupt or is subject to the appointment of a receiver, manager, a receiver or manager or an inspector to investigate its affairs, enters into any arrangement or composition with its creditors generally, or is unable to pay its debts as and when they become due,

such termination to be effective immediately upon receipt of the written notice.

12.4 The Supplier may terminate this Agreement immediately by written notice to Ninti One if Ninti One breaches any term of this Agreement where that breach is not capable of remedy, or if Ninti One breaches any term of this Agreement where the breach is capable of remedy and the breach is not remedied within thirty (30) days of receipt of notice in writing from the Supplier, such termination to be effective immediately upon receipt of the first mentioned written notice.

12.5 If this Agreement is terminated:

- (a) the Supplier will return the Ninti One IP to Ninti One;

- (b) the Supplier will deliver any Results created before the termination of the Agreement to Ninti One and will strictly maintain the confidentiality of the Results in accordance with clause 11;
- (c) rights granted by the Supplier to Ninti One (and the Commonwealth) with respect to the Results, Deliverables and the Supplier Background IP will continue;
- (d) such termination is without prejudice to the continuing enforceability of any rights or obligations of the Parties accrued at the time of the termination and any rights and obligations which under the terms of this Agreement are expressed to survive termination (subject to clause 12.5(g));
- (e) each Party will continue to strictly maintain the confidentiality of the other Party's Confidential Information, Ninti One IP and the Supplier Background IP, and will not permit the disclosure of any such information to any third party or make or permit to be made any use of such information for any purpose other than as expressly provided in this Agreement;
- (f) the Supplier will continue to strictly maintain the confidentiality of the Commonwealth Confidential Information (as defined in clause 11.7); and
- (g) under clause 13.1, the Supplier will render a final tax invoice for Services up to the date of termination, together with any other reasonable, unavoidable and committed costs incurred by the Supplier up to the date of termination, and Ninti One will pay such tax invoice in accordance with the Payment Arrangements.

13. GST

- 13.1 Unless otherwise expressly stated, all amounts payable under this Agreement will be exclusive of GST.
- 13.2 If, by operation of the GST Law, any Supply under this Agreement is regarded as a taxable supply, the Supplier will be entitled to recover from the Recipient, an amount equivalent to the GST payable by the Supplier in relation to the Supply, less any decrease in the cost to the Supplier of making the Supply resulting from the abolition or variation of any taxes, duties or statutory charges in relation to the imposition of GST.
- 13.3 If GST is payable, the Supplier will provide the Recipient with a tax invoice or a document adequate to entitle the Recipient to claim an input tax credit.
- 13.4 In this clause 13:

GST bears the meaning attributed to that term in the GST Law.

GST Law means *A New Tax System (Goods and Services Tax) Act 1999* (Cth) and any substantially similar legislation when it is passed into law and which may operate at any time during the Term of this Agreement.

Recipient means a person that has received a Supply.

Supplier means a person that has made or provided a Supply.

Supply bears the meaning attributed to that term in the GST Law.

- 13.5 Where a taxable supply takes place outside Australia in a territory that imposes a goods and services tax, value added tax, or similar, then references in this clause to GST and GST Law will refer to the applicable tax and legislation in that territory and this clause 13 will be read and construed accordingly.

14. NOTICES

- 14.1 Any notice, demand or other communication required to be given or made in writing under this Agreement may be served on a Party at its address set out in the Agreement Details by hand, prepaid post or email.

14.2 A Party may change its nominated contact person, address or email address for the purposes of this Agreement by giving notice of such change to the other Party within 7 days of the change.

14.3 Any notice or other communication will be deemed to have been received by the Party to which it was sent:

- (a) in the case of hand delivery, upon the date of such delivery;
- (b) in the case of prepaid post within Australia, on the third Business Day after the date of posting (or on the seventh Business Day after the date of posting if posted to or from a place outside Australia); or
- (c) in the case of email transmission, on delivery of a read receipt from the receiver or, if no read receipt is delivered, one day after the notice has been sent by email, and the sender will keep a record of the notice and the date on which it was sent,

unless in any such case it would be deemed to have been received on a day which is not a Business Day or after 5 p.m. on such a Business Day, in which event it will be deemed to have been received on the next such Business Day.

15. DISPUTE RESOLUTION

15.1 Any dispute between the Parties over the operation of this Agreement will be dealt with as follows:

- (a) the disputing party will serve written notice on the other party setting out particulars of the dispute;
- (b) within 14 days after the notice of dispute is served in accordance with paragraph (a), the parties must attempt in good faith to settle the dispute by direct negotiation;
- (c) negotiations under paragraph (b) will be conducted either in person at the Ninti One office by telephone conference or by other electronic means of communication;
- (d) if the dispute is not resolved within 14 days of commencing negotiation under paragraph (b), either party may submit the dispute to mediation in accordance with the Institute of Arbitrators and Mediators Australia 'Rules for the Mediation of Commercial Disputes';
- (e) the Supplier and Ninti One must pay the mediator's costs in equal shares and each party must pay their own costs of the mediation; and
- (f) neither party will have recourse to arbitration or litigation unless the dispute has been submitted to mediation and mediation has been unsuccessful.

15.2 Nothing in this clause will prevent a party from seeking interlocutory relief through courts of appropriate jurisdiction.

16. GOVERNING LAW

This Agreement is governed by the laws of the Northern Territory and each Party submits to the non-exclusive jurisdiction of the courts of the Northern Territory and its courts of appeal.

17. RELATIONSHIP

Except where this Agreement expressly states otherwise, each Party enters this Agreement as an independent contractor and nothing will create any other relationship between them, including any relationship of partnership, agency, trust, joint venture or otherwise. The duties, obligations and liabilities of the Parties will in every case be several and not joint nor joint and several.

18. SEVERANCE

A term or part of a term of this Agreement that is illegal or unenforceable may be severed from this Agreement and the remaining terms or parts of the term of this Agreement will continue in

force except to the extent that the provisions to be severed would materially change the substance of this Agreement. In that instance, the Parties will negotiate in good faith to seek agreement on a replacement provision that is valid and enforceable and will as far as possible, give effect to the intention of the Parties, and in the absence of such agreement within a reasonable time this Agreement may be terminated upon the written notice of a Party.

19. WAIVER

Any failure or delay by a Party to compel performance by the other Party of any of the terms and conditions of this Agreement will not constitute a waiver of those terms or conditions, nor will it affect or impair the right of the first-mentioned Party to enforce them at a later time or to pursue remedies it may have for any subsequent breach of those terms or conditions.

20. AMENDMENT

This Agreement may only be amended by a written instrument signed by the Parties.

21. APPROVALS AND CONSENTS

Except where this Agreement expressly states otherwise, a Party may, in its discretion, give conditionally or unconditionally or withhold any approval or consent under this Agreement.

22. ENTIRE AGREEMENT

This Agreement contains the whole of the agreement between the Parties with respect to its subject matter and supersedes any and all other representations or statements by a Party whether oral or in writing and whether made prior or subsequent to the date of this Agreement.

23. FORCE MAJEURE

23.1 No Party will be liable for any failure to carry out its obligations under this Agreement where such failure is due to any cause beyond the reasonable control of that Party (**Force Majeure Event**). Where a Force Majeure Event continues for a period of 90 days, the Parties must consult with a view to reaching an agreement on whether or not this Agreement should continue and, if so, with what modifications to take into account the Force Majeure Event. Failing agreement within a reasonable time, this Agreement will terminate upon the written notice of a Party.

23.2 An obligation to make a payment is not excused by a Force Majeure Event.

24. NO ASSIGNMENT

No Party may assign or attempt to assign or otherwise transfer or encumber any right or obligation arising out of this Agreement except with the written consent of the other Party.

25. SUBCONTRACTING

Except where this Agreement expressly states otherwise, a Party will not subcontract the performance of its obligations under this Agreement except with the written consent of the other Party.

26. FURTHER ACTS

A Party, at its own expense and within a reasonable time of being requested by the other Party to do so, must do all things and execute all documents that are reasonably necessary to give full effect to this Agreement and the transactions contemplated by it.

27. NO AUTHORITY

Except where this Agreement expressly states otherwise, no Party may enter into any agreement or incur any liability on behalf of the other Party without that other Party's prior written consent and may not represent to any person that it has any authority to do so.

28. NO MERGER

The rights and obligations of the Parties under this Agreement do not merge on completion of any transaction contemplated by this Agreement.

29. COUNTERPARTS

This Agreement may be executed in counterparts. All executed counterparts constitute one document. Counterparts may be exchanged and relied on in facsimile or digital scanned form.

30. COSTS AND EXPENSES

Each Party will bear its own costs and expenses in relation to the negotiation, preparation, execution, delivery and completion of this Agreement and any related documentation.

31. SURVIVAL

Without limitation to the express provisions of this Agreement or those clauses of this Agreement which are intended or capable of having effect following the expiry or termination of this Agreement, the following clauses will survive the expiry or termination of this Agreement: clauses 7.2, 8, 10, 11, 12.5, 1515, 16, and this clause 31.

Schedule 1 Services

The Supplier must deliver the Services as set out below.

1. SCOPE OF SERVICES

[Insert the scope of services to be provided by the Supplier]

2. DELIVERABLES AND TIMEFRAMES

[Insert any applicable deliverables and timeframes]

[You may wish to incorporate the Contract Outcomes from the nrpp.com.au/faq's page here]

3. FEES

[Insert total amount of fees, disbursements and any milestone payments]

4. PAYMENT ARRANGEMENTS

[Insert payment arrangements including for example any invoice procedures, timings and bank details of the Supplier]

Schedule 2 Head Contract provisions to which the Supplier is subject

Without limiting clause 3, under the terms of the Head Contract, Ninti One is specifically required to ensure that the Supplier complies with the following obligations, and the Supplier must comply with the following obligations:

#	Details
1	CONTRACT MATERIAL (a) The Supplier grants, or undertakes to arrange for a third party to grant, to the Commonwealth a permanent, irrevocable, royalty-free, licence fee-free, world-wide, non-exclusive licence (including a right of sublicense) to use, reproduce, modify, adapt, publish, perform, broadcast, communicate, commercialise and exploit the Intellectual Property in any Existing Material in conjunction with the Contract Material. (b) To the extent that the Supplier needs to use any of the Contract Material for the purpose of performing its obligations under this Agreement, the Commonwealth grants to the Supplier for the Contract Term a right of sub-licence to use, reproduce, modify, adapt, publish, perform, broadcast and communicate the Intellectual Property in the Contract Material solely for the purposes of this Agreement. (c) If requested by the Commonwealth, the Supplier agrees to bring into existence, sign, execute or otherwise deal with any document which may be necessary or desirable to give effect to this clause. (d) The Supplier warrants that it is entitled, or will be entitled at the relevant time, to deal with the Intellectual Property in the Contract Material and Existing Material in the manner provided for in this clause. (e) Property in any copy of Contract Material (in the form of a document, article or removable medium) vests or will vest in the Commonwealth. The Supplier agrees to secure all copies within its control against loss and unauthorised use or disclosure; and on the expiration or earlier termination of this Agreement, to deliver to the Commonwealth, or, in accordance with the Commonwealth's directions, erase or otherwise deal with all such copies.
2	DISCLOSURE OF INFORMATION (a) The Supplier agrees not to disclose any Confidential Information relating to the Head Contract, the Agreement or the Services without prior approval in writing from Ninti One, which may be subject to conditions. (b) Ninti One may at any time require the Supplier to give, and to arrange for its personnel to give, undertakings in writing relating to the non-disclosure of Confidential Information. The Supplier agrees to promptly arrange for all such undertakings to be given. (c) The Supplier agrees: (1) to secure all copies within its control against loss and unauthorised use or disclosure; and (2) on the expiration or earlier termination of this Agreement, to deliver to Ninti One or in accordance with Ninti One's directions, erase or otherwise deal with all such copies.

#	Details
	(d) The Supplier acknowledges that the Commonwealth provides no undertaking to treat the Supplier's information, or this Agreement, as confidential information. (e) The Supplier acknowledges that the Commonwealth may disclose information relevant to this Agreement, or this Agreement itself, to any person: (1) to the extent required by Law or by a lawful requirement of any government or governmental body, authority or agency; (2) if required in connection with legal proceedings; (3) for public accountability reasons, including disclosure on request to other Government Agencies, and a request for information by parliament or a parliamentary committee or a Commonwealth Minister; (4) to Commonwealth third party service providers for the purposes of providing goods and services to, or on behalf of, the Commonwealth; or (5) for any other requirements of the Commonwealth.
3	ACCESS TO DOCUMENTS Where the Commonwealth has received a request for access to a document created by or in the possession of the Supplier that relates to the performance of this Agreement, the Commonwealth or Ninti One may at any time by written notice require the Supplier to provide the document to the Commonwealth or Ninti One and the Supplier must, at no additional cost to Ninti One or the Commonwealth promptly comply with the notice.
4	PROTECTION OF PERSONAL INFORMATION (a) The Supplier agrees in respect of the provision of the Services under this Agreement: (1) to use or disclose Personal Information obtained during the course of providing the Services under this Agreement, only for the purposes of this Agreement; (2) not to do any act or engage in any practice which if done or engaged in by an agency, would be a breach of an APP; (3) to notify individuals whose Personal Information the Supplier holds, that complaints about acts or practices of the Supplier may be investigated by the Privacy Commissioner who has power to award compensation against the Supplier in appropriate circumstances; (4) to comply with the obligations contained in the APPs that apply to the Supplier; (5) not to use or disclose Personal Information or engage in an act or practice that would breach an APP or a RAC, whichever is applicable to the Supplier, unless the activity or practice is engaged in for the purpose of discharging, directly or indirectly, an obligation under this Agreement, and the activity or practice which is authorised by this Agreement is inconsistent with the APP or RAC, whichever is applicable to the Supplier; (6) to comply with any request under section 95C of the Privacy Act; (7) to immediately notify Ninti One if the Supplier becomes aware of a breach or possible breach of any of the obligations contained in, or referred to in, this clause; (8) to comply with any directions, guidelines, determinations or recommendations of the Privacy Commissioner to the extent that they are consistent with the requirements of this clause;

#	Details
	(9) to ensure that any officers, employees or agents of the Supplier who are required to deal with Personal Information for the purposes of this Agreement are made aware of the obligations of the Supplier set out in this clause; and (10) not use or disclose any Personal Information, obtained from Ninti One or the Commonwealth for the purposes of direct marketing. (b) The Supplier must promptly give and procure that its personnel promptly give an undertaking relating to the non-disclosure of Personal Information upon request from Ninti One. (c) The Supplier indemnifies Ninti One and the Commonwealth in respect of any loss, liability or expense suffered or incurred by Ninti One or the Commonwealth which arises directly or indirectly from a breach of any of the obligations of the Supplier under this clause. (d) The Supplier acknowledges that its obligations under this clause are in addition to, and do not restrict, any obligations it may have under the Privacy Act or any privacy codes or privacy principles contained in, authorised by or registered under any law including any such privacy codes or principles that would apply to the Supplier but for the application of this clause.
5	COMPLIANCE WITH LAWS AND POLICIES (a) The Supplier agrees, in carrying out this Agreement, to comply with all Laws and any relevant policies, including: (i) the Crimes Act 1914; (ii) the Racial Discrimination Act 1975; (iii) the Sex Discrimination Act 1984; (iv) the Disability Discrimination Act 1992; (v) the Charter of United Nations Act 1945 and the Charter of United Nations (Dealing with Assets) Regulations 2008; (vi) the Archives Act 1983; (vii) the Privacy Act 1988; (viii) the Freedom of Information Act 1982; (ix) the Criminal Code Act 1995; (x) the Public Interest Disclosure Act 2013; (xi) the Modern Slavery Act 2018; (xii) the Payment Times Reporting Act 2020; (xiii) any work health and safety legislation applicable to the Supplier; (xiv) the Australian Government's Lobbying Code of Conduct; (xv) the Protective Security Policy Framework; (b) any fraud control policy, rules or guidelines issued by the Australian Government from time to time. The Supplier acknowledges that under section 137.1 of the Criminal Code, giving false or misleading information to the Commonwealth is a serious offence. (c) The Supplier agrees, when using the Commonwealth's premises or facilities, to comply with all reasonable directions and procedures relating to work health, safety and security in operation at those premises or in regard to those facilities (including the Commonwealth's smoke-free

#	Details
	work-place policy) whether specifically drawn to the attention of the Supplier or as might reasonably be inferred from the circumstances. (d) The Supplier must comply with, and require its personnel to comply with, the behaviours specified in: (i) the Code of Conduct in section 13 of the <i>Public Service Act 1999</i> as if the Supplier and its Personnel were APS employees as defined in that Act; and (ii) the general duties of officials at sections 25-29 of the <i>Public Governance, Performance and Accountability Act 2013</i> as if the Supplier and its Personnel were officials as defined in that Act.
6	PAYMENT TIMES PROCUREMENT CONNECTED POLICY If the Supplier enters into a PT PCP Subcontract, the Supplier must include in that subcontract: (i) a requirement for the Supplier to pay the PT PCP Subcontractor: (ii) within 20 calendar days after the acknowledgement of the satisfactory delivery of the services and receipt of a correctly rendered invoice. If this period ends on a day that is not a Business Day, payment is due on the next Business Day; and (iii) for payments made by the Supplier after the payment is due, the unpaid amount plus interest on the unpaid amount; (iv) a statement that the PT PCP applies to that subcontract; and (v) a statement that the subcontractor may make a complaint to the Policy Team, or to the Commonwealth as represented by the Department, in accordance with the PT PCP if there has been non-compliance with the requirements of this clause. If the Supplier enters into a Reporting Entity Subcontract in anticipation of (or after) entering this Agreement, the Supplier must use reasonable endeavours to include in that subcontract: (i) the obligation to comply with the PT PCP; and (ii) a requirement that, if the Reporting Entity Subcontractor in turn enters into a Reporting Entity Subcontract, then that subcontract will include: (iii) the obligation to comply with the PT PCP; and (iv) obligations equivalent to this clause (such that the obligations in this clause are to continue to be flowed down the supply chain to all Reporting Entity Subcontractors).
7	CHILD SAFETY If any part of the Services involves the Supplier employing or engaging a person (whether as an officer, employee, contractor, or volunteer) that is required by State or Territory law to have a working with children check to undertake the Services or any part of the Services, the Supplier agrees: (a) to comply with all State, Territory or Commonwealth law relating the employment or engagement of people who work or volunteer with children in relation to the Services, including mandatory reporting and working with children checks however described; and (b) if requested, to provide Ninti One at the Supplier's cost, an annual statement of compliance with this clause, in such form as may be specified by Ninti One.

#	Details
8	CONFLICT OF INTEREST (a) The Supplier warrants that, to the best of its knowledge after making diligent inquiries, at the Commencement Date, no conflict exists or is likely to arise in the performance of obligations under this Agreement by itself or by its personnel. (b) If, during the Term, a conflict arises, or appears likely to arise, in respect of the Supplier or any of its personnel, the Supplier agrees to: A. notify Ninti One immediately in writing of the conflict making a full disclosure of all relevant information relating to the conflict and setting out the steps the Supplier proposes to take to resolve or otherwise deal with the conflict; and B. take such steps as have been proposed by the Supplier, or at the absolute discretion of Ninti One, take such steps as Ninti One may reasonably require to resolve or otherwise deal with the conflict. (c) the Supplier acknowledges that if it fails to comply with this clause, or is unable or unwilling to resolve the issue in the required manner, the Commonwealth may terminate the Head Contract and Ninti One may terminate this Agreement accordingly.
9	ACCOUNTABILITY AND ACCESS (a) The Supplier must give to: (1) the Auditor-General or his/her delegate; (2) the Privacy Commissioner or his/her delegate; (3) the Ombudsman or his/her delegate; (4) the persons appointed under the <i>Australian Information Commissioner Act 2010</i> as the Information Commissioner and the FOI Commissioner or his/her delegate; and (5) any persons authorised in writing by Ninti One or the Commonwealth, (referred to in this clause collectively as 'those permitted') access to premises at which Materials associated with this Agreement are stored or work associated with this Agreement is undertaken; and to the Supplier's personnel, in order for those permitted to be able to inspect and copy Material for purposes associated with this Agreement or any review of performance under this Agreement. (a) The rights referred to in this clause are, wherever practicable, subject to: (1) the provision of reasonable prior notice from the Commonwealth (except where there is an actual or apprehended breach of the Law); (2) access being sought during reasonable times (except where the Commonwealth believes there is an actual or apprehended breach of the Law); and (3) the Supplier's reasonable security procedures. (b) The Supplier agrees to provide all reasonable assistance requested by Ninti One or the Commonwealth in respect of any inquiry into or concerning the Services or this Agreement. (c) Without limitation to the generality of this clause, the assistance to be provided by the Supplier will include, as appropriate, the provision of Material and of access to its computer hardware, software and equipment, and making available relevant personnel to provide information or answer

#	Details
	questions on any matters relevant to or arising from this Agreement or the performance of the Services which might reasonably be expected to be within the knowledge of the Supplier.
10	SUPPLIER WARRANTIES AND UNDERTAKINGS The Supplier represents, warrants and undertakes to Ninti One and the Commonwealth that: (a) it will promptly notify and fully disclose to Ninti One in writing any event or occurrence actual or threatened which could have an adverse effect on its ability to perform any of its obligations under this Agreement; (b) it has full power and authority to enter into, perform and observe its obligations under this Agreement; (c) the execution, delivery and performance of this Agreement has been duly and validly authorised by the Supplier; (d) it will promptly notify and fully disclose to Ninti One in writing if an Insolvency Event occurs in respect of the Supplier; (e) the unconditional execution and delivery of, and compliance with its obligations by it under this Agreement do not: (1) contravene any Law to which it or any of its property is subject or any order or directive from a Government Agency binding on it or any of its property; (2) contravene its constituent documents; (3) contravene any contract or instrument to which it is a party; (4) contravene any obligation of it to any other person; or (5) require it to make any payment or delivery in respect of any financial indebtedness before the scheduled date for that payment or delivery; (f) no litigation, arbitration, mediation, conciliation or proceedings including any investigations, are taking place, pending, or are threatened against the Supplier which could have an adverse effect upon either the Supplier's capacity to perform its obligations under this Agreement or the Supplier's reputation; (g) it has not had a judicial decision (excluding decisions under appeal) made against it in relation to employee entitlements where that resulting order has not been satisfied; (h) unless otherwise disclosed in this Agreement, it is not entering into this Agreement as trustee of any trust or settlement; (i) it has not made any false declaration in respect of any current or past dealings with Ninti One or the Commonwealth or any Government Agency, including in any tender or application process or in any contract; (j) it has had no significant deficiency in the performance of any substantive requirement or obligation under any prior contract with Ninti One or the Commonwealth or any Government Agency; (k) it has, and will continue to have and to use, the skills, qualifications and experience to perform the Services in an efficient and controlled manner with a high degree of quality and responsiveness and to a standard that complies with this Agreement; and (l) it has and will continue to have the necessary resources, including financial resources, to perform the Services and will use those resources to perform the Services.

#	Details
	The Supplier acknowledges that Ninti One and the Commonwealth relies on the Supplier's representations and warranties and has engaged the Supplier to provide the Services on that basis.
11	COMMONWEALTH SERVICE PROVIDER The Supplier acknowledges that it may be considered a 'Commonwealth service provider' for the purposes of the <i>Ombudsman Act 1976</i> and subject to investigation by the Ombudsman under that Act and that the Commonwealth will not be liable for the cost of any such investigation by the Ombudsman in connection with the subject matter of this Agreement or the subject matter of the Head Contract.
12	PUBLIC DISCLOSURE The Supplier consents to the public disclosure of its name in connection with the performance of the Services.

Schedule 3 RECOGNITION & ATTRIBUTION

1. Logo usage:
 - a. The Ninti One Limited Logo will always be slightly larger or the same size as other logos on a publication.
 - b. The Ninti One Limited Logo will never be smaller than any other logo on a publication.
 - c. The Ninti One Limited logo will always be in colour.
2. Where a relevant document contains provisions relating to the recognition, acknowledgement or attribution of the funding body, those requirements will be fulfilled by the Supplier. The wording NRPP suppliers are to use in the media is: ' ... this activity is funded by the Department of Health and Aged Care's Tackling Indigenous Smoking program.'

Schedule 4 STATEMENT OF VALUES

Our Values

We are very proud of our connection to and respect for traditional culture. Our name 'Ninti' means 'clever' in Pitjantjatjara, which reflects our desire to be a capacity builder and knowledge broker.

- We are an inclusive, respectful and equality-driven organisation.
- We respect the cultural diversity and cultural authority of Aboriginal and Torres Strait Islander people.
- We will exhibit courage, innovation and entrepreneurship in our work.
- Respect, integrity, accountability, empathy, confidentiality, listening and learning will characterise our dealing with people.

Appendix 1 – SR1

SCHEDULE 2 – SUPPLIER DECLARATIONS

The Supplier must complete, sign and scan the declaration set out below and submit the declaration as part of its Quotation. This is a Minimum Content and Format Requirement.

THIS DEED POLL is made on the _____ day of _____ 2025
by _____

Name

ACN/ABN/ARBN

Short form name **Supplier**

1. Declaration

The Supplier declares that this deed is for the benefit of the Commonwealth of Australia as represented by Ninti One Limited.

2. Definitions

In this deed terms have the same meaning as in Request for Quotation for National Reach and Priority Projects (**RFQ**).

3. Offer and Change of Circumstance

The Supplier offers to supply the Services described in the RFQ on the conditions set out in the RFQ for the price quoted. The Supplier undertakes not to withdraw, vary or otherwise compromise this offer for a period of no less than six months from the Closing Time.

The Supplier undertakes to promptly notify Ninti of any change, after submission of its Quotation, to the basis upon which it will have access to the necessary skills or resources, or corporate or financial backing, to supply the Services.

4. Supplier's Conduct

The Supplier confirms that the quotation submitted in response to the RFQ (**Quotation**):

- does not contain any false or misleading claim or statement; and
- has been compiled without the Supplier:
 - engaged in misleading or deceptive conduct;
 - improperly obtaining Confidential Information;
 - engaging in any collusive bidding, anti-competitive or other unethical, improper or unlawful conduct;
 - violating any applicable laws or Commonwealth policies regarding the offering of inducements;
 - communicating with or soliciting information from any Ninti employee (or contractor) or ex-employee (or ex-contractor) other than the Contact Officer;
 - obtaining improper assistance from any Ninti employee or using Confidential Information improperly obtained;
 - approaching any officer or employee of Ninti other than in the manner set out in the RFQ;
 - engaging in, or procuring others to engage in, any activity that would result in a breach of the Lobbying Code of Conduct 2019 published by the Attorney-General's Department; or
 - otherwise acting in an unethical or improper manner or contrary to any law.

The Supplier warrants that it has not attempted and will not attempt, through its officers, employees or agents, to influence improperly any officer or employee of Ninti in connection with the assessment of the Quotation.

The Supplier warrants that it has complied with all relevant laws and with Commonwealth policy, in preparing and lodging its Quotation and in taking part in the RFQ process.

5. Conflict of Interest

[Note to Suppliers: Strike through whichever option does not apply]

The Supplier represents and declares that having made all reasonable enquiries, it does not have any known actual, perceived or potential conflicts of interest concerning itself or a related entity in respect of the RFQ, its Quotation or the provision of the Services referred to in the Statement of Requirement other than those specified below.

OR

The Supplier

- represents that, having made all reasonable enquiries, the following represents its only known actual, perceived or potential conflicts of interest in respect of this RFQ, its Quotation or the provision of the Services referred to in the Statement of Requirement:

[Insert details]

- advises that its proposed mitigation approach to manage this conflict of interest is as follows:

[insert details]

6. Further representations

The Supplier makes the following further representations to Ninti:

- it is authorised to sell and/or support all products required in the performance of the Services relating to the Quotation;
- it has examined the RFQ, all documents referred to in the RFQ and all other information made available to it and all applicable legislation and policies;
- it has examined all further information which is obtainable by making reasonable enquiries relevant to the risks, contingencies and other circumstances having an effect on its Quotation;
- it has satisfied itself as to the correctness and sufficiency of its Quotation, including quoted prices which are deemed to cover the cost of all matters necessary for the due and proper performance and delivery of the Services described in the Statement of Requirement;
- it has satisfied themselves as to the terms and conditions of the Draft Contract and its ability to comply with the Draft Contract (including by obtaining independent legal advice on the effect of its terms where appropriate), subject to its response at Schedule 4 – Statement of Non-Compliance;
- it has obtained independent advice on the effect of all relevant legislation in relation to the Supplier's participation in the RFQ process;
- it has made its own independent assessments of actual workload requirements under any resultant Contract and all prices will be presumed by Ninti to have been based upon the Supplier's own independent assessments;
- it has relied entirely on its own enquiries and has not relied on any representation, warranty or other conduct by or on behalf of Ninti, except as expressly provided in the RFQ or in notices received by it from Ninti; and
- it has accepted and has fully complied with the provisions of the RFQ.

7. Acknowledgements

The Supplier acknowledges that:

- Ninti may exercise any of its rights set out in this RFQ, at any time;
- the statements, opinions, projections, forecasts or other information contained in this RFQ may change;
- neither the lodgement of the Quotation nor the acceptance of any Quotation nor any agreement made subsequent to this RFQ will imply any representation from or on behalf of Ninti that there has been no material change since the date of this RFQ or since the date as at which any information contained in this RFQ is stated to be applicable;
- to the extent permitted by law, neither Ninti nor its officers, employees or advisers will be liable to any Supplier on the basis of any promissory estoppel, quantum meruit or on any other contractual or restitutionary ground or any rights with a similar legal or equitable basis whatsoever or in negligence as a consequence of any matter or thing relating or incidental to a Supplier's participation in the RFQ process, including instances where:
 - a Supplier is not engaged to undertake the provision of the Services;
 - Ninti decides not to enter into any resulting Contract with any Supplier or at all;
 - Ninti exercises or fails to exercise any of its other rights under or in relation to this RFQ (whether or not Ninti has informed a Supplier of its exercise of the rights);
- a Quotation or any other material or communication relevant to this RFQ is not received in time, is corrupted or altered or otherwise is not received as sent, cannot be read or decrypted, or has its security or integrity compromised, it may be excluded from consideration;
- to the extent permitted by law, Ninti will not be liable or in any way responsible for any failure to inform a potential Supplier of a change relating to the RFQ or any other matter arising by Ninti exercising any of its rights; and
- Ninti will have received the Quotation in reliance on this deed and that Ninti may suffer loss if any of the representations, undertakings, consents or other statements in this Declaration or the Supplier's Quotation are misleading or deceptive.

8. Corporate capacity

The Supplier confirms that:

- it has the capacity to respond to the RFQ;
- there are no restrictions under any relevant law to prevent it from so responding;
- it is financially viable; and
- the Supplier:
 - being a corporation – is not under one of the forms of external administration referred to in Chapter 5 of the *Corporations Act 2001* (Cth) and has not had an order made against it for the purpose of placing it under external administration; or
 - being an individual – is not bankrupt and has not entered into a scheme of arrangement with creditors.

9. Security, probity, and financial checks

The Supplier:

- consents to Ninti performing (and will procure all necessary consents to enable Ninti to perform) such security, probity and financial investigations and procedures as Ninti may determine are necessary in relation to the Supplier, any consortium member, their employees, officers, partners, associates, Subcontractors or related entities; and

- agrees to provide at its cost, all reasonable assistance to Ninti and its nominees in this regard.

10. Terrorism

The Supplier declares neither it, nor any of its personnel or any Subcontractor proposed in its Quotation, are listed as terrorists under section 15 of the *Charter of the United Nations Act 1945* (Cth).

Note: The list is available from the [Attorney-General's Department website](#).

11. Trade sanctions

The Supplier declares neither it, nor any Subcontractor proposed in its Quotation, are named in the consolidated list referred to in Regulation 40 the *Charter of United Nations (Dealing with Assets) Regulations 2008* (Cth).

Note: The list is available from the [Department of Foreign Affairs and Trade website](#).

12. Employee entitlements

The Supplier represents that, having made all reasonable enquiries, there are currently no unsettled judicial decisions against the Supplier (excluding decisions under appeal) relating to employee entitlements for which the Supplier has not satisfied any resulting order.

13. Illegal Workers

The Supplier declares that it does not engage Illegal Workers.

Note: see definition of "Illegal Workers" in the Glossary in Part 5 of this RFQ.

14. Indigenous Procurement Policy

The Supplier declares the following:

The Supplier has or has had _____ [NIL OR SPECIFY NUMBER] contracts with the Commonwealth that included the Indigenous Procurement Policy mandatory minimum requirements.

For the contracts referred to in the para above (if any), the Supplier has:

- fully met /
- partially met /
- not met /
- not applicable as Nil contracts undertaken,
- the Indigenous Procurement Policy mandatory minimum requirements.

[Note to Suppliers: Strike out the options that do not apply.]

The Indigenous enterprises referred to in the Indigenous Participation Plan submitted as part of Supplier's Quotation are 50 per cent or more Indigenous owned.

[Note to Suppliers: If you are an incorporated joint venture, where the joint venture is at least 25 per cent Indigenous owned, include the following. If it does not apply you may strike it out.]

The Supplier is a joint venture that is 25 per cent or more Indigenous owned.

[Note to Suppliers: Supply Nation maintains a list of enterprises that meet the definition of "Indigenous enterprises". If an enterprise is not listed with Supply Nation refer to section 1.8.1

of the Indigenous Procurement Policy for ways of ensuring an enterprise is an Indigenous enterprise.]

15. Shadow Economy Procurement Connected Policy

The Supplier represents that:

16. Survival

This deed survives the termination or expiry of the RFQ process.

Executed as a deed poll

Execution by a company incorporated in Australia

The following execution block should be used by a Supplier that is a company incorporated in Australia.

Signed, sealed and delivered by [Name of company] in accordance with Section 127 of the *Corporations Act 2001* (Cth) by:

Signature of director

Name of director (print)

Signature of director/company secretary
(Please delete as applicable)

Name of director/company secretary
(print)

Execution by an attorney

Where the Deed of Undertaking is executed by an attorney under a power of attorney on behalf of a company incorporated in Australia, the Supplier should submit with its executed Deed of Undertaking a copy of the relevant power of attorney. Powers of attorney must be in the form of a deed executed in accordance with section 127 of the *Corporations Act 2001* (Cth).

Signed sealed and delivered by [company name] by its attorney under power of attorney dated [date of power of attorney], who warrants that, as at the date of this deed, they have had no notice of revocation of the power of attorney:

in the presence of:

Signature of attorney

Name of attorney (print)

Signature of witness

Name of witness (print)

Appendix 2 – SR2**Schedule 3 – SUPPLIER RESPONSE INFORMATION**

Project Name:
Supplier Name:

1. Supplier's Profile**Supplier's contact officers**

Suppliers should provide details of their nominated contact officers in the following table:

Supplier's primary contact officer	
Name	
Position	
Telephone number	
Mobile phone number	
Email address	
Postal address	
Supplier's secondary contact officer	
Name	
Position	
Telephone number	
Mobile phone number	
Email address	
Postal address	

Supplier's details

Suppliers should complete all details in the following table:

Supplier's details	
Business or trading name	
Full legal name	
Entity type (e.g. company, sole trader, incorporated association, statutory authority, partnership, trustee on behalf of a trust, or other (as specified))	
ABN (if applicable)	
Is the Supplier registered for GST?	Yes / No
ACN (if applicable)	
Details of principal place of business / head office (including street address and telephone)	
Date and place of incorporation or registration of business (if applicable)	
Potential Supplier Entity's Country of Tax Residency	Insert your organisation's country of tax residency. Information to assist you to identify this information is available at: https://treasury.gov.au/policy-topics/taxation/country-tax-residency-disclosures
Potential Supplier's Ultimate Parent Entity's Country of Tax Residency	Insert your organisation's ultimate parent entity's country of tax residency (if different from above). Complete with "AS ABOVE" if same as your organisation's country of tax residency.

2. Subcontractor details

Where Suppliers are proposing to use Subcontractors to deliver some of the Services, Suppliers should complete all details in the following table for each nominated Subcontractor.

Subcontractor 1	
Business or trading name	
Full legal name	
Entity type (e.g. company, sole trader, incorporated association, statutory authority, partnership, trustee on behalf of a trust, or other (as specified))	
ABN (if applicable)	
ACN (if applicable)	
Details of principal place of business / head office (including street address and telephone)	
Details of the part(s) of the Services which will be delivered by the Subcontractor	

Subcontractor 2	
Business or trading name	
Full legal name	
Entity type (e.g. company, sole trader, incorporated association, statutory authority, partnership, trustee on behalf of a trust, or other (as specified))	
ABN (if applicable)	
ACN (if applicable)	
Details of principal place of business / head office (including street address and telephone)	
Details of the part(s) of the Services which will be delivered by the Subcontractor	

3. Supplier's insurance

Suppliers should complete all details in the following table. Suppliers should note the insurance requirements in the Draft Contract

General liability insurance	
Name of insurer	
Policy number	
Expiry date	
Amount of current cover	
Professional indemnity insurance	
Name of insurer	
Policy number	
Expiry date	
Amount of current cover	
Workers' compensation insurance	
Name of insurer	
Policy number	
Expiry date	

Where the Supplier's proposed Personnel are operating as an individual and/or include volunteers, Suppliers should also complete all details in the following table:

Disability income insurance	
Name of insurer	
Policy number	
Expiry date	
Amount of current cover	
Voluntary workers' insurance	
Name of insurer	
Policy number	
Expiry date	
Amount of current cover	

4. Supplier's Financial Viability

- a. The Supplier should provide a summary of their financial viability.
- b. The following documents are requested:

Financial Statements (last Audited financial statements)

- Balance sheet
- Income statement
- Cash flow statement
- Financial Ratios (if available)
- Management accounts (YTD)

Tax and Compliance Documents:

- Statement of tax record

Liabilities:

- List of outstanding debts or loans
- Insolvency/Bankruptcy actions

- c. Ninti may also request further information and undertake its own independent enquiries and assessment in relation to the Supplier's financial viability.

5. Actions or Investigations

- a. The Supplier should provide particulars of any petition, claim, action, judgement or decision that is likely to adversely affect its capacity to provide the Services.
- b. Suppliers should provide details of whether or not they are aware that they are under investigation, or the subject of court proceedings, in relation to a possible or actual breach of any relevant legislation, and if applicable, provide details of the same.

6. Referees

- a. Suppliers should provide details of at least two referees which can be contacted regarding work undertaken by the proposed personnel. References will be evaluated based on relevance of work completed as well as comments from the referee contacts.
- b. A Supplier may provide contacts within Ninti as referees. However, where a Ninti contact is involved in evaluating Quotations or advising the Quotation evaluation team, they will be unable to provide a reference, in which case Ninti may ask the Supplier to provide details of an alternate referee.
- c. Without limiting paragraph 11(b), Ninti reserves the right to contact persons other than those provided as referees by Suppliers.

Appendix 3 – SR3

Schedule 3 – SUPPLIER RESPONSE INFORMATION

SR3 HAS A PAGE LIMIT OF 15 PAGES IN TOTAL

Highlighted text can be deleted prior to submission.

Project Name:
Supplier Name:

7. The Supplier's proposed approach and methodology

Suppliers should provide the following information:

- a. provide a **one A4 page summary** of the proposed project including approach, target population and intended outcomes;
plus,
- b. provide a description of the proposed project(s) including a detailed approach and methodology and how they intend to fulfill the requirements as outlined in Schedule 1;
- c. how the proposed project will benefit the TIS program;
- d. how the Services will be managed and controlled by the Supplier;
- e. details of how the performance standards for the Services will be maintained, monitored and reported to Ninti;
- f. how the Supplier will respond to requests from Ninti for performance related information; and
- g. whether the Supplier can meet the Service requirements as set out in the Statement of Requirement in Schedule 1.
- h. risk assessment
 1. the key issues and risks the Supplier considers are relevant to the provision of the Services;
 2. the Supplier's suggested approach to managing or mitigating the issue and risk;
 3. the Supplier's role in the suggested approach; and
 4. the Supplier's risk management systems currently in place or proposed.

8. The personnel (including their availability) and other resources offered by the Supplier

Suppliers should clearly describe the resources to be allocated for the delivery of the Services. This is to include but not limited to: their organisational capacity to deliver the Services; and details of their approach and methodology for resourcing in terms of personnel, equipment, tools, approaches, models and facilities.

The Supplier should, in the table below, provide details of the personnel who will be used for the supply of the Services.

Name and position of management and/or project administration Personnel	Role in the provision of the Services	Experience / qualifications	Availability / FTE

9. The capability, experience and expertise of the Supplier and its key personnel in delivering services that are similar to the proposed Services

Suppliers should provide details of their capability, experience and expertise (and that of their key personnel) in delivering services that are similar to the proposed Services. In particular, please describe how this capability, experience and expertise will benefit the TIS program. Where references to previous work is included, Suppliers should include:

- a. the organisation(s) for whom the services were undertaken, including contact details;
- b. the nature of the project and the outcome achieved by the Supplier and its key personnel in delivering services;
- c. the period over which the work was undertaken; and
- d. the value of the work undertaken.

10. Other information

Suppliers should provide any other information that addresses the Evaluation Criteria set out in clause 20 of this RFQ.

Appendix 4 – SR4

SCHEDULE 4 – STATEMENT OF NON-COMPLIANCE

1. Statement of Non-Compliance

Where the Supplier wishes to negotiate any provisions of the Draft Contract (Schedule 7), it should include in its response below details of:

- the provision that it wishes to negotiate;
- the alternative words that it proposes; and
- any increase in its Quotation price if Ninti does not agree to the amendment.

Ninti will consider any non-compliances or partial compliances in its evaluation of other risks.

If Suppliers do not submit a response to this Schedule, they will be evaluated on the basis that they agree with all the provisions of the Draft Contract.

Ninti does not intend to permit a Supplier to re-open any provision of the Draft Contract in negotiations that was not identified as an area of non-compliance or partial compliance in a Quotation.

Item reference	Nature of compliance (partially complies, does not comply)	Reasons for non-compliance or partial compliance and proposed alternative wording

2. Confidential Information

The Supplier should specify any information which is contained in its Quotation, or which may be provided by it during this RFQ process, that it considers should be protected as Confidential Information by Ninti in respect of any resultant Contract. The Supplier should also provide appropriate reasons why any such information should be protected as Confidential Information.

Suppliers should review the information available from Ninti's website for further detail about what information may be protected as Confidential Information.

Proposed Confidential Information (refer to RFQ or Schedule clause)	Reason why this information should be protected as Confidential Information

Appendix 5 – SR5

Schedule 5 – PRICING SCHEDULE

Project Name:
Supplier Name:

1. Pricing Schedule instructions

- a. Suppliers are required to provide pricing (GST exclusive and inclusive) for the provision of the Services.
- b. Suppliers are required to outline the following in their Quotation a breakdown of assumptions, variations or other qualifications relied upon for generating the price should be provided.
- c. Suppliers must provide their pricing in Australian currency.
- d. The Supplier should indicate, in the table below, all fees, charges, and other costs which it would seek to be paid for the Services and discounts offered.
- e. Suppliers should provide itemised pricing information and proposed payment schedules detailing all fees, prices and charges and any assumptions related to each milestone or deliverable of the Services.

2. Pricing Schedule - Payments

[Note to Suppliers: The below clauses will form the Pricing schedule in the Draft Contract]

- 2.1 Ninti will pay the milestones in Table C below within 20 days after receipt of an itemised invoice for Services

2.3 Table A: Pricing Schedule - table to be completed by supplier

ITEM	Year 1 From contract inception to year ending June 2026 (GST exclusive)	Year 2 Financial year ending June 2027 (GST exclusive)	TOTAL (GST exclusive)	TOTAL (GST inclusive)
Salaries total over project (Specify personnel and FTE levels in Personnel Inputs Table B below)				
Administrative costs (Specify what these are likely to be)				
Travel/ Accommodation/ Incidentals Note: Ninti will not accept proposals for travel, accommodation and incidentals above the entitlements of standard non-SES (Senior Executive Service) entitlements in place at the time of entering into a contract				
Activity Budget (costs for specific purchases and activities to support the response)				
TOTAL BUDGET				
TOTAL BUDGET GST Inclusive				

Table B: Personnel Inputs - table to be completed by Supplier

Name	Time Input Yr 1 Long term (months) / Short term (hours/days)	Time Input Yr 2 Long term (months) / Short term (hours/days)	Total time commitment to project

Table C: Milestone Payment Schedule - table to be completed by Supplier

Milestone	Milestone due date	Amount (GST exclusive)	Amount (GST inclusive)
Ninti's acceptance of the comprehensive project plan			
Ninti's acceptance of quarterly progress report 1 accepted			
Ninti's acceptance of any milestone(s) specified by the supplier			
Ninti's acceptance of quarterly progress report 2 accepted			
Ninti's acceptance of quarterly progress report 3 accepted			
Add rows as required ...			

Appendix 6 – SR6

Schedule 6 – INDIGENOUS PARTICIPATION PLAN TEMPLATE RESPONSE FORM

Project Name:
Supplier Name:

INDIGENOUS PARTICIPATION PLAN

[INSERT NAME OF SUPPLIER]

1. This is an Indigenous Participation Plan submitted as part of the Quotation in response to [INSERT RFQ NUMBER]

2. If selected as the Contractor following evaluation of Quotations received in response to the RFQ, [SUPPLIER] will meet the mandatory minimum requirements on and from [insert date 2024] for the purposes of the Indigenous Procurement Policy:

at the contract-based level, in which regard at least:

- [INSERT] percentage of [SUPPLIER'S] full time equivalent Australian-based workforce deployed on the contracted project must be Indigenous Australians over the Initial Term of the Contract; and
- [INSERT] percentage of the value of the work performed under the Contract will be subcontracted to Indigenous enterprises over the Initial Term of the Contract; or

at the organisation-based level, in which regard at least:

- [INSERT] percentage of [SUPPLIER'S] full time equivalent Australian-based workforce will be Indigenous Australians over the Initial Term of the Contract; and
- [INSERT] percentage of the value of [SUPPLIER'S] Australian supply chain will be subcontracted to Indigenous enterprises over the Initial Term of the Contract.

3. To meet the mandatory minimum requirements on and from [insert date 2024] for the purposes of the Indigenous Procurement Policy, [SUPPLIER] will undertake the following:

[Note to Suppliers: Supplier to insert details of how it will meet the mandatory minimum requirements (which may include details of its current workforce / supply chain) at either / both the contract / organisation level and how it will go about meeting the requisite percentages to meet the mandatory minimum requirements. Suppliers should note that the mandatory minimum requirements are averages over the Initial Term of any resultant Contract and will accordingly need to detail their approach to achieving the specified targets over the Initial Term.]

4. [SUPPLIER's] rate of Indigenous employment and supplier use as at the Closing Time is:

5. [SUPPLIER] demonstrates its commitment to Indigenous participation as follows:

6. [SUPPLIER] will meet the mandatory minimum requirements: directly; or through subcontracts.

[Note to Suppliers: Supplier to detail its approach to meeting the mandatory minimum requirements directly or through subcontracts.]

7. [SUPPLIER] will ensure that its provision of the Services will deliver significant Indigenous employment or supplier use outcomes in the Remote Areas
